

Province of Alberta

JUDICATURE ACT

SURROGATE RULES

Alberta Regulation 130/1995

With amendments up to and including Alberta Regulation 80/2026

Current as of June 1, 2026

Office Consolidation

© Published by Alberta King's Printer

Alberta King's Printer
Suite 700, Park Plaza
10611 - 98 Avenue
Edmonton, AB T5K 2P7
Phone: 780-427-4952

E-mail: kings-printer@gov.ab.ca
Shop on-line at kings-printer.alberta.ca

Copyright and Permission Statement

The Government of Alberta, through the Alberta King's Printer, holds copyright for all Alberta legislation. Alberta King's Printer permits any person to reproduce Alberta's statutes and regulations without seeking permission and without charge, provided due diligence is exercised to ensure the accuracy of the materials produced, and copyright is acknowledged in the following format:

© Alberta King's Printer, 20__.*

*The year of first publication of the legal materials is to be completed.

Note

All persons making use of this consolidation are reminded that it has no legislative sanction, that amendments have been embodied for convenience of reference only. The official Statutes and Regulations should be consulted for all purposes of interpreting and applying the law.

(Consolidated up to 80/2026)

ALBERTA REGULATION 130/95

Judicature Act

SURROGATE RULES

Table of Contents

1 Definitions
2 Rules of Court
4 Application for directions
5 Notice to attend or produce
6 Venue
8 Additional information

Part 1
Non-contentious Matters

9.1 Personal representative's notice when acting without a grant

Division 1
Application for Grant

10 Grants
12 Limited grant
13 Required forms
13.1 Application forms and documents

Will

14 Void gift
15 Wills and codicils
16 Proof of signing formalities
17 Proving signing of will
18 Will not in English or French
19 Witnesses dead
20 Dated will
21 Minor testator
22 Other documents
23 Formal proof of will
24 Lost will
25 Alterations, etc.

Notice Required

26 Notice of application
26.1 Notice of grant

Bonds

28 Bonds
29 Dispensation from bond
30 Application re bond or other security
31 Powers of court

Personal Representatives

32 Renunciation
33 Nominations
34 Grant of double probate
35 Grant of re-sealed probate or re-sealed administration
36 Ancillary grant
37 Unadministered property

Claimants

38 Notice to claimants
39 Notice by claimant
40 Verification of claims
41 Valuation of security
42 Contested claims
43 Claims not yet payable

Duties of the Clerk

44 Fees
44.1 Waiver of fees
45 Applications
46 Grants
47 Retention of documents
48 Copies of documents
49 Clerk's certificate

Division 2
Administration of Minors' Property

49.1 Definition of trusteeship order
50 Application for trusteeship order
51 Documents to be served
52 Security
53 Dispensing with security

54 Application of rules

Division 3
Making, Altering or Revoking of a Will by a Minor

54.1 Application under Wills and Succession Act

Part 2
Contentious Matters

Division 1
General

55 Application
56 Parties
57 Persons interested in the estate
58 Commencement of action
58.1 Reply and demand for notice
59 Documents to be served
60 Service
61 Notice
62 Representation
63 Proceedings in chambers
64 Procedure at hearing
65 Standing
66 Trial of an issue
67 Time limit
68 Production of testamentary documents
69 Security for costs
70 Time for completion

Division 1.1
Applications under Various Acts

70.1 Applications under various Acts
70.2 Powers of the court
70.3 Parties, etc.
70.4 Service
70.5 Notice
70.6 Rules that apply to service of documents
70.7 Proceedings in chambers
70.8 Witness fees
70.9 Disclosure of financial information in family maintenance and support applications

Division 2
Proceedings on Caveats

71 Caveat against issue of grant
72 Warning to caveator
73 Objection to grant
74 Frivolous or vexatious caveat

Division 3
Formal Proof of a Will

75 Applications
76 Original will lost or destroyed
77 Required documents
78 Persons interested in the estate
79 Action commenced by a person interested in the estate
80 Special applications
81 Order requiring formal probate
82 Parties
83 Trial
84 Hearing in chambers
85 Evidence
86 Order of decisions
87 Order of proceedings
88 Other proceedings
89 Witness fees
90 Powers of the court
91 Order final
92 Appeal
93 Return and revocation of informal grant

Division 4
Proof of Death

94 Proof of death

Division 5
Claims on an Estate

95 Contested claim
96 Application to court

Part 3
Accounting

Division 1
General

97 Requirement for an accounting
98 Contents of financial statements
99 Acceptable documentation

Division 2
Releases

100 Releases
101 Effect of release
102 Bond

Division 3
Dispensing with Formal Passing of Accounts

103 Dispensing with passing accounts
104 Proceeding without notice
105 Court order
106 Objection

Division 4
Passing Accounts

107 Required forms
108 Application by person interested in estate
109 Reply
110 Withdrawal
111 Objection
112 Consent to an accounting
113 Powers of court
114 Notice of objection
115 Examination of accounts by professional accounting firm
116 Access to records
117 Report

Part 3.1
Electronic System

117.1 Definitions
117.2 Application
117.3 Use of electronic system
117.4 Policies, procedures, standards and guidelines
117.5 Certification

117.6 Electronic documents
117.7 Service

Part 5
Transitional, Repeal and Commencement

Schedule 1 - Legal and Personal Representative Compensation
Schedule 2 - Court Fees
Schedule 2.1 – Forms — Grants and *Minors' Property Act* Applications
Schedule 3 – Forms — Contentious Matters and Accounting

Definitions

1 In these Rules,

(a) repealed AR 44/2015 s2;

(b) "beneficiaries" includes persons who receive gifts of any kind under a will and heirs on intestacy;

(c) "claimants" includes creditors;

(d) "contentious matter" means

(i) proceedings respecting caveats,

(ii) formal proof of a will,

(iii) proceedings in which the right to obtain or retain a grant is in dispute, or

(iv) any other matter in dispute that arises in the administration of an estate to which these Rules apply;

(e) "file" means file with the clerk at the judicial centre at which an application must be made;

(f) "financial statement" means a formal financial report or statement required to be prepared by a personal representative under Part 3;

(g) "form" means a form in Schedule 2.1 or 3;

(h) "formal proof of a will" means proof of a will in solemn form;

(i) "minor", except in rule 54.1, includes an unborn child;

(j) "person" includes an organization or society;

(k) "person interested in an estate" means a person referred to in rule 57;

(l) "personal representative" means an executor of a will or an administrator or trustee of an estate to which these Rules apply, and includes a person named as an executor or trustee in a will before a grant is issued;

(l.1) "recorded mail" means recorded mail as defined in the *Alberta Rules of Court* (AR 124/2010);

(m) "residuary beneficiary" means a person receiving a part or all of the residue of the estate;

(n) "sign" with reference to a document means the execution of the document whether by signing or by some other means;

(o) "will" includes any testamentary disposition.

AR 130/95 s1;53/2001;165/2010;10/2012;44/2015;243/2021

Rules of Court

2(1) The *Alberta Rules of Court* (AR 124/2010) apply, with any appropriate modifications, to an application to the court if a matter is not dealt with under these Rules.

(2) The court may vary any rule in any case where the court decides it is appropriate to do so.

(3) Subrule (2) does not apply if the rule imposes a duty on the court.

(4) If provision for a procedure or matter is not made in these Rules or is not included in and cannot be analogized to the *Alberta Rules of Court* (AR 124/2010), the court may make any order concerning it that is necessary or appropriate in the circumstances.

AR 130/95 s2;165/2010;139/2023

3 Repealed AR 53/2001 s3.

Application for directions

4(1) A personal representative or a person interested in an estate may apply in Form C 1 to the court for directions at any time.

(2) On an application for directions, the court may consider

(a) practice, procedural or other issues or questions and ways to resolve them, and

(b) any other matter that may aid in the resolution or facilitate the resolution of a claim, application or proceeding or otherwise fairly or justly resolve the matter for which direction is sought.

AR 130/95 s4;10/2012

Notice to attend or produce

5(1) The court may issue

(a) a notice to compel attendance or to compel the production of any relevant documents, or

(b) a notice of future applications.

(2) The court may

(a) issue a notice to classes of persons interested in the estate generally rather than to individuals by name, and

(b) state the method of service to be used for the notice.

Venue

6(1) An application for a grant must be filed at the judicial centre that is closest by road to the location where the deceased resided on the date of death unless the court permits otherwise.

(2) If the deceased resided outside Alberta immediately before dying, an application for a grant may be filed at the judicial centre that is closest by road to a location in Alberta where the deceased had property on the date of death.

AR 130/95 s6;165/2010

7 Repealed AR 165/2010 s5.

Additional information

8 On any application to which these Rules apply, the court may require the applicant to give any additional information that the court decides is necessary.

9 Repealed AR 243/2021 s3.

Part 1
Non-contentious Matters

Personal representative's notice when acting without a grant

9.1(1) A personal representative's notice under section 10(1)(a) of the *Estate Administration Act* to a beneficiary may be in Form NGA 1 and must include at least the following:

(a) the deceased's name, place of residence and date of death;

(b) the personal representative's name and contact information;

(c) the date of the deceased's will;

(d) a description of the gift left by the will to the beneficiary or, in the case of a partial intestacy, a reference to the applicable provision of the *Wills and Succession Act* or the *Intestate Succession Act*, RSA 2000 cI-10;

(e) a statement that all gifts are subject to prior payment of all debts and other claims against the estate;

(f) if the beneficiary is a residuary beneficiary, a copy of the will.

(2) A personal representative's notice under section 10(1)(b) of the *Estate Administration Act* to a family member or to an attorney, a trustee, the Public Trustee or a guardian on behalf of a family member may be in Form NGA 2 and must include at least the following:

(a) the deceased's name, place of residence and date of death;

(b) the personal representative's name and contact information;

(c) the date of the deceased's will;

(d) a statement that the family member may be entitled to make a claim for maintenance and support under the *Wills and Succession Act* or the *Dependants Relief Act*, RSA 2000 cD-10.5, because the will does not give the family member all the property in the deceased's estate, and that the court may change the distribution of the estate to provide the family member with maintenance and support if the court is satisfied that the circumstances warrant it;

(e) a copy of the will.

(3) A personal representative's notice under section 10(1)(c) of the *Estate Administration Act* to a spouse or under section 10(1)(c.1) of that Act to an adult interdependent partner may be in Form NGA 3 and must include at least the following:

(a) the deceased's name, place of residence and date of death;

(b) the personal representative's name and contact information;

(c) the date of the deceased's will;

(d) a statement that the spouse or adult interdependent partner may be entitled to make a claim under the *Family Property Act* because the will does not give the spouse or adult interdependent partner all the property in the deceased's estate;

(e) a copy of the will.

(4) A personal representative's notice under section 10(1)(d) of the *Estate Administration Act* to the Public Trustee or another person may be in Form NGA 4 and must include at least the following:

(a) the name of the person who is interested in the estate;

(b) an identification of whether the notice is provided to the recipient as

(i) an attorney under an enduring power of attorney for the person who is interested in the estate,

(ii) a trustee of a represented adult who is interested in the estate,

(iii) the Public Trustee because the person who is interested in the estate was a minor on the date of the deceased's death or is a missing person as defined in the *Public Trustee Act*, or

(iv) a guardian of a minor who is interested in the estate;

(c) the information that subrule (1)(a) to (e) requires for a notice to a beneficiary, which may be included in the document that contains the information required by clauses (a) and (b) or set out in a separate document;

(d) a copy of the will.

(5) A notice referred to in this rule must be given in a manner that is likely to bring it to the attention of the intended recipient.

AR 44/2015 s3;156/2019

Division 1
Application for Grant

Grants

10(1) The following grants may be applied for under this Part:

(a) grants that are unlimited and unrestricted, including

(i) a grant of probate;

(ii) a grant of administration with will annexed;

(iii) a grant of administration;

(iv) a supplemental grant;

(v) a grant of double probate;

(b) grants that are limited to part of the deceased's property, including

(i) a grant of administration of unadministered property;

(ii) a grant of re-sealed probate with respect to property in Alberta;

(iii) a grant of re-sealed administration with respect to property in Alberta;

(iv) a grant of administration limited to specific property;

(v) a grant of administration of property not included in another grant;

(vi) an ancillary grant;

(c) grants that are for a limited time, including

(i) a grant of administration until a will is found;

(ii) a grant of administration during the minority, absence or mental incompetence of the personal representative;

(d) grants that are for a limited purpose only, including

(i) a grant of administration when the validity of a will is in question;

(ii) a grant of administration for the purpose of litigation;

(iii) a grant of administration for the preservation of property;

(iv) a grant of administration limited to a specified matter.

(2) The court may issue any grant that is not referred to in subrule (1) that the court considers proper in the circumstances.

(3) Unless the court, on application, orders otherwise, a grant of administration must not be given to more than 3 persons at the same time.

(4) A grant may be issued in Form GA6 or in any other form that is appropriate to the nature of the grant.

AR 130/95 s10;132/2000;44/2015;243/2021;139/2023

11 Repealed AR 44/2015 s5.

Limited grant

12(1) If the grant applied for is limited in any manner, the limitation must appear clearly on the application.

(2) If the grant given is limited in any manner, the limitation must appear clearly on the grant.

Required forms

13(1) An applicant for a grant must file Form GA1 and, if the circumstances require, the following additional forms:

(a) Form GA8;

(b) Form GA9;

(c) Form GA10;

(d) Form GA11;

(e) Form GA13;

(f) Form GA14.

(2) Any forms required to be filed under subrule (1) must be filed before a notice of application is served.

(3) An applicant for a grant must file Form GA2, in addition to any applicable forms referred to in subrule (1), if

(a) a personal representative is required under rule 28(1) to provide a bond or other security,

(b) a personal representative is applying under rule 29(1) to dispense with a requirement to provide a bond or other security, for approval of security other than a bond or to reduce the amount of a bond or other security,

(c) a personal representative is applying for

(i) a grant of re-sealed probate or administration with respect to property in Alberta, or

(ii) an ancillary grant,

or

(d) the court requires the applicant to file Form GA2.

(4) An applicant must file any forms or documents not referred to in subrules (1) and (3) that the court or the circumstances of the estate require.

(5) If a will or a person authorized by a will appoints a person to hold property in trust, each trustee of each trust must provide an affidavit of trustee in Form GA20 to the personal representative.

(6) If a person referred to in subrule (5) does not wish to or cannot act as a trustee in respect of the property in trust, the person must

(a) renounce in Form GA18 and provide that form to the personal representative, or

(b) renounce by a method approved by the court.

(7) The personal representative must not make a distribution to a trustee of any property that is subject to a trust under a will until after

(a) the trustee provides an affidavit of trustee in Form GA20 to the personal representative, and

(b) all persons who, under the will, have a right to trusteeship that is prior or equal to the right of the trustee referred to in clause (a) have renounced their rights to act as trustee

(i) in Form GA18 and have provided that form to the personal representative, or

(ii) by a method approved by the court.

(8) The court, at any time, may dispense with a renunciation required under subrule (6) or (7)(b).

AR 130/95 s13;132/2000;251/2001;101/2010;10/2012;44/2015;37/2020;243/2021

Application forms and documents

13.1 An application for a grant is not invalidated nor is there any contravention of these Rules if there is a deviation from or an addition to or omission from a form prescribed for the purposes of the application or a document prepared in place of a prescribed form that

(a) does not adversely affect the substance of the information required to be provided or that the court requires to be provided, and

(b) is not intended to mislead.

AR 243/2021 s5

Will

Void gift

14 Subject to the reinstatement of a gift by the court under section 40 of the *Wills and Succession Act*, an application made with respect to a will must indicate that a gift is void if the will provides for a gift to a beneficiary who

(a) is a witness to the will,

(b) is an individual who signed the will on behalf of the testator under section 19(1) of the *Wills and Succession Act*,

(c) is an interpreter who provided translation services in respect of the making of the will, or

(d) is, within the meaning of section 21(3) of the *Wills and Succession Act*, the spouse or adult interdependent partner of an individual described in clause (a), (b) or (c).

AR 130/95 s14;201/2003;107/2004;10/2012

Wills and codicils

15 Subject to section 45 of the *Alberta Evidence Act*, the original will and any original codicils must be attached to an application for a grant.

AR 130/95 s15;44/2015;243/2021

Proof of signing formalities

16(1) A witness to a will must prove that the signing formalities were observed by providing an affidavit in Form GA8 and the original will must be an exhibit to the affidavit.

(2) An affidavit sworn by a witness to a will at the time that a will is signed is acceptable as proof that the formalities were observed, unless there is an apparent change in the will that the witness has not satisfactorily explained in the affidavit.

(3) An affidavit referred to in subrule (2) may be in a form other than Form GA8 if

(a) it was sworn before the coming into force of this rule, and

(b) it is in a form that was required or permitted under these Rules at the time the affidavit was sworn.

(4) If a will is a holograph will or if a witness to a will cannot be found, a person other than the applicant, unless otherwise ordered by the court, must prove the deceased's handwriting by filing an affidavit in Form GA9, and the original will must be an exhibit to the affidavit.

(5) The person before whom the affidavit referred to in subrule (2) or (4) is sworn must mark the will, and any codicil, in such a way that the will is identified for the purposes of the affidavit.

(6) The following may be used to mark a will for identification under this rule:

This is exhibit A referred to in the affidavit of (deponent's name).

Sworn before me on _____

_____
(A Commissioner for Oaths in and for Alberta)

(7) Any marking on a will must be made below the signatures on either the front or back of the last page of the will and must not obliterate or damage the original will.

(8) The court may require any further identification of a will the court considers necessary if the will is written on more than one piece of paper and not all pieces are identified by the signature or initials of the deceased and the witnesses.

AR 130/95 s16;135/96;53/2001;37/2020;243/2021;139/2023

Proving signing of will

17 If the deceased at the time a will was made

(a) was blind,

(b) was illiterate,

(c) did not

(i) fully understand English, where the will is written in English, or

(ii) fully understand French, where the will is written in French,

(d) indicated an intention to give effect to the will with a mark, or

(e) indicated an intention to give effect to the will by having another person sign at the deceased's direction,

the applicant must satisfy the court that the deceased and the witnesses were present when the will was signed, that the will was fully explained to the deceased and that the deceased appeared to the witnesses to fully understand the will.

AR 130/95 s17;139/2023

Will not in English or French

18 If a will is written in a language other than English or French, the applicant must give an affidavit in Form GA10 verifying the will's translation into English or French.

AR 130/95 s18;243/2021;139/2023

Witnesses dead

19 If both witnesses to a will are dead or neither witness can give an affidavit for any reason, the applicant may establish proof that the formalities required for a will to be valid were observed by an affidavit

(a) in Form GA9 attesting to the authenticity of the signature of the deceased, or

(b) from any person

(i) who did not sign as a witness,

(ii) who was present during the signing of the will, and

(iii) who can attest to the circumstances.

AR 130/95 s19;44/2015;243/2021

Dated will

20(1) If there is no indication on a will of the date on which the will was signed or reference to the date is imperfect, one of the attesting witnesses must give evidence of the date on which the will was signed.

(2) If subrule (1) cannot be complied with, the court may require the applicant

(a) to give evidence of the signing of the will between 2 stated dates, and

(b) to give evidence that a search for a later will has been made and none was found.

Minor testator

21 If the deceased was under 18 years of age at the time the will was made, the applicant must prove that the deceased at that time

(a) had a spouse or adult interdependent partner,

(b) was a member of

(i) a regular force as defined in the *National Defence Act* (Canada), or

(ii) another component of the Canadian Forces and was, at the time of making the will, placed on active service under the *National Defence Act* (Canada),

(c) was authorized to make, alter or revoke a will by an order of the court under section 36 of the *Wills and Succession Act*, or

(d) in respect of a will made before the coming into force of the *Wills and Succession Act*, was a person described in section 9(1)(c) or (3) of the *Wills Act*.

AR 130/95 s21;10/2012

Other documents

22(1) If a document is incorporated by reference into a will, the applicant must file the original document with the court with the application.

(2) If a document referred to in subrule (1) is not given with an application, the applicant must explain to the satisfaction of the court why it is not.

AR 130/95 s22;243/2021

Formal proof of will

23 The court may require formal proof of a will under Part 2 or any other proof satisfactory to the court, if

(a) no witness is available to swear the necessary affidavit,

(b) the appearance of the will indicates an attempt to cancel it by burning, tearing or any other act of destruction,

(c) words in the will that might be important have been erased or obliterated, or

(d) in the opinion of the court, circumstances require formal proof of the will.

Lost will

24 If an original will is lost or destroyed but a copy or other evidence of it exists, the court may admit the copy or other evidence to probate if

(a) the will is proved formally under Division 3 of Part 2, or

(b) in the opinion of the court, the will can be adequately identified under this Part.

Alterations, etc.

25 If the court directs that any alterations, interlineations, erasures or obliterations should be omitted from a will, the clerk must omit them from the copy of the will attached to the grant.

Notice Required

Notice of application

26(1) An applicant must serve a notice of an application for a grant

(a) in Form GA3 on each person listed in Form GA1, other than the Public Trustee, who requires notification, and

(b) in Form GA4 on the Public Trustee, if the circumstances require.

(1.1) The notice of application must be accompanied by the application in Form GA1, as filed, and an inventory in Form GA2 when served on each

(a) residuary beneficiary,

(b) beneficiary on intestacy, and

(c) person required to be served under section 11 of the *Estate Administration Act*.

(1.2) Where section 12(1)(a) to (d) of the *Estate Administration Act* requires the applicant to serve notice on an attorney, a trustee, the Public Trustee or a guardian, the applicant must serve the attorney, trustee, Public Trustee or guardian with the applicable forms referred to in subrules (1) and (1.1).

(2) Repealed AR 243/2021 s11.

(3) A person may be served under this rule by

(a) leaving the document with the person,

(b) sending the document by recorded mail addressed to the person, or

(c) giving the document to a lawyer who is authorized to accept and who, in writing, accepts service on behalf of the person.

(3.1) Despite subrule (3), where a person, in writing, acknowledges receipt of the document, the person is served under this rule.

(3.2) Service is effected under subrule (3.1) on the day the person, in writing, acknowledges receipt of the document.

(4) Where a notice of application is required to be served on a person under this rule, an affidavit of service must be filed in Form GA5 within 30 days after the date on which service is effected.

(5) If the applicant does not file proof of service on a person as required by subrule (4), the court may issue a grant only if it is satisfied with the reason given by the applicant for not filing the proof of service as required.

(6) Service under this rule is valid despite a later amendment to the application that is made at the direction of the court.

AR 130/95 s26;135/96;132/2000;165/2010;10/2012;
37/2020;243/2021;139/2023

Notice of grant

26.1(1) Where the court issues a grant, the applicant must serve a notice of grant issuing in Form GA7 within 30 days after the grant is issued on each person listed in Form GA1 who requires notification.

(2) No affidavit of service is required where a notice of grant issuing is served.

AR 243/2021 s12

27 Repealed AR 243/2021 s13.

Bonds

Bonds

28(1) Subject to subrule (2), a personal representative who is not a resident of Alberta must provide a bond or other security approved by the court.

(2) A personal representative is not required to provide a bond or other security if

(a) the personal representative is resident in Alberta, or

(b) there are 2 or more personal representatives and one of them is resident in Alberta.

(3) If a non-resident personal representative must provide a bond, the bond must be from an insurer licensed under the *Insurance Act* to undertake fidelity insurance as defined in section 1(1)(h) of the *Classes of Insurance Regulation* (AR 144/2011).

(4) A bond or other security must be for an amount equal to

(a) the gross value of the deceased's property in Alberta,

less

(b) if the court so orders, any amount distributable to the personal representative as a beneficiary.

AR 130/95 s28;7/2005;44/2015

Dispensation from bond

29(1) A non-resident personal representative may apply in Form GA1

(a) to dispense with a requirement under rule 28(1) to provide a bond or other security,

(b) for approval of security other than a bond, or

(c) to reduce the amount of a bond or other security.

(2) An applicant under this rule may file a beneficiary's consent to dispensing with a bond or other security in Form GA14 in support of the application.

AR 130/95 s29;44/2015;243/2021

Application re bond or other security

30(1) Any person interested in an estate may apply to the court for an order that a bond or other security be required from a resident personal representative despite rule 28(2) if the personal representative is not named as executor in the will.

(2) Any person interested in an estate may apply to the court for an order requiring a non-resident personal representative to provide a bond or other security despite rule 28(2), whether or not an application is made under rule 29.

AR 130/95 s30;44/2015

Powers of court

31(1) The court, on an application under rule 29 or 30, may, before or after issuing a grant but only after considering the interests of the beneficiaries and claimants of the estate,

(a) require a bond or other security;

(b) reduce the amount of a bond or other security;

(c) dispense with the requirements for a bond or other security;

(d) impose conditions on the applicant or any other person interested in the estate;

(e) require more information;

(f) do any other thing that the circumstances require.

(2) The court must not require a lawyer representing an applicant to undertake to retain control of the property in the estate as a condition of dispensing with a bond or other security.

AR 130/95 s31;44/2015

Personal Representatives

Renunciation

32(1) If a will exists and a personal representative named in the will does not wish to or cannot apply for a grant, the personal representative must renounce in Form GA11 or by a method approved by the court.

(2) Before a grant of administration may be issued to an applicant, all those who rank higher or equal to the applicant under section 13(1)(b) of the *Estate Administration Act* must renounce their rights to apply for a grant in Form GA11 or by a method approved by the court.

(3) The court, at any time, may dispense with a renunciation required by subrule (1) or (2).

(4) Renunciation under this rule does not by itself prevent a personal representative named in a will from applying for a grant.

AR 130/95 s32;44/2015;243/2021

Nominations

33(1) A person entitled to a grant and entitled under section 13(4) of the *Estate Administration Act* to nominate a person to administer an estate may nominate, in Form GA13, a person to be the personal representative for the purpose of applying for a grant.

(2) A person expressly authorized in a will to appoint a personal representative may nominate, in Form GA13, a person to be the personal representative for the purpose of applying for a grant of administration or probate.

AR 130/95 s33;132/2000;306/2009;44/2015;243/2021;139/2023

Grant of double probate

34(1) If all the personal representatives named in a will do not apply for a grant at the same time, the personal representatives who do not apply

(a) must reserve their right to apply later by filing Form GA12 at the time the initial grant is applied for, and

(b) may apply for a grant of double probate by filing Form GA1 at any time after filing Form GA12.

(2) A personal representative to whom subrule (1) applies who does not comply with subrule (1)(a) may not apply for a grant of double probate.

(3) An alternate personal representative named in a will may apply for a grant of double probate if it is necessary for the alternate personal representative to complete the administration of the estate.

(4) The original grant of probate must be surrendered with an application under this rule.

AR 130/95 s34;107/2004;243/2021

Grant of re-sealed probate or re-sealed administration

35(1) An applicant may apply in accordance with rule 13(1) and (3) for an order resealing a foreign grant, as defined in section 18(1)(a) of the *Estate Administration Act*.

(2) An application under subrule (1) must show only the property and debts of the deceased in Alberta.

(3) Repealed AR 44/2015 s15.

AR 130/95 s35;251/2001;44/2015;243/2021

Ancillary grant

36 An applicant may apply in accordance with rule 13(1) and (3) for an ancillary grant under section 19(1) of the *Estate Administration Act*.

AR 130/95 s36;251/2001;44/2015;243/2021

Unadministered property

37(1) If a deceased was the personal representative of an intestate person, another person may apply for a grant of administration of the unadministered property of the intestate person.

(2) If a deceased was the personal representative of a testate person and the deceased did not appoint a personal representative for the deceased's estate, another person may apply for a grant of administration with will annexed of the unadministered property of the testate person.

(3) If the personal representative of a testate person resigns and there is no alternate personal representative named in the will, another person may apply for a grant of administration with will annexed of the unadministered property of the testate person.

(4) An applicant under subrule (1), (2) or (3)

(a) subject to subrule (5), must file the same documents as those filed in the original application for a grant, and

(b) must file an affidavit attesting to the details of the original grant and to the death or resignation of the personal representative.

(5) An application under subrule (1), (2) or (3) must show only the description and value of the unadministered property on the date of the application.

(6) The original grant must be surrendered with an application under subrule (1), (2) or (3).

AR 130/95 s37;107/2004

Claimants

Notice to claimants

38(1) In this rule, "newspaper" means a newspaper published or circulated in printed or electronic form.

(1.1) If a personal representative publishes a notice to claimants, the personal representative

(a) must do so in accordance with this rule,

(b) may use Form GA15, and

(c) may file proof of publication in Form GA16.

(2) A notice to claimants must be published in a newspaper

(a) that is published or circulated in the area where the deceased usually lived, or

(b) if the deceased did not usually live in Alberta, that is published or circulated in the area where a significant amount of the deceased's property is situated.

(3) A notice to claimants must be published,

(a) in the case of an estate with a gross value of $100 000 or less, at least once, or

(b) in the case of an estate with a gross value of more than $100 000, at least twice with 5 days or more between the publications.

AR 130/95 s38;135/96;165/2010;44/2015;243/2021;139/2023

Notice by claimant

39(1) A claimant must notify a personal representative of the claim not more than 1 month after the date on which the last notice is published under rule 38.

(2) A claimant who does not comply with subrule (1) may make a claim against an estate only with the prior consent of the court.

AR 130/95 s39;165/2010;139/2023

Verification of claims

40 If a personal representative has notice of a claim against the estate, the personal representative may require the claimant to verify the claim using a statutory declaration in Form GA17.

AR 130/95 s40;251/2001;10/2012;44/2015;243/2021

Valuation of security

41(1) If security is held by a claimant wholly or partly to secure a claim against the estate and

(a) the claimant does not give a value to the security, or

(b) a dispute arises between the claimant and the personal representative regarding the value of the security,

the personal representative may, by filing an application in Form C1 and an affidavit in Form C2, apply to the court for an order under this rule.

(2) A personal representative must give at least 5 days' notice of an application under subrule (1) to the claimant.

(3) On an application by the personal representative, the court may

(a) require the claimant to file a statutory declaration specifying the value of the security with the personal representative within the time limited by the order, and

(b) declare that the rights of the claimant against the estate in respect of the claim or the part of it that is secured are barred if the claimant does not comply with the order under clause (a).

(4) If a claim is secured, the personal representative may

(a) consent to the claimant's ranking with other claimants for the amount of the claim after the value of the security specified in the declaration is deducted, or

(b) require an assignment of the security to the estate at the value specified in the declaration of the claimant.

(5) If an assignment is required under subrule (4), the difference between the value at which the security is assigned to the estate and the amount of the gross claim of the claimant is the amount for which the claimant ranks with other claimants.

(6) If the personal representative requires an assignment of a security under subrule (4), the claimant must assign the security to the estate after the claimant has received

(a) payment of the value of the security as specified in the declaration, and

(b) interest to the date of payment if the indebtedness bears interest.

(7) Nothing in this Part prejudices any of the rights or remedies of a secured claimant before the personal representative has given notice that an assignment of the security is required and payment is tendered in respect of that security.

(8) If the claim of a claimant is based on a negotiable instrument that is not mature or exigible and on which the deceased is indirectly or secondarily liable, the claim is secured for the purposes of this Part, and the claimant must give the value of the liability of the person primarily liable on the instrument as the claimant's security for repayment of the claim.

(9) If, after the instrument referred to in subrule (8) matures, the liability is not paid by the person primarily liable, the claimant may amend and revalue the claim.

AR 130/95 s41;165/2010;44/2015

Contested claims

42 Part 2, Division 5 applies if a personal representative does not agree to all or part of a claim by a claimant against an estate.

Claims not yet payable

43(1) Rules 40, 41 and 42 apply to a claim that is not payable at the time a grant is issued in respect of the estate and for which, for that reason, an action for the recovery of the claim cannot be brought.

(2) If a claim to which subrule (1) applies is established, the claimant may take proceedings to enforce payment of it only with the consent of the court.

Duties of the Clerk

Fees

44 The clerk may charge fees in accordance with Schedule 2 for the performance of duties and services by the clerk under these Rules.

Waiver of fees

44.1 The clerk may waive the fee payable by an individual under Schedule 2, in whole or in part, in accordance with guidelines, if any, established or adopted by the Minister of Justice for persons unable to pay fees.

AR 76/2015 s2;216/2022

Applications

45(1) The clerk must

(a) number and date every application for a grant when it is filed,

(b) record the information in the appropriate court records,

(c) present all applications to the court for its order and direction, and

(d) send any rejection notice in Form GA19 to the applicant.

(2) When application is made for a grant, the clerk shall promptly search the court records to determine whether

(a) any other application has been filed or a grant has issued in respect of the same estate or minor,

(b) a caveat has been filed in respect of the same estate or minor and has not expired or been withdrawn or discharged, or

(c) a will of the same deceased was, during the life of the deceased, deposited with a clerk of the surrogate court before June 19, 1995 or a clerk of the district court before July 12, 1967.

(3) Unless the court, on application, orders otherwise, no grant shall be issued until the clerk has completed a search under subrule (2) and confirmed that

(a) no other application referred to in subrule (2)(a) has been filed,

(b) no grant referred to in subrule (2)(a) has issued,

(c) no caveat referred to in subrule (2)(b) has been filed, and

(d) no will referred to in subrule (2)(c) has been deposited.

AR 130/95 s45;44/2015;243/2021

Grants

46 The clerk must

(a) repealed AR 139/2023 s11;

(b) issue all grants, using the court seal on request;

(c) record all grants and copies of wills in the appropriate court records.

AR 130/95 s46; 165/2010;139/2023

Retention of documents

47 The clerk must retain a sealed duplicate of all grants issued.

Copies of documents

48 Unless the court requires otherwise, the clerk, on payment of the required fee, must give copies of all documents filed in the court to any person who asks for them.

Clerk's certificate

49 The clerk may issue a certificate in Form GA21 that a grant or other document is in force.

AR 130/95 s49;243/2021

Division 2
Administration of Minors' Property

Definition of trusteeship order

49.1 In this Division, "trusteeship order" means an order under section 10 of the *Minors' Property Act* appointing one or more persons as trustee of a minor's property.

AR 37/2020 s6;243/2021

Application for trusteeship order

50 An application for an order under section 10 of the *Minors' Property Act* appointing one or more persons as trustee of a minor's property may be commenced by filing the following documents with the court:

(a) an application in Form MP1;

(b) an affidavit in Form MP2;

(c) if the minor is 14 years of age or older, the minor's consent in Form MP3, unless the court, under section 14(3) of the *Minors' Property Act*, allows the application to be made without the minor's consent;

(d) if the minor has a parent or guardian who is not an applicant, an affidavit of service in Form GA5 regarding service of the documents required to be served under rule 51(1) on the parent or guardian, unless the court, under

rule 51(2), dispenses with the requirement to serve the parent or guardian;

(e) an affidavit of service in Form GA5 regarding service of the documents required to be served under rule 51(3) on the Public Trustee.

AR 130/95 s50;37/2020;243/2021

Documents to be served

51(1) An applicant for a trusteeship order must serve each parent or guardian of the minor, other than an applicant, with the following documents:

(a) a notice to the parent or guardian in Form MP4;

(b) copies of the documents required to be filed under rule 50(a), (b) and (c);

(c) a draft order in Form MP7 that is clearly marked as a draft.

(2) The court may dispense with the requirement to serve a parent or guardian with any or all of the documents and notice referred to in subrule (1) where the court is of the opinion that it is in the minor's best interest to do so.

(3) An applicant for a trusteeship order must serve the following documents on the Public Trustee:

(a) a notice to the Public Trustee in Form MP5;

(b) copies of the documents required to be filed under rule 50(a), (b) and (c);

(c) a draft order in Form MP7 that is clearly marked as a draft.

(4) The court must not determine an application for a trusteeship order until after

(a) each parent and guardian required to be served under this rule has filed a response to the application or a period of

(i) 10 days, if the parent or guardian is a resident of Alberta, or

(ii) one month, if the parent or guardian is not a resident of Alberta,

has elapsed following service on the parent or guardian without the parent or guardian having filed a response to the application, and

(b) the Public Trustee has filed a response under subrule (6).

(5) A parent or guardian required to be served under this rule may respond by filing a notice in Form MP6 stating whether the parent or guardian

(a) does not object to the application and is not requesting a hearing, or

(b) objects to the application and is requesting a hearing.

(6) If a response filed by a parent or guardian or the Public Trustee requests a hearing, the applicant shall set the matter for a hearing and serve notice of the hearing on all persons required to be served under these rules.

(7) Where the court makes a trusteeship order, the applicant must serve a copy of the order on

(a) the minor, if the minor was 14 years of age or older on the day the trusteeship order was made, and

(b) each parent and guardian required to be served under this rule, and

(c) the Public Trustee.

(8) Where this rule requires service of a document on the Public Trustee, the document must be served by recorded mail addressed to the Public Trustee.

(9) Where this rule requires service of a document on any person other than the Public Trustee, the document may be served by

(a) leaving the document with the person,

(b) sending the document by recorded mail addressed to the person, or

(c) giving the document to a lawyer who is authorized to accept and who, in writing, accepts service on behalf of the person.

(10) Service under subrule (9)(a) is effected on the day the document is left with the person.

(11) Service under subrule (9)(b) is effected on the day an acknowledgment of receipt is signed by the person to whom the document is addressed.

(12) Service under this rule is valid despite a later amendment to the application that is made at the direction of the court.

AR 130/95 s51;37/2020;243/2021;139/2023

Security

52(1) An applicant under this Division must provide a bond or other security that is satisfactory to the court unless the trustee, or one of the trustees, is a trust corporation referred to in section 11(3) of the *Minors' Property Act* or the court dispenses with this requirement under subrule (4).

(2) The bond or other security must be in an amount equal to the estimated value of the property to which the order relates unless the court orders otherwise.

(3) Where the court requires a bond under subrule (1), the bond must be from an insurer licensed under the *Insurance Act* to undertake fidelity insurance as defined in section 1(1)(h) of the *Classes of Insurance Regulation* (AR 144/2011).

(4) The court may dispense with the requirement for a bond or other security where the court is of the opinion that it is in the minor's best interests to do so, having regard to other safeguards that are or will be in place.

AR 130/95 s52;7/2005;44/2015;37/2020

Dispensing with security

53 An applicant may apply to dispense with the requirement for a bond or other security by filing an affidavit respecting the matters referred to in rule 52(4).

AR 130/95 s53;7/2005;37/2020

Application of rules

54(1) Rules 55 to 74 and the forms referred to in those rules apply, with the necessary modifications, to an application for a trusteeship order and to the administration of the trust property.

(2) Part 3, except rule 97(2), applies to a trustee under a trusteeship order.

AR 130/95 s54;37/2020

Division 3
Making, Altering or Revoking of a Will by a Minor

Application under Wills and Succession Act

54.1(1) In this rule, "minor" means an individual referred to in section 36(1) of the *Wills and Succession Act*.

(2) An application for the purposes of section 36 of the *Wills and Succession Act* must be made by filing Form C 14, and an accompanying affidavit in Form C 2, with the court.

(3) The form and affidavit referred to in subrule (2) must be served at least 5 days before the hearing of the application, unless the court permits a shorter period for service, on the Public Trustee, the parents of the minor, the guardians of the minor and the trustee of the estate of the minor, if any, and anyone else as directed by the court.

(4) The court may dispense with service of the documents referred to in subrule (2) on any person.

AR 10/2012 s10;139/2023

Part 2
Contentious Matters

Division 1
General

Application

55(1) An application to the court may be made under this Part respecting any contentious matter.

(2) If applying a rule in this Division would lead to a conflict respecting the application of a rule in any other Division in this Part, the rule in the other Division applies and the rule in this Division does not.

Parties

56(1) If a personal representative is not joined as an applicant in an application under this Part, that personal representative must be shown as a respondent in documents filed with the court.

(2) The respondents in an application under this Part must be grouped in accordance with the classes set out in rule 57 in any documents filed with the court.

Persons interested in the estate

57 Subject to rule 78, the classes of persons who may be interested in a particular estate are the following:

(a) personal representatives;

(b) residuary beneficiaries;

(c) life tenants;

(d) specific beneficiaries who have not received their entitlement under the will;

(e) heirs on intestacy;

(f) trustees of represented adults under the *Adult Guardianship and Trusteeship Act*;

(g) attorneys appointed under the *Powers of Attorney Act*;

(h) minors;

(i) missing persons;

(j) repealed AR 110/2001 s2;

(k) unpaid claimants;

(l) bonding companies;

(m) a group of persons with identical interests ordered to be a class by the court;

(n) family members as defined in section 72(b) of the *Wills and Succession Act*;

(o) any person who has filed a Form C 1 for a matter relating to the estate.

AR 130/95 s57;110/2001;10/2010;10/2012

Commencement of action

58 A person may commence an application under this Part by filing

(a) an application in Form C1, and

(b) an affidavit in Form C2.

AR 130/95 s58;10/2012

Reply and demand for notice

58.1(1) For the purposes of Divisions 1.1 and 3, where an application has been filed under rule 58 or 70.1, any person required under rule 57 to be served with the application may file a reply in Form C 2.1, accompanied with an affidavit in Form C 2, if evidence is submitted, or a demand for notice in Form C 2.2.

(2) A demand for notice may be filed and served at any time before the resolution of the matter.

(3) A reply and accompanying affidavit, if any, must be filed and served 5 days or more before the returnable date stated in the application or as directed by the court.

AR 10/2012 s13

Documents to be served

59(1) An applicant must serve copies of the documents required to be filed under these Rules or the *Alberta Rules of Court* (AR 124/2010) on the persons listed in rule 57 who are interested in the estate, if any.

(2) If a missing person as defined in the *Public Trustee Act* is a person interested in an estate, the applicant must serve the Public Trustee with notice of the application.

AR 130/95 s59;110/2001;165/2010;10/2012

Service

60(1) Service may be made on a person

(a) personally or by recorded mail in the case of a commencement document,

(b) by ordinary mail delivery or electronic transmission in the case of documents other than commencement documents,

(c) if documents filed in the matter give an address for service, at that address, or

(d) by serving a lawyer who is authorized to accept service on behalf of a person.

(2) Proof in Form GA5 that a person has been served must be filed with the court.

AR 130/95 s60;110/2001;165/2010;243/2021

Notice

61 Notice of an application must be given

(a) to the personal representative, one month or more before the hearing;

(b) to the Public Trustee, 10 days or more before the hearing;

(c) to other persons interested in the estate, if they are residents of Alberta, 10 days or more before the hearing;

(d) to other persons interested in the estate, if they are not residents of Alberta, one month or more before the hearing.

AR 130/95 s61;165/2010

Representation

62(1) At any time during the proceedings, the court may

(a) decide that certain parties form a class with identical interests whether or not they are also in a class referred to in rule 57,

(b) require that all the parties in a class be represented by the same lawyer,

(c) determine which parties may cross-examine witnesses and make representations to the court,

(d) require 2 or more persons to be represented by different lawyers if they are represented by the same lawyer, or

(e) appoint a lawyer to represent an unrepresented person.

(2) One or more of the persons in a class may appoint a particular lawyer to represent them if they do not accept the lawyer appointed by the others in the class to represent the class.

(3) The costs of a lawyer appointed under subrule (2) may be paid from the estate only if the court specifically orders that the costs are to be paid from the estate.

Proceedings in chambers

63 All proceedings to which this Part applies must be before a justice in chambers unless the court or these Rules require otherwise.

AR 130/95 s63;53/2001

Procedure at hearing

64(1) The court, on hearing an application, may

(a) receive evidence by affidavit or orally;

(b) dispose of the issues arising out of the application as it considers appropriate;

(b.1) direct a person to file a reply, accompanied with an affidavit, if evidence is to be submitted, or a demand for notice;

(c) direct a trial of issues arising out of the application;

(d) grant any relief to which the applicant is entitled because of a breach of trust, wilful default or other misconduct of a respondent;

(e) direct that notice of the court's judgment or order be given to a particular person;

(f) dispense with service of notice on any person if, in the opinion of the court, service is impractical;

(g) subject to subrule (2), dispense with service of an order and order that a person is bound by the court's order as if the person had received notice of it;

(h) order costs to be paid from the estate or by any person who is a party to the application;

(i) make any order that the court considers necessary in the circumstances.

(2) If service on a person is dispensed with under subrule (1) and an order is obtained by fraud or non-disclosure of material facts, that person is not bound by the order.

AR 130/95 s64;165/2010;10/2012

Standing

65 A person served with notice of an order may

(a) apply to vary, discharge or add to the order within 20 days after being served, and

(b) attend any proceedings in respect of the order.

AR 130/95 s65;165/2010

Trial of an issue

66 If the court orders the trial of an issue, the court must order the procedure to be followed and the terms and conditions under which the trial is to take place.

Time limit

67(1) An applicant must not apply for an order requiring a personal representative to accept or refuse probate until at least 2 months after the date of the death of the testator.

(2) Despite subrule (1), an applicant may apply for an order requiring a personal representative to accept or refuse probate during the period referred to in subrule (1) if, in the opinion of the court, the circumstances warrant the granting of the order.

AR 130/95 s67;165/2010

Production of testamentary documents

68 If an applicant applies for an order requiring the production of a testamentary document or a document that is alleged to be a testamentary document, the court may require a person by affidavit or by an appearance before the court,

(a) to explain why the document should not be produced and deposited with the clerk,

(b) to explain why the document cannot be produced,

(c) to give a statement that no testamentary document is or has been in the person's possession or control, or

(d) to give any information the person has that is relevant to discovering the document's present location.

AR 130/95 s68;10/2012

Security for costs

69 The court may order security for costs to be posted by any party at any stage of the proceedings under this Division.

Time for completion

70 The court may set a time or times within which matters or proceedings respecting an estate under this Part must be completed.

Division 1.1
Applications under Various Acts

Applications under various Acts

70.1(1) An application for the purposes of section 37, 38, 39(1), 40(1), any provision of Part 5 or section 109 of the *Wills and Succession Act* must be commenced by filing Form C 1 accompanied with an affidavit in Form C 2.

(2) An application for the purposes of section 80.1 of the *Family Law Act* may be commenced by filing Form C 1 accompanied with an affidavit in Form C 2.

(3) Rule 75(3) and (4) apply to applications referred to in subrule (1).

(4) For the purpose of establishing whether an application referred to in subrule (1) was made within 6 months after the grant, the relevant date is the date of filing of the Form C 1 under that subrule.

AR 10/2012 s17

Powers of the court

70.2 For greater certainty, on an application under this Division the powers of the court include those set out in rules 62, 64, 66, 68, 69, 70, 77(4) and 90.

AR 10/2012 s17

Parties, etc.

70.3 Rules 56, 83, 85, 88 and 91 apply to applications under this Division.

AR 10/2012 s17

Service

70.4 Subject to section 91 of the *Wills and Succession Act*, service of an application under this Division must be made on the persons listed in rule 57 who are interested in the estate and the application, if any, or as otherwise directed by the court.

AR 10/2012 s17

Notice

70.5 Notice of an application under this Division must be given to the persons required to be served under rule 70.4 in accordance with rule 61.

AR 10/2012 s17

Rules that apply to service of documents

70.6 Rules 59 and 60 apply to the service of documents under this Division.

AR 10/2012 s17

Proceedings in chambers

70.7 Rule 63 applies to an application under this Division.

AR 10/2012 s17

Witness fees

70.8 Any person who appears as a witness at a hearing under this Division

(a) is entitled to an allowance in accordance with Schedule B, Division 3 of the *Alberta Rules of Court* (AR 124/2010), and

(b) may be given a preparation allowance and any additional allowances in amounts specified by the court.

AR 10/2012 s17

Disclosure of financial information in family maintenance and support applications

70.9(1) Subject to subrule (3), a family member who receives a request under section 95(2)(a) of the *Wills and Succession Act* must provide the family member, personal representative or other person making the request with the following financial information:

(a) an affidavit respecting the family member's income, assets and liabilities, including

(i) assets held jointly,

(ii) any property or benefit that the family member expects or claims by reason of the deceased's death to receive under the *Family Property Act*, the *Dower Act*, Part 5, Division 2 of the *Wills and Succession Act* or otherwise, and

(iii) any interest in an estate, whether vested or contingent;

(b) a copy of every personal income tax return filed by the family member for each of the 3 most recent taxation years or, if a tax return has not been filed for the previous year, a copy of the family member's T4, T4A and all other relevant tax slips and statements disclosing any and all sources of income for the previous year;

(c) a copy of every notice of assessment or reassessment issued to the family member for each of the 3 most recent taxation years, or a copy of the Canada Revenue Agency printout of the last 3 years' income tax returns;

(d) if the family member is an employee, a copy of each of the family member's 3 most recent statements of earnings indicating total earnings paid in the year to date, including overtime or, where such a statement is not provided by the

employer, a letter from the employer setting out that information and the rate of annual salary or remuneration;

(e) if the family member receives income from employment insurance, social assistance, a pension, workers' compensation, disability payments, dividends or any other source, the most recent statement of income indicating the total amount of income from the applicable source during the current year or, if such a statement is not provided, a letter from the appropriate authority stating the required information;

(f) if the family member is a student, a statement indicating the total amount of student funding received during the current academic year, including loans, grants, bursaries, scholarships and living allowances;

(g) if the family member is self-employed in an unincorporated business,

(i) particulars of every payment issued to the family member during the 6 most recent weeks from any business or corporation in which the family member has an interest or to which the family member has rendered a service,

(ii) the financial statements of the family member's businesses or professional practices for the 3 most recent taxation years, and

(iii) a statement showing a breakdown of all salaries, wages, management fees or other payments or benefits paid to the family member or to individuals or corporations with whom the family member does not deal at arm's length for the 3 most recent taxation years;

(h) if the family member is a partner in a partnership, confirmation of the family member's income and draw from, and capital in, the partnership for its 3 most recent taxation years;

(i) if the family member has an interest of 1% or more in a privately held corporation,

(i) the financial statements of the corporation and any subsidiaries of it for its 3 most recent taxation years,

(ii) a statement showing a breakdown of all salaries, wages, management fees and other payments or benefits paid to the family member, or to individuals

or corporations with whom the corporation, and every related corporation, does not deal at arm's length for the 3 most recent taxation years, and

(iii) a record showing the family member's shareholder's loan transactions for the past 12 months;

(j) if the family member is a beneficiary under a trust, a copy of the trust settlement agreement and copies of the trust's 3 most recent financial statements;

(k) copies of all bank account statements solely or jointly in the family member's name for the past 6 months;

(l) copies of credit card statements for all credit cards solely or jointly in the family member's name for the past 3 months;

(m) copies of the most recent statements for all RRSPs, TFSAs, RRIFs, insurance policies, pensions, term deposit certificates, guaranteed investment certificates, stock accounts, stock options, including deferred compensation units, and other investments or holdings in the family member's name or in which the family member has an interest;

(n) copies of any family property agreement, minutes of settlement, judgments or orders the family member had with the deceased relating to the division of property, spousal support or child support obligations;

(o) the family member's monthly budget of expenses.

(2) Subject to subrule (3), a personal representative of a deceased's estate who receives a request under section 95(2)(b) of the *Wills and Succession Act* must provide the family member or other person making the request with the following financial information if it is or may reasonably be expected to be in the possession of the personal representative:

(a) an inventory of property and debts in Form GA2;

(b) a description and appraisal or valuation of any property owned by the deceased or in which the deceased had an interest at the time of death;

(c) a list of all bank accounts or other property held jointly by the deceased at the time of death;

(d) a list, including a statement of value, of all RRSPs, TFSAs, RRIFs, insurance policies, pensions, term deposit

certificates, guaranteed investment certificates, stock accounts, stock options, including deferred compensation units, and other investments or holdings in the deceased's name at the time of death, and the names of any designated beneficiaries in relation to them;

(e) if the deceased at the time of death was the beneficiary of a trust or held a power of appointment over property, a description of the property, its value and the disposition of the property;

(f) copies of any family property agreement and any minutes of settlement, judgments or orders the deceased had relating to the division of property or spousal support or child support obligations;

(g) a copy of all terminal tax returns for the deceased's estate;

(h) a description of any other property in which the deceased had an interest at the time of death.

(3) No document is required to be disclosed under subrule (1) or (2) unless the document is relevant and material to the determination of maintenance and support in the application.

(4) A person who has been requested to provide financial information under section 95 of the *Wills and Succession Act* must do so within

(a) one month if the person resides in Canada, or

(b) 2 months if the person resides in a country other than Canada.

(5) An application under section 95(4) or (5) of the *Wills and Succession Act* may be made by filing and serving Forms C 1 and C 2 in accordance with rules 60 and 61 on the person who was requested to provide the financial information.

AR 10/2012 s17;156/2019;37/2020;243/2021

Division 2
Proceedings on Caveats

Caveat against issue of grant

71(1) A person may file a caveat under section 46 of the *Estate Administration Act* in Form C3 against the issue or resealing of a grant.

(2) The clerk must send a copy of any caveat filed with respect to an estate to the applicant for a grant in respect of that estate.

(3) If a caveat expires or is withdrawn or discharged, an application for a grant becomes a non-contentious matter and must be continued under Part 1.

AR 130/95 s71;44/2015

Warning to caveator

72 An applicant for a grant may file and serve on a caveator a warning in Form C4.

Objection to grant

73(1) A caveator may file a notice of objection in Form C9 to a grant being issued under Part 1 and serve it on the applicant within 10 days after the caveator is served with the warning.

(2) Despite subrule (1), a caveator may apply to the court for an order extending the time within which the caveator must file and serve a notice of objection.

(3) If a caveator files and serves a notice of objection within the time allowed, the application must be continued under Division 3.

(4) If a caveator does not file and serve a notice of objection within the time allowed, the clerk must discharge the caveat and the application for a grant must be continued under Part 1.

AR 130/95 s73;165/2010;44/2015;139/2023

Frivolous or vexatious caveat

74(1) Despite rule 73, if a caveator files and serves a notice of objection to an informal grant, the applicant may apply for an order that the caveat is frivolous or vexatious and that the caveat be discharged.

(2) If the court determines that a caveat is frivolous or vexatious, the court may order that the caveat be discharged and award costs against the caveator.

(3) If the court determines that a caveat is not frivolous or vexatious, the application for a grant must be continued under Division 3.

(4) If the court determines that a caveat is not frivolous or vexatious but that it should be discharged in the circumstances of the estate, the court may order that the caveat be discharged.

AR 130/95 s74;44/2015

Division 3
Formal Proof of a Will

Applications

75(1) A personal representative or a person interested in the estate may apply to the court

(a) to obtain formal proof of a will, whether or not an application for a grant has been made under Part 1;

(b) to set aside a grant issued under Part 1 and require formal proof of the will;

(c) to prevent the issue of a grant under Part 1 and require formal proof of a will;

(d) to obtain an order that the deceased died intestate;

(e) to request the appointment of a personal representative;

(f) to request the appointment of a personal representative other than the one appointed by a grant issued under Part 1;

(g) to restrain a personal representative from exercising any powers during an application under this subrule;

(h) to appoint a special personal representative to conduct an application under this subrule.

(2) The court may order a person to apply for an order under subrule (1).

(3) An application under subrule (1) operates to stay proceedings under an application under Part 1.

(4) If an application under subrule (1) is filed, a personal representative appointed by a grant issued under Part 1 must not distribute any of the property of the estate unless

(a) the court approves the distribution, or

(b) all persons interested in the estate consent to the distribution.

(5) Subject to subrule (4), if an application is filed to appoint a personal representative under this Part and to restrain a personal representative appointed by a grant issued under Part 1 from acting, the personal representative appointed by the grant issued under Part 1 must not exercise any of the powers of a personal

representative during the application for formal proof of the will without the consent of the court.

Original will lost or destroyed

76 If an original will is lost or destroyed, a person interested in the estate must apply for an order under rule 75 unless

(a) the applicant shows to the satisfaction of the court that section 40 of the *Alberta Evidence Act* applies, or

(b) the court orders otherwise.

AR 130/95 s76;251/2001

Required documents

77(1) A person may commence an application under this Division by filing the following and serving them on the persons interested in the estate:

(a) if the application is made by a personal representative,

(i) Form C5;

(ii) Form C6;

(iii) Form C8;

(b) if the application is made by a person interested in the estate, a notice of objection in Form C9;

(c) if the application is ordered by the court, direction by the court that the will be formally proved.

(2) If a court file has already been opened for the estate, the clerk must record all of the documents under subrule (1) in the existing file.

(3) If there is no court file, the documents under subrule (1)(a) and (b) are commencement documents and the clerk must open a court file.

(4) If an application under this Division is not contested or opposed, the court may make an order under this Division based on the documents filed without requiring more.

AR 130/95 s77;165/2010

Persons interested in the estate

78 Despite rule 57, the classes of persons interested in an estate who may apply for an order under rule 75 are the following:

(a) surviving spouse or surviving adult interdependent partner;

(b) adult children;

(c) Public Trustee or any other person representing minors;

(d) trustees of represented adults under the *Adult Guardianship and Trusteeship Act*;

(e) attorneys appointed under the *Powers of Attorney Act*;

(f) Public Trustee when representing missing persons;

(g) heirs on intestacy;

(h) personal representatives and beneficiaries in any will in respect of which an application is made under these Rules;

(i) personal representatives appointed under a prior grant issued in respect of the will;

(j) the alleged deceased if the fact of death is an issue.

AR 130/95 s78;110/2001;201/2003;10/2010

Action commenced by a person interested in the estate

79(1) If a person interested in an estate files an application under this Division, a personal representative named in the will may

(a) file the documents referred to in rule 77(1)(a);

(b) renounce all right to be the personal representative of the estate if the personal representative has not intermeddled in the estate;

(c) apply to be discharged;

(d) apply for an order that the application is frivolous or vexatious.

(2) An application under this Division or under Part 1 is not by itself intermeddling in the estate.

Special applications

80(1) If a personal representative renounces all rights or does not respond to a notice of objection in Form C9, a person interested in the estate may apply to the court for directions on how to proceed.

(2) The court may appoint a personal representative to administer the estate and conduct proceedings under this Division until a grant is issued.

Order requiring formal probate

81(1) The court may require formal proof of a will with respect to which an application is made under Part 1 whether before or after a grant is issued.

(2) An order referred to in subrule (1) must give the reasons for requiring formal proof of the will.

(3) If an order is made under subrule (1), the personal representative or applicant, as the case may be, must file the documents required under rule 77(1)(a).

Parties

82 If a personal representative renounces or fails to respond to a notice of objection in Form C9, the person filing the notice of objection is the applicant in any application to the court for further directions.

Trial

83(1) The hearing in an application for formal proof of a will under this Division must be in the form of a trial before the court and must not be held in chambers,

(a) if several witnesses are necessary in the opinion of the court, or

(b) if the court orders a trial.

(2) If the hearing is a trial, the applicant must apply to the court in chambers for directions on the procedure to be followed at the trial.

(3) The court on application under subrule (2) may

(a) set the procedure to be followed at the trial, including

(i) giving directions on pre-trial disclosure of documents and questioning,

(ii) ordering the production of documents,

(iii) stating the parties and their roles,

(iv) ordering the representation of parties, or

(v) dispensing with pre-trial procedures and sending the matter straight to trial,

or

(b) despite subrule (1), order a hearing in chambers on affidavit or oral evidence or both respecting certain issues.

AR 130/95 s85;107/2004;165/2010

Hearing in chambers

84(1) Despite rule 83, the hearing of an application for formal proof of a will under this Division must be in chambers if the only issue is proof of the death of the testator or proving the signing of the will or both.

(2) In subrule (1), "proving the signing of the will" means

(a) proving the fact of the testator's signature and handwriting,

(b) proving the fact of the witnesses' signatures, presence and qualifications, or

(c) proving that the signing of the will complied with the *Wills and Succession Act*.

AR 130/95 s83;107/2004;10/2012

Evidence

85(1) Evidence at a hearing in chambers referred to in rule 84 may be given by affidavit or orally or both.

(2) Any person who took instructions for the preparation of the will is compellable as a witness and subject to pre-trial disclosure and production of documents and oral questioning respecting

(a) the circumstances of that person's involvement in the preparation of the will and of any lawyer's retainer,

(b) the instructions given by the testator,

(c) the preparation of the will or the circumstances of its signing, or

(d) any steps taken to ascertain or record by any means the testator's capacity or the witness's or lawyer's opinion concerning that capacity.

AR 130/95 s84;132/2000;107/2004;165/2010

Order of decisions

86 The court must do the following on an application for formal proof of a will:

(a) if several wills of the deceased are in issue, consider each will in turn in the order in which they were made, beginning with the most recent;

(b) as soon as the court admits to probate one or more wills that dispose of all of the property of the deceased, consider no further wills;

(c) if the wills admitted to probate do not dispose of all of the property of the deceased, consider whether an intestacy exists;

(d) if a will is opposed and an application for a declaration of intestacy is made, decide whether the will should be admitted to probate.

Order of proceedings

87 In an application for formal proof of a will under this Division,

(a) the proponent of the will must be heard first and must present evidence concerning the proof of death, proof of the signing of the will and the capacity of the deceased, and

(b) the contestant must be heard next.

Other proceedings

88 An application for formal proof of a will may be combined with another application to the court concerning the same estate.

Witness fees

89 Any person who appears as a witness at a hearing under this Division

(a) is entitled to an allowance in accordance with Schedule B, Division 3 of the *Alberta Rules of Court* (AR 124/2010), and

(b) may be given a preparation allowance and any additional allowances in amounts specified by the court.

AR 130/95 s89;165/2010

Powers of the court

90 On an application under this Division the court may

(a) determine the fact of death;

(b) determine whether the deceased died testate or intestate;

(c) determine which will of the deceased, if any, to admit to probate;

(d) determine the heirs of a deceased on intestacy;

(e) terminate any grant issued under Part 1 appointing a personal representative;

(f) terminate the appointment of a personal representative who was appointed to make an application for formal proof of a will;

(g) issue any grant referred to in rule 10;

(h) direct the payment of costs, including penalizing any person who required formal proof of the will if it became clear during the proceedings that

(i) the application was frivolous or vexatious,

(ii) the person caused undue delay, or

(iii) the person had no substantial basis for requiring the scrutiny of the court;

(i) determine any other matter that the court considers relevant or that is incidental to the application.

Order final

91(1) Subject to subrule (2), in the absence of fraud and even if a will is discovered after the court makes a decision under rule 86, a grant issued under rule 90 based on that decision is binding on all persons.

(2) A person referred to in rule 78 who was not served with notice of proceedings under this Division may apply for an order under this Division in respect of a testamentary instrument that has not been considered by the court in a prior application under this Division.

Appeal

92 Despite rule 91, an appeal lies to the Court of Appeal from the whole or any part of an order under this Division.

Return and revocation of informal grant

93(1) If an application is made under rule 75 for formal proof of a will, a personal representative who has been appointed by a grant issued under Part 1 must return the grant to the court unless the court orders otherwise.

(2) If a personal representative does not return a grant, the court may issue an order requiring delivery of the grant to the clerk.

(3) If the court revokes a grant after proceedings for formal proof of a will are concluded, the clerk must endorse the following on the grant:

Revoked by Order of M _____ Justice _____
on _____

_____
(Clerk of the Court) (seal)

AR 130/95 s93;53/2001

Division 4
Proof of Death

Proof of death

94(1) The court may permit a person to swear to the death of another person if there is no direct evidence of the death but there is evidence from which the death can be presumed.

(2) An application for permission to swear to the death of a person may be made

(a) in Forms C1 and C2, and

(b) without notice or on the notice the court orders.

(3) The court may declare that the death of a person is proven or presumed if the court is satisfied with the evidence and the form of the evidence presented to the court.

(4) A declaration of presumption of death made by the court must contain particulars of the following information to the extent that those particulars have been established to the satisfaction of the court:

(a) the full name of the person presumed dead, including the person's maiden or married name, where applicable;

(b) the sex of the person presumed dead;

(c) the place where the death is presumed to have occurred;

(d) the date on which the death is presumed to have occurred.

AR 130/95 s94;209/2007

Division 5
Claims on an Estate

Contested claim

95 If a personal representative does not agree with all or part of the claim of a claimant against the estate, the personal representative must serve the claimant with a notice of contestation in Form C11.

Application to court

96(1) A claimant whose claim is contested may apply to the court for an order allowing the claim and setting the amount by filing a notice of claim with affidavit in Form C12 and serving it on the personal representative.

(2) A claimant must make an application under subrule (1) within 2 months of receiving the notice of contestation under rule 95.

(3) The court may waive the time limit in subrule (2) if

(a) the claimant applies to the court for an extension of time within the 2 months, and

(b) the application is heard within 5 months after receiving the notice of contestation under rule 95.

AR 130/95 s96;165/2010

Part 3
Accounting

Division 1
General

Requirement for an accounting

97(1) A personal representative must give an accounting of the administration of the estate at regular intervals

(a) by preparing financial statements showing the property and money received and the property distributed and the

money paid out respecting the administration of the estate, and

(b) by giving the financial statements to the beneficiaries.

(2) Unless the court orders a longer or shorter period, a personal representative must give an accounting of the administration of the estate every 2 years after the date of death or the date of the end of the latest period for which an accounting is given.

(3) The court may require, or a person interested in the estate may apply to the court for an order requiring, the personal representative to give an accounting of the administration of the estate at any time.

(4) A beneficiary of only a specific gift under a will

(a) is entitled to an accounting that is in respect of only that gift, and

(b) who has received that gift may not apply for an order under subrule (3).

Contents of financial statements

98(1) The financial statements respecting an estate must include the following:

(a) an inventory of property and debts at the beginning and end of the accounting period;

(b) a statement of all property and money received during the accounting period showing whether it is capital or income;

(c) a statement of all property distributed and money paid out during the accounting period showing whether it is capital or income;

(d) a statement of all changes to property made and all debts of the estate paid or incurred by the personal representative during the accounting period;

(e) a statement of all expenses incurred or paid during the accounting period;

(f) in the case of a final passing of accounts, a statement of anticipated receipts and disbursements;

(g) a reconciliation, where necessary, showing the items required to balance the opening net value of the estate with the closing net value of the estate;

(h) a distribution schedule, including interim distributions and the proposed final distribution, if appropriate;

(i) a proposed compensation schedule for the personal representative showing the basis on which it is calculated and its allocation to income or capital.

(2) The financial statements may be separate or combined as long as they can be followed clearly.

(3) The financial statements may be in any format, and each entry may be numbered consecutively.

(4) If the will or other trust instrument specifies separate capital and income interests, the financial statements must distinguish entries respecting capital from entries respecting income.

(5) The court, at any time, may require further financial statements or more particulars with respect to the financial statements presented.

AR 130/95 s98;132/2000

Acceptable documentation

99 The following documentation is sufficient to confirm ownership by the estate of the property referred to:

(a) in the case of publicly traded securities and commercial paper,

(i) a certificate, or

(ii) a letter from a dealer registered under the *Securities Act*, a bank or a trust corporation, whether registered under the *Loan and Trust Corporations Act* or not, carrying on business in any jurisdiction in Canada stating that the dealer, bank or trust corporation is holding securities for the estate, either by having them in its possession, through a securities depository or by some other means that is in accordance with current practice in the industry;

(b) in the case of private company shares,

(i) a certificate, or

(ii) a letter from a duly authorized officer of the company or from the company's lawyer confirming the holding;

(c) in the case of bank balances, cash, term deposits, treasury bills, annuities, pensions, retirement plans, royalty trusts, and similar property,

(i) a certificate or statement of account, or

(ii) a letter from a financial institution stating that the financial institution is holding property for the estate, either by having it in its possession, through a securities depository, or by some other means that is in accordance with current practice in the industry;

(d) in the case of household goods and personal effects,

(i) a letter or bill of lading from any depository where the goods or effects are stored, or

(ii) an inventory, the accuracy of which is attested to by the personal representative, indicating possession of the goods or effects on behalf of the estate;

(e) in the case of real property, a current certified copy of the certificate of title.

Division 2
Releases

Releases

100(1) A personal representative may, on the presentation of accounts to the residuary beneficiaries, obtain releases in Form ACC 12 from the residuary beneficiaries.

(2) The releases obtained under subrule (1) need not be filed.

Effect of release

101 A personal representative may rely on a release for confirmation that, in the opinion of the residuary beneficiary giving the release,

(a) the accounting in respect of the estate presented to the beneficiary is satisfactory;

(b) the personal representative may be compensated as set out in the statement of compensation included in the financial statements;

(c) the personal representative may distribute the estate in accordance with the statement of distribution included in the financial statements.

Bond

102 Releases obtained under rule 100 do not constitute the cancellation of a bond.

Division 3
Dispensing with Formal Passing of Accounts

Dispensing with passing accounts

103(1) A personal representative may apply for an order dispensing with the formal passing of the accounts and passing the accounts informally by filing the following and serving copies on the persons interested in the estate who have not given releases:

(a) Form ACC 10;

(b) Form ACC 11;

(c) the financial statements;

(d) repealed AR 306/2009 s4.

(2) A personal representative need not serve a beneficiary from whom the personal representative has received a signed release under rule 100.

AR 130/95 s103;306/2009

Proceeding without notice

104 If no notice of objection is filed by a person interested in the estate or if all residuary beneficiaries have signed releases, an application under rule 103 may proceed without notice to any other person.

Court order

105 Even if all the residuary beneficiaries have signed releases, the court

(a) must be satisfied with all the required documentation respecting the estate whether or not all the residuary beneficiaries have signed releases;

(b) may make the order applied for;

(c) may do anything it may do under rule 113.

Objection

106(1) If any person interested in the estate objects to an application under this Division, that person must file and serve a notice of objection in Form ACC 3 in accordance with rule 114.

(2) If a notice of objection is filed, the court must hold a hearing under Division 4 on the matter.

Division 4
Passing Accounts

Required forms

107(1) A personal representative may apply for an order formally passing accounts by filing the following and serving copies on the persons interested in the estate who have not given releases

(a) Form ACC 1;

(b) Form ACC 2;

(c) the financial statements;

(d) repealed AR 306/2009 s5;

(e) any notice of objection in Form ACC 3.

(2) The personal representative must serve the notice of hearing attached to Form ACC 1 one month or more before the hearing.

AR 130/95 s107;306/2009;165/2010

Application by person interested in estate

108(1) A person interested in an estate may apply for an order requiring the formal passing of accounts by filing the following and serving copies on the personal representative:

(a) Form ACC 6;

(b) Form ACC 7.

(2) An applicant must serve the notice of hearing attached to Form ACC 6 one month or more before the hearing.

(3) In an application by a person interested in an estate that accounts be formally passed, the person interested in the estate is the applicant and the personal representative is one class of respondent.

AR 130/95 s108;165/2010

Reply

109(1) A personal representative who is served with notice under rule 108 must file and serve a reply in Form ACC 8 10 days or more before any scheduled hearing on the applicant and all persons interested in the estate who have not given releases.

(2) In a reply, the personal representative may

(a) give an accounting to the applicant and other parties if one has not been given before that time,

(b) object to the application that accounts be formally passed, or

(c) consent to the application that accounts be formally passed.

AR 130/95 s109;165/2010

Withdrawal

110 If a personal representative gives an accounting pursuant to rule 109(2)(a) that satisfies the applicant, the applicant must withdraw the application by giving a letter to that effect to the clerk and serving a copy of the letter on any of those who were served with notice of the application.

Objection

111 If the personal representative objects pursuant to rule 109(2)(b) to an application for an order requiring the formal passing of accounts, the personal representative must file an affidavit in Form ACC 9 and serve it 10 days or more before the scheduled hearing on the applicant and the persons interested in the estate who have not given releases.

AR 130/95 s111;165/2010

Consent to an accounting

112(1) If a personal representative consents under rule 109(2)(c) to an application, the personal representative

(a) must adjourn any scheduled hearing and set a new date for a hearing in accordance with subrule (2), and

(b) must serve the documents in rule 107(1) and the notice of hearing within 2 months after serving a reply under rule 109 on the persons interested in the estate who have not given releases.

(2) The new date set under subrule (1) must occur on the earlier of

(a) a day that is within one month after the day on which the documents are served under subrule (1), and

(b) a day that is within 4 months after the personal representative is served under rule 108(1).

AR 130/95 s112;165/2010

Powers of court

113(1) The court may

(a) set a date for a hearing and direct that notice of the hearing be served on the persons specified by the court within the periods specified despite the time limits for service in rules 107, 108 and 112;

(b) direct a formal passing of one or more or all entries;

(c) reject the application;

(d) dispense with a formal passing and pass the accounts on an informal basis;

(e) make any other determination that the court considers appropriate.

(2) At a hearing to pass interim or final accounts, the court may

(a) pass the accounts;

(b) vary or amend the financial statements;

(c) set the compensation for the personal representative and give any directions in that respect;

(d) decide any matters in dispute summarily;

(e) order the trial of any matter in dispute, set the procedure the parties must follow and set time limits if it is appropriate;

(f) appoint a person to assist the court in determining any matters on which the court requires further clarification or explanation;

(g) direct the payment of debts or charges;

(h) confirm the beneficiaries and their several interests and direct distribution of the estate to them;

(i) direct the substitution for or the reduction or cancellation of any bond;

(j) direct payment to the Public Trustee or any other trustee of any money to which a minor or missing person is entitled;

(k) allow and direct payment of costs;

(l) generally dispose of all matters incidental to the administration of the estate to a date to be stated in the order.

(3) If the court makes an order referred to in subrule (2)(f), the order must not include an examination of maintenance payments ordered by the Court of Justice or the Court of King's Bench other than to determine whether or not the payments have been made.

(4) On a final passing of accounts, the court, in addition to the powers referred to in subrule (2), may

(a) discharge a personal representative who is an administrator;

(b) determine whether a personal representative who is an executor has fully and satisfactorily accounted to a date to be stated in the order;

(c) make any other order that the court considers appropriate.

AR 130/95 s113;110/2001;218/2022;76/2023

Notice of objection

114(1) In any proceedings under Division 3 or this Division, if a person interested in the estate objects to financial statements or part of them, the person must file a notice of objection in Form ACC 3 with the court and serve a copy of it on the personal representative and all persons interested in the estate 10 days or more before the scheduled hearing.

(2) In a notice of objection, the objecting person

(a) must give particulars of the objection in Form ACC 3,

(b) if there is an objection to an entry in the financial statements, must indicate the entry objected to by its number, and

(c) if there is an objection to the manner in which the personal representative has administered the estate, must state the objection.

(3) A person who does not file and serve a notice of objection may only make representations at the scheduled hearing with the permission of the court.

(4) If a person does not appear at the scheduled hearing and has not filed and served a notice of objection as required, that person is deemed to have consented to the administration of the estate as recorded in the financial statements.

AR 130/95 s114;165/2010;37/2020

Examination of accounts by professional accounting firm

115(1) The court, at any time and whether at a hearing or not, may order one or more entries in the financial statements of a personal representative to be examined by a professional accounting firm as defined in the *Chartered Professional Accountants Act*.

(2) The court must determine the nature, scope and extent of the professional accounting firm's examination.

(3) The terms of the professional accounting firm's engagement may be in Form ACC 4.

(4) The professional accounting firm's fees, disbursements and other charges are payable out of the residue of the estate unless otherwise ordered by the court.

AR 130/95 s115;37/2020

Access to records

116 A personal representative and any other person having knowledge or possession of documents relating to the administration of an estate must make all records and other pertinent documents available to a professional accounting firm engaged under rule 115 and must co-operate fully with the professional accounting firm.

AR 130/95 s116;37/2020

Report

117(1) At the end of the examination, a professional accounting firm engaged under rule 115 must file a report in Form ACC 5.1 or Form ACC 5.2 and serve a copy of the report by ordinary mail on the personal representative and on the persons interested in the estate.

(2) The court may require the professional accounting firm to appear at any hearing and give any further explanations the court needs in order to pass the accounts.

AR 130/95 s117;44/2015;37/2020

Part 3.1
Electronic System

Definitions

117.1 In this Part,

(a) "electronic" means electronic as defined in the *Electronic Transactions Act*;

(b) "electronic system" means the system established by the Minister of Justice for the purposes of creating, issuing, filing, accessing, transmitting, storing, recording, providing, serving or submitting documents or information by electronic means in respect of matters under these Rules.

AR 243/2021 s28;216/2022

Application

117.2(1) This Part applies where the electronic system is used for the creation, issuance, filing, access, transmittal, storage, recording, provision, service or submission of a document or information under these Rules.

(2) Subject to subrule (3), these Rules apply in respect of the electronic system and any matter under these Rules in respect of which the electronic system is used.

(3) Where there is a conflict or inconsistency between

(a) these Rules, other than this Part, and

(b) this Part or the policies, procedures, standards and guidelines established under rule 117.4,

this Part or the policies, procedures, standards and guidelines established under rule 117.4 prevail to the extent of the conflict or inconsistency.

AR 243/2021 s28

Use of electronic system

117.3(1) The court may use the electronic system in respect of matters under these Rules.

(2) The court may determine the matters under these Rules in respect of which the electronic system may be used.

(3) Where these Rules require or provide for the use of a prescribed form, the information collected by that form may be collected through the electronic system in a manner other than by using the prescribed form.

AR 243/2021 s28

Policies, procedures, standards and guidelines

117.4 The court may establish policies, procedures, standards and guidelines in respect of the electronic system.

AR 243/2021 s28

Certification

117.5(1) An individual who would otherwise be required to swear an oath or make an affirmation must certify that the information provided by the individual through the electronic system is true.

(2) An individual who makes a certification under subrule (1) may be questioned under oath or affirmation with respect to the information that was certified.

AR 243/2021 s28

Electronic documents

117.6(1) A document that is required to be provided, submitted or filed in its original form may be provided, submitted or filed in electronic format using the electronic system if the document relates to a matter under these Rules in respect of which the court has determined the electronic system may be used.

(2) A document provided, submitted or filed under subrule (1) must meet the policies, procedures, standards and guidelines established under rule 117.4.

(3) If a document provided, submitted or filed under subrule (1) is a will, codicil or document incorporated by reference into a will or codicil, the original will, codicil or document incorporated by reference must be filed with the court before a grant is issued.

AR 243/2021 s28

Service

117.7 A document that is required to be served may be served using the electronic system if the document relates to a matter under these Rules in respect of which the court has determined the electronic system may be used.

AR 243/2021 s28

Part 4 Repealed AR 10/2010 s4.

Part 5
Transitional, Repeal and Commencement

137 to **140** Repealed AR 132/2000 s10.

Schedule 1

Legal and Personal Representative Compensation

Definitions

1 For the purpose of this Schedule,

(a) "core legal services" are the legal services listed in Table 1 of Part 2 normally rendered by a lawyer for the personal representatives in connection with the administration of an estate;

(b) "non-core legal services" are legal services listed in Part 2 Table 2 rendered by a lawyer for the personal representatives that are in addition to the core legal services required in the administration of an estate;

(c) "personal representatives' duties" are the tasks listed in the Table in Part 1 normally required to be performed by a personal representative in the administration of an estate;

(d) "time of distribution" means

(i) when the estate property is distributable to the beneficiaries immediately on the death of the deceased, the time when distribution to the beneficiaries is complete,

(ii) the time when the transfer of a minor's property to the minor's trustees is complete, or

(iii) when the estate property is not all distributable to the beneficiaries immediately on the death of the deceased because trusts delay the final distribution, the time when distribution of immediately distributable property to the beneficiaries is complete, and transfer of the trust property to the trustees is complete.

Part 1
Personal Representatives' Compensation

Determination

1(1) Personal representatives may receive fair and reasonable compensation for their responsibility in administering an estate by performing the personal representatives' duties.

(2) Compensation paid to a personal representative is for all the services performed by the personal representative to complete the administration of the estate including distribution of the estate.

(3) A personal representative may receive compensation for the care and management of property in an estate only if

(a) there is no outright distribution of that estate property at the date of death, and

(b) the trust is not varied by agreement among the affected beneficiaries or by the court.

Factors to be considered

2 The following factors are relevant when determining the compensation charged by or allowed to personal representatives:

(a) the gross value of the estate;

(b) the amount of revenue receipts and disbursements;

(c) the complexity of the work involved and whether any difficult or unusual questions were raised;

(d) the amount of skill, labour, responsibility, technological support and specialized knowledge required;

(e) the time expended;

(f) the number and complexity of tasks delegated to others;

(g) the number of personal representatives appointed in the will, if any.

Additional compensation

3 Additional compensation may be allowed when personal representatives

(a) are called upon to perform additional roles in order to administer the estate, such as exercising the powers of a manager or director of a company or business,

(b) encounter unusual difficulties or situations, or

(c) must instruct on litigation.

Compensation fixed in will

4 If the compensation payable to the personal representative is fixed in a will, no greater amount can be charged or allowed unless

the fixed amount is varied by agreement among the affected beneficiaries or by order of the court.

Compensation to be shared

5 The compensation once determined must be shared among the personal representatives in proportions agreed to among the personal representatives or as ordered by the court.

Pre-taking compensation

6(1) Personal representatives may be paid compensation before completing the administration of the estate if

(a) the will provides for it,

(b) all the affected beneficiaries agree to it, or

(c) the court orders it.

(2) If all or any part of the amount of compensation paid to a personal representative under subrule (1) is later reduced by the court, the personal representative must repay the disallowed amount immediately to the estate with interest at a rate and for a period set by the court.

Lawyer performs personal representatives' work

7 If a lawyer or other agent performs some or all of the duties of the personal representative, the amount payable to the personal representative must be reduced commensurately.

Schedule on accounting

8 If a personal representative is required to give the beneficiary of an estate an accounting in which compensation to the personal representative is shown, the personal representative must give the beneficiary a copy of this Part.

Expenses

9 Personal representatives are entitled to reimbursement for expenses properly incurred by them in the administration of the estate, including the following:

(a) expenses reasonably incurred by the personal representatives in carrying out their duties;

(b) fees or commissions to agents, including lawyers, accountants, real estate agents, securities brokers, investment advisors, appraisers, auctioneers and other

professionals, engaged to perform estate administration services or to buy or sell estate property.

Table

Personal Representatives' Duties

1 Making arrangements for the disposition of the body and for funeral, memorial or other similar services.

2 Determining the names and addresses of those beneficially entitled to the estate property and notifying them of their interests.

3 Arranging with a bank, trust company or other financial institution for a list of the contents of a safety deposit box.

4 Determining the full nature and value of property and debts of the deceased as at the date of death and compiling a list, including the value of all land and buildings and a summary of outstanding mortgages, leases and other encumbrances.

5 Examining existing insurance policies, advising insurance companies of the death and placing additional insurance, if necessary.

6 Protecting or securing the safety of any estate property.

7 Providing for the protection and supervision of vacant land and buildings.

8 Arranging for the proper management of the estate property, including continuing business operations, taking control of property and selling property.

9 Retaining a lawyer to advise on the administration of the estate, to apply for a grant from the court or to bring any matter before the court.

10 Applying for any pensions, annuities, death benefits, life insurance or other benefits payable to the estate.

11 Advising any joint tenancy beneficiaries of the death of the deceased.

12 Advising any designated beneficiaries of their interests under life insurance or other property passing outside the will.

13 Arranging for the payment of debts and expenses owed by the deceased and the estate.

14 Determining whether to advertise for claimants, checking all claims and making payments as funds become available.

15 Taking the steps necessary to finalize the amount payable if the legitimacy or amount of a debt is in issue.

16 Determining the income tax or other tax liability of the deceased and of the estate, filing the necessary returns, paying any tax owing and obtaining income tax or other tax clearance certificates before distributing the estate property.

17 Instructing a lawyer in any litigation.

18 Complying with the requirement for filing an acknowledgment of trustee(s) before distributing any property to a trustee.

19 Preparing the personal representative's financial statements, a proposed compensation schedule and a proposed final distribution schedule.

20 Distributing the estate property in accordance with the will or intestate succession provisions.

Part 2
Lawyers' Compensation

Categories of service

1 A lawyer may charge fees for the following categories of legal services in the administration of estates:

(a) core legal services;

(b) non-core legal services.

Personal representatives' duties

2 A lawyer may charge fees for legal services that involve carrying out personal representatives' duties.

Agreement

3(1) The lawyer and the personal representatives must agree to the categories of service that the lawyer will perform and to an arrangement or amount for each category of fees, disbursements and other charges.

(2) The fees agreed to must cover, up to the time of distribution of the estate,

(a) all the core legal services or non-core legal services,

(b) any personal representatives' duties required to be performed by the lawyer, and

(c) any other services required to be performed by the lawyer.

Lawyer as personal representative

4 When a lawyer is also appointed as the personal representative under a grant, the lawyer may charge additional fees for any core and non-core legal services performed by the lawyer as a lawyer.

Factors to be considered

5 The following factors are relevant when determining the fees charged by or allowed to a lawyer:

(a) the complexity of the work involved and whether any difficult or novel questions were raised;

(b) the amount of skill, labour, responsibility and specialized knowledge required;

(c) the lawyer's experience in estate administration;

(d) the number and importance of documents prepared or perused;

(e) whether the lawyer performed services away from the lawyer's usual place of business or in unusual circumstances;

(f) the value of the estate;

(g) the amount of work performed in connection with jointly held or designated assets;

(h) the results obtained;

(i) the time expended;

(j) whether or not the lawyer and the personal representative concluded an agreement and whether the agreement is reasonable in all the circumstances.

Disbursements

6 Reasonable costs incurred by a lawyer as disbursements and other charges in performing services in any category are allowed in addition to any fees charged.

Statement of fees and disbursements to be in writing

7(1) A lawyer must present a written statement of fees, disbursements and other charges to the personal representative, showing the details of the services performed, together with a copy of this Part.

(2) If the personal representative is required to give the beneficiaries of an estate an accounting in which legal fees are shown, the personal representative must give them a copy of this Part.

Taxing accounts

8(1) The lawyer or the personal representative may have the lawyer's account reviewed by the review officer under the *Alberta Rules of Court* (AR 124/2010).

(2) The review officer or the court may review fees, disbursements and other charges and may increase or decrease any of them.

Table 1

Core Legal Services

1 Receiving instructions from the personal representatives.

2 Giving the personal representatives information and advice on all matters in connection with the administration of the estate, including the following:

(a) the basis for the lawyer's fees for the different categories of legal services;

(b) the basis for the personal representatives' compensation and preparation of the proposed compensation schedule;

(c) providing a copy of this Schedule to the personal representatives.

3 Reviewing the will or the provisions of Part 3 of the *Wills and Succession Act* with the personal representative.

4 Receiving information from personal representatives about the following:

(a) the deceased;

(b) the beneficiaries;

(c) the estate property;

(d) the deceased's debts;

(e) minors.

5 Obtaining details of all the property and debts of the deceased for the purposes of an application to the court, including the following:

(a) the full nature and value of the property of the deceased as at the date of death including the value of all land and buildings and a summary of outstanding mortgages, leases and any other encumbrances;

(b) any pensions, annuities, death benefits and any other benefits;

(c) any debts owed by the deceased as at the date of death;

(d) preparing all required documents for grant applications;

(e) preparing notices to all beneficiaries;

(f) arranging for surviving spouse or surviving adult interdependent partner to receive notices under Part 5, Division 2 of the *Wills and Succession Act* and under the *Family Property Act*, if necessary;

(g) arranging for family members to receive notices under Part 5, Division 2 of the *Wills and Succession Act*, if necessary;

(h) attending on signing of application for grant, filing with the court, payment of fees and dealing with the clerk;

(i) advising the Public Trustee, if necessary;

(j) receiving the grant.

6 Preparing documents to advertise for claimants, arranging for advertising and obtaining affidavit of publication.

7 Preparing declarations of transmission and powers of attorney for stocks and bonds transferrable under the Alberta grant.

8 Preparing transmission and transfer documents for land transferrable under the Alberta grant.

9 Preparing all other documents required to transmit and transfer property transferrable under the Alberta grant.

10 Advising the personal representatives on any trusts required by the will.

11 Advising the personal representatives to prepare and file tax returns.

12 Confirming receipt of clearance certificates from Revenue Canada.

13 Submitting personal representatives' financial statements for approval to the beneficiaries on an informal basis.

14 Preparing releases and acknowledgments of trustee(s) and obtaining and filing them if so instructed by the personal representatives.

15 Generally advising the personal representatives on all matters referred to in this Table.

Table 2

Non-core Legal Services

1 Acting as conveyancing lawyer on any sale of land.

2 Acting as lawyer on the sale of other property or businesses.

3 Preparing personal representatives' financial statements for submission to residuary beneficiaries.

4 Preparing all documents and acting for the personal representatives in any court proceedings involving the estate, including but not limited to the following:

(a) formal proof of a will;

(b) formal passing of accounts;

(c) all other contentious matters.

5 Negotiating with any taxing authorities in Alberta or elsewhere with respect to the assessment and payment of any taxes or duties levied against the deceased, the estate or the beneficiaries and preparing all documents in connection with the negotiations.

6 Arranging to obtain a resealed or ancillary grant in another jurisdiction.

7 Preparing all documents and obtaining a resealed or ancillary grant in Alberta.

8 Preparing all documents and obtaining a grant of double probate.

9 Preparing all documents and obtaining a grant of trusteeship of minors' estates.

10 Dealing with any claims by claimants.

11 Setting up any trusts required by the will and arranging for the reimbursement of the trustees for services rendered to the trusts.

12 Identifying property not forming part of the estate but passing by survivorship or passing directly to a named beneficiary outside the will, including

(a) preparing documentation to transfer land and other property held in joint tenancy to the surviving tenants;

(b) preparing documentation to pass property to designated beneficiaries outside the will.

13 Arranging for any other legal services not included in Table 1.

14 Generally advising the personal representative on all matters referred to in this Table.

AR 130/95 Sched.1;201/2003;101/2010;165/2010;10/2012;156/2019;139/2023

Schedule 2

Court Fees

1(1) For each application for a grant, excluding an application for a grant of double probate, supplemental grant, grant of administration of unadministered property or trusteeship, and including one certified copy of the document, where the net value of property in Alberta is

(a)	$10 000 or under	$ 35
(b)	over $10 000 but not more than $25 000	$ 135
(c)	over $25 000 but not more than $125 000	$ 275
(d)	over $125 000 but not more than $250 000	$ 400
(e)	over $250 000	$ 525

(2), **(3)** Repealed AR 71/2015 s2.

2 Except items referred to in section 1, for documents that require the opening of a court file respecting an estate	$ 300

3 For each application for trusteeship	$ 300
4 For each application for a grant of double probate, supplemental grant or grant of administration of unadministered property	$ 300
5 For each caveat filed	$ 300
5.1 For an application in the course of an action or proceeding respecting an estate or trusteeship	$100
6 For each certified copy of a document other than the initial certified copy	$ 20
7 For each search	$ 25
8 For a photostatic copy or faxed copy, per page	$ 1

AR 130/95 Sched.2;132/2000;71/2015;243/2021;94/2025;80/2026

Schedule 2.1

Forms — Grants and *Minors' Property Act* Applications

Form GA1

Grant Application

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

Address for Service and Contact Information for Party Filing this Document

Part 1 — The Deceased

1.1 Information about the Deceased

Please provide the following information about the Deceased:

Full legal name	
Other names known by	☐ **Not applicable**

Date of birth (mm/dd/yyyy)	
Date of death (mm/dd/yyyy)	
Was the Deceased habitually resident in Alberta?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", please enter the address of the Deceased's habitual residence in Alberta below:*	
*If the answer to the above question is "**no**", please answer the following questions:*	
What was the province (or other jurisdiction) of the Deceased's habitual residence?	
Did the Deceased own property in Alberta? *If the answer to the above question is "**yes**", please enter the address(es) of the property in Alberta owned by the Deceased below:*	☐ **Yes** ☐ **No**
Did the Deceased leave a will?	☐ **Yes** ☐ **No**

1.2 Net value of the Deceased's estate in Alberta

Use the inventory (Form GA2) to calculate the net value of the Deceased's estate in Alberta. Check the box below that corresponds to the net value of the Deceased's estate in Alberta. If the inventory describes the value of any of the Deceased's assets as "to be determined", indicate this below by checking the box.

If part of the Deceased's estate has already been administered under the authority of a prior grant, check the box below that corresponds to the net value of the Deceased's unadministered property.

This information is used to calculate the applicable Court fee for issuing the grant.

Residuary beneficiaries and other interested parties will receive more detailed information about the Deceased's estate in the inventory that will be served on them by the Applicant(s).

☐ **$10,000 or under** ☐ **Over $10,000 but not more than $25,000** ☐ **Over $25,000 but not more than $125,000** ☐ **Over $125,000 but not more than**	*Check if applicable:* ☐ **The inventory (Form GA2) describes the values of one or more of the Deceased's assets as "to be determined".** If this box is checked, the Applicant must

$250,000 ☐ **Over $250,000**	serve all residuary beneficiaries and other interested parties with an updated inventory when the values of the Deceased's assets become known. The applicant must confirm service of the updated inventory using Form GA5. Additional Court fees may apply.

1.3 Prior grants

Prior grants issued by the Court of King's Bench of Alberta

Please indicate which of the following grants, if any, have already been issued by the Court of King's Bench of Alberta in relation to the Deceased's estate.

☐ **Not applicable — no prior grants issued by the Court of King's Bench of Alberta**

☐ **Administration**
*This application will be considered an **application for a grant of administration of unadministered property.***

☐ **Administration with will annexed**
*This application will be considered an **application for a grant of administration of unadministered property.***

☐ **Probate**

*This application will be considered an **application for a grant of double probate** if the Applicant is named as a personal representative in the Deceased's will.*

*This application will be considered an **application for a grant of administration of unadministered property** if the Applicant is not named as a personal representative in the Deceased's will.*

☐ **Other (e.g., supplemental grant)**
Describe below:

Prior grants issued by a foreign court

☐ **Not applicable — no prior foreign grants**

Has a foreign court issued a grant in relation to the Deceased's estate?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", please answer the following question for each foreign grant:* **Was the foreign grant issued by any of the following?** • a court in a province or territory of Canada other than Alberta	☐ **Yes** ☐ **No**

- a court in the United Kingdom
- a court in a British possession, colony or dependency
- a court in a member nation of the British Commonwealth

*If the foreign grant was issued by a court in one of the listed jurisdictions, this application will be considered an **application to reseal the foreign grant.***

*If the foreign grant was **not** issued by a court in one of the listed jurisdictions, this application will be considered an **application for an ancillary grant.***

Part 2 — The Applicant(s)

Where there are 2 or more Applicants, each Applicant must provide a separate response to the questions in this Part unless the responses of all Applicants are identical.

2.1 Information about the Applicant(s)

Please provide the following information about each person applying for appointment as a personal representative (the "Applicant(s)").

Full legal name
Other names known by
Address of Applicant
Email address of Applicant

Law firm(s) representing Applicant(s)

☐ **Not applicable**

Name of law firm
Applicant(s) represented by this law firm *(Required if there are multiple Applicants who are represented by different law firms)*
Address of law firm
Responsible lawyer
Email address of responsible lawyer

Lawyer's file number

2.2 Priority of Applicant(s)

Priority among Applicants where a will exists

☐ **Not applicable because the Deceased did not leave a will**

Section 13(1)(a) of the *Estate Administration Act* states that, unless the Court orders otherwise, the priority to be given to an Applicant for a grant, if a will exists, is as follows, in descending order of priority:

(i) to a personal representative named in the will, unless that person is incapable of acting or unwilling to act;

(ii) to a personal representative appointed by the person expressly authorized in the will to appoint a personal representative;

(iii) to a residuary beneficiary named in the will;

(iv) to a life tenant of the residue named in the will;

(v) to a beneficiary under an intestacy if the residue is not completely disposed of in the will;

(vi) to a beneficiary receiving a specific gift in the will;

(vii) to a contingent beneficiary of the residue in the will;

(viii) to a contingent beneficiary of a specific gift in the will;

(ix) to the Crown in right of Alberta.

Where a will exists, section 13(2) of the *Estate Administration Act* requires that between Applicants of equal priority, preference must be given to a resident of Alberta unless the Court, on application, rules otherwise.

Section 13(4) of the *Estate Administration Act* permits the persons who are entitled to administer the estate to nominate a person to administer the estate if the Deceased died leaving a will but did not appoint a personal representative or if the personal representative named in the will is incapable of acting or unwilling to act.

Section 14 of the *Public Trustee Act* states that where a person dies anywhere leaving property in Alberta and a minor or a represented adult for whom the Public Trustee is trustee has an interest in the estate, the Public Trustee has the same priority to apply as the minor or the represented adult for whom the Public Trustee is trustee would have if they were an adult of full legal capacity. In addition, where a person dies anywhere leaving property in Alberta and a minor or a represented adult for whom the Public Trustee is trustee has an interest in the estate, the Public Trustee has priority

to apply over any person who is not a resident of Alberta in the following circumstances:

(i) the Deceased did not leave a will;

(ii) the Deceased's will does not appoint an executor;

(iii) any executors appointed by the Deceased's will have renounced their right to apply, have died or cannot be located.

Do the Applicant or Applicants have priority to apply over all other persons named as personal representative in the will?	☐ **Yes** ☐ **No**
Explain below why the Applicant is applying if the Applicant is not the person with priority to apply. If a person having equal or higher priority to apply is deceased or unable to act, this should be stated below. It is not necessary to provide proof of death or incapacity. *If the Applicant's priority to apply is dependent upon the renunciations and/or nominations of other persons, identify those persons renouncing and/or nominating below and attach completed Form GA11 (renunciation) and/or Form GA13 (nomination), as appropriate.*	
Are the Applicant or Applicants 18 years of age or older?	☐ **Yes** ☐ **No**
Section 13(5) of the Estate Administration Act requires the Court to grant authority to administer the estate to another person the Court considers appropriate if the sole executor named in a will is a minor. On becoming an adult, the executor named in the will may be granted the authority to administer the remainder of the estate.	

Possible revocation of appointment due to change in Applicant's relationship with the Deceased

Under section 25 of the *Wills and Succession Act*, the appointment of an individual as personal representative is revoked in certain circumstances where the relationship between the Deceased and the Applicant has changed unless the Court, in interpreting the will, finds otherwise.

At any time on or after February 1, 2012, and after the will was made, was the marriage of the Applicant to the Deceased terminated by a divorce judgment?	☐ **Yes** ☐ **No**
At any time on or after February 1, 2012, and after the will was made, was the marriage of the Applicant to the Deceased found by a court to be void?	☐ **Yes** ☐ **No**

At any time on or after February 1, 2012, and after the will was made, had the Applicant ceased to be the adult interdependent partner of the Deceased?	☐ **Yes** ☐ **No**

*If the answer to any of the above questions is "**yes**", the Applicant's appointment as personal representative will be deemed to have been revoked by operation of law unless the Court, in interpreting the will, finds that the Deceased had a contrary intention.*

If the Applicant believes the Deceased had a contrary intention, the Applicant must apply to Court for an order interpreting the Deceased's will before proceeding further. Notice of the application in Form C 1/C 2 must be served upon the person or persons who have the next highest priority to apply for the grant.

Renunciations

☐ **Not applicable**

Name of person renouncing	**Attach completed Form GA11**

Nominations

☐ **Not applicable**

Name of person nominating	**Attach completed Form GA13**

Priority among Applicants where no will exists

☐ **Not applicable because the Deceased left a will**

Section 13(1)(b) of the *Estate Administration Act* states that, unless the Court orders otherwise, the priority to be given to an applicant for a grant, if no will exists, is as follows, in descending order of priority:

(i) to the surviving spouse or surviving adult interdependent partner;

(ii) to a child of the Deceased;

(iii) to a grandchild of the Deceased;

(iv) to a descendant of the Deceased other than a child or grandchild;

(v) to a parent of the Deceased;

(vi) to a brother or sister of the Deceased;

(vii) to a child of the Deceased's brother or sister if the child is a beneficiary under the intestacy;

(viii) to the next of kin of the Deceased determined in accordance with sections 67 and 68 of the *Wills and*

Succession Act who are beneficiaries under the intestacy and are not otherwise described above;

(ix) to a person who has an interest in the estate because of a relationship with the Deceased;

(x) to a claimant;

(xi) to the Crown in right of Alberta.

Where no will exists, section 13(2) of the *Estate Administration Act* requires the following preferences be given, unless the Court, on application, rules otherwise:

(i) that between Applicants of equal priority, preference must be given to a resident of Alberta;

(ii) that as between a surviving spouse and a surviving adult interdependent partner, preference be given to the surviving spouse or surviving adult interdependent partner who lived with the Deceased immediately or most recently before the Deceased's death.

Section 13(4) of the *Estate Administration Act* permits the persons who are entitled to administer the estate to nominate a person to administer the estate if the Deceased died intestate.

Section 14 of the *Public Trustee Act* states that the Public Trustee has the same priority to apply as a minor or a represented adult for whom the Public Trustee is trustee would have if they were an adult of full legal capacity. In addition, the Public Trustee has priority to apply over any person who is not a resident of Alberta in the following circumstances:

(i) the Deceased did not leave a will;

(ii) the Deceased's will does not appoint an executor;

(iii) any executors appointed by the Deceased's will have renounced their right to apply, have died or cannot be located.

Do the Applicant or Applicants have priority to apply where no will exists?	☐ **Yes** ☐ **No**
Explain below why the Applicant is applying if the Applicant is not the person with priority to apply. *If a person having equal or higher priority to apply is deceased or unable to act, this should be stated below. It is not necessary to provide proof of death or incapacity.* *If the Applicant's priority to apply is dependent upon the renunciations and/or nominations of other persons, identify those*	

persons renouncing and/or nominating below and attach completed Form GA11 (renunciation) and/or Form GA13 (nomination), as appropriate.

Renunciations

☐ **Not applicable**

Name of person renouncing	**Attach completed Form GA11**

Nominations

☐ **Not applicable**

Name of person nominating	**Attach completed Form GA13**

2.3 Bond or permission required

The *Surrogate Rules* require that unless at least one of the Applicants resides in Alberta, the Applicant or Applicants must either provide a bond or obtain permission from the Court to proceed.

Does at least one of the Applicants reside in Alberta?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", the Applicant or Applicants may proceed without a bond.*	
*If the answer to the above question is "**no**", the Applicant or Applicants must either provide a bond or obtain the Court's permission to proceed without a bond or with reduced or alternate security.*	

Providing a bond

If a bond is required, the *Surrogate Rules* require that the bond be from an insurer licensed under the *Insurance Act* to undertake fidelity insurance as defined in the *Classes of Insurance Regulation* (AR 144/2011). The amount of the bond must be equal to the gross value of the Deceased's property in Alberta.

☐ **Not applicable because a bond is not required**

What is the gross value of the Deceased's estate in Alberta? *(attach completed Form GA2)*	**$**
Amount of bond	**$**
Name of insurer licensed to undertake fidelity insurance	

(attach bond)

Obtaining the Court's permission to proceed

The Court may, in its discretion, permit the Applicant(s) to proceed without a bond, by providing a bond for a reduced amount or by providing other security approved by the Court. The Applicant(s) may request the Court's permission to proceed by completing the section below.

☐ **Not applicable because a bond is not required**

What is the gross value of the Deceased's estate in Alberta? *(attach completed Form GA2)*		**$**
The Applicant(s) make(s) the following proposal: *(choose one of the following options)*		
☐	**One or more of the Applicants is requesting the Court's permission to proceed without a bond.** *Briefly explain why this proposal has been made.*	
☐	**The Applicant(s) is (are) requesting the Court's permission to reduce the amount of the bond.** **What bond amount is proposed?** *Briefly explain why this amount has been proposed.*	**$**
☐	**The Applicant(s) is (are) requesting the Court's permission for approval of security other than a bond.** **What alternate security is proposed?** *Briefly explain why this proposal has been made.*	

Consent of beneficiaries

When determining whether to proceed without requiring a bond, the Court will take into consideration whether some or all of the beneficiaries have consented to the Applicant(s)'s proposal to proceed without a bond, to proceed with a reduced bond amount or to proceed with alternate security.

☐ **Not applicable because a bond is not required**

Name of beneficiary *(attach completed Forms GA2 and GA14)*

2.4 Information about the will and any codicils

☐ **Not applicable because the Deceased did not leave a will.**

Date of will (mm/dd/yyyy)	
Date(s) of codicil(s) (mm/dd/yyyy)	☐ **Not applicable**
Does the will refer to a document that forms part of the will?	☐ **Yes** ☐ **No**
*If the answer to the above questions is "**yes**", the Applicant(s) must either attach the document to this application or explain below why the document is not attached.*	
Does the Applicant or do the Applicants know of any other document that forms part of the will?	☐ **Yes** ☐ **No**
*If the answer to the above questions is "**yes**", the Applicant(s) must either attach the document to this application or explain below why the document is not attached.*	
Was the Deceased at least 18 years of age when the will was made?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**no**", please answer the following questions:*	
Did the Deceased have a spouse or adult interdependent partner when the will was made?	☐ **Yes** ☐ **No**
Was the Deceased a member of a regular force as defined in the *National Defence Act* (Canada)?	☐ **Yes** ☐ **No**
Was the deceased a member of another component of the Canadian Forces placed on active service under the *National Defence Act* (Canada) when the will was made?	☐ **Yes** ☐ **No**
Was the Deceased authorized to make a will by an order of the Court under section 36 of the *Wills and Succession Act*?	☐ **Yes** ☐ **No**
Did the Deceased marry or enter into an adult interdependent partner agreement after the date of the will and before February 1, 2012?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", please answer the following questions:*	
Is there a declaration in the will that it is made in contemplation of the Deceased's marriage or entry into an adult interdependent partner agreement?	☐ **Yes** ☐ **No**
Was the will made in exercise of power of appointment of real or personal property that would not in default of the appointment pass to the heir, executor, or administrator of the testator or to the persons entitled to the estate of the testator if the testator died intestate?	☐ **Yes** ☐ **No**

Part 3 — Persons requiring notification

3.1 Beneficiaries

Applicants are required by the *Surrogate Rules* to serve notice in Form GA3 on persons who are beneficiaries of the Deceased's estate.

Wills must be carefully reviewed to identify the Deceased's intended beneficiaries and the nature of the gifts those beneficiaries are to receive. Gifts in a will can be immediate, postponed, or contingent. Beneficiaries who are to receive an immediate gift or a postponed gift must be served notice in Form GA3. Beneficiaries who are to receive only a contingent gift need not be served any form of notice.

Beneficiaries — specific gifts

Provide the following information for each person who is a beneficiary that is to receive a specific gift in the will. These beneficiaries receive only specified amounts of money or specific property items. They do not share in the residue of the estate.

☐ **Not applicable because the Deceased did not leave a will**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**
Gift	
Has this gift adeemed?	☐ **Yes** ☐ **No**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
If the person lacks capacity, is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Was this beneficiary a minor on the Deceased's date of death?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the Public Trustee (Form GA4).*	
Is this beneficiary still a minor?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the minor's guardian(s) (Form GA3).*	
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**

*If the answer to the above question is "**yes**", provide the complete address for service below.*
Complete address for service _____ ☐ **This is the beneficiary's address.** _____ ☐ **This is the attorney's address.** _____ ☐ **This is the trustee's address.** _____ ☐ **This person cannot be located.**
Email address ☐ **This is the beneficiary's email address.** _____ ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**

Residuary beneficiaries

Provide the following information for each person who is a residuary beneficiary of the Deceased's estate.

☐ **Not applicable because the Deceased did not leave a will**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**
Gift	
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
If the person lacks capacity, is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Was this person a minor on the Deceased's date of death?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the Public Trustee (Form GA4).*	
Is this person still a minor?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the minor's guardian(s) (Form GA3).*	
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	

Complete address for service ☐ **This is the beneficiary's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the beneficiary's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Beneficiaries on intestacy

Provide the following information for each person who is a beneficiary on intestacy.

☐ **Not applicable because the Deceased left a will and no intestacy arises under the will**

Full legal name	
Relationship to Deceased	
Gift	
Applicable section of the *Wills and Succession Act*	
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
If the person lacks capacity, is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Was this person a minor on the Deceased's date of death?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the Public Trustee (Form GA4).*	
Is this person still a minor?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the minor's guardian(s) (Form GA3).*	
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	

Complete address for service ☐ **This is the beneficiary's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the beneficiary's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

3.2 Void gifts

☐ **Not applicable because the Deceased did not leave a will**

Are there any void gifts?	☐ **Yes** ☐ **No**
*If the answer to the question above is "**yes**", please answer the questions below to indicate why the gift is void.*	
Did a beneficiary act as a witness to the signature of the Deceased on the will?	☐ **Yes** ☐ **No**
Did the spouse or adult interdependent partner of a beneficiary act as a witness to the signature of the Deceased on the will?	☐ **Yes** ☐ **No**
Answer the following questions <u>only</u> if the will was made on or after February 1, 2012.	
Was the will signed on the Deceased's behalf by a beneficiary?	☐ **Yes** ☐ **No**
Was the will signed on the Deceased's behalf by the spouse or adult interdependent partner of a beneficiary?	☐ **Yes** ☐ **No**
Did a beneficiary act as an interpreter who provided translation services in respect of making the will?	☐ **Yes** ☐ **No**
Did the spouse or adult interdependent partner of a beneficiary act as an interpreter who provided translation services in respect of making the will?	☐ **Yes** ☐ **No**

Intended recipients of void gifts

Provide the following information for each person who is an intended recipient of a void gift.

☐ **Not applicable because the Deceased did not leave a will**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**
Gift	
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**

If the person lacks capacity, is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the recipient's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the recipient's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

3.3 Revoked gifts

☐ **Not applicable because the Deceased did not leave a will**

Are there any revoked gifts?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", please answer the questions below to indicate why the gift has been revoked (subject to a finding by the Court, in interpreting the will, that the Deceased had a contrary intention).*	
At any time on or after February 1, 2012, and after the will was made, was the marriage of the intended recipient to the Deceased terminated by a divorce judgment?	☐ **Yes** ☐ **No**
At any time on or after February 1, 2012, and after the will was made, was the marriage of the intended recipient to the Deceased found by a court to be void?	☐ **Yes** ☐ **No**
At any time on or after February 1, 2012, and after the will was made, had the intended recipient ceased to be the adult interdependent partner of the Deceased?	☐ **Yes** ☐ **No**

Intended recipients of revoked gifts

Please provide the following information for each person who is an intended recipient of a revoked gift.

☐ **Not applicable because the Deceased did not leave a will**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**
Gift	
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
If the person lacks capacity, is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the recipient's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the recipient's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

3.4 Persons with potential claims against the estate — Part 5 of the *Wills and Succession Act*

The Applicant(s) is (are) required by section 11(1) of the *Estate Administration Act* to serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of family members under Part 5 of the *Wills and Succession Act* on certain family members.

Spouse

The Applicant(s) must serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of family members on the Deceased's spouse unless the spouse is entitled to receive the Deceased's entire estate.

Please provide the following information about any spouse of the Deceased.

☐ **Not applicable**

Full legal name ☐ **Also a beneficiary** ☐ **Receives entire estate**	
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the spouse's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the spouse's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Adult interdependent partner

The Applicant(s) must serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of family members on the Deceased's adult interdependent partner unless the adult interdependent partner is entitled to receive the Deceased's entire estate. Please refer to the *Adult Interdependent Relationships Act* for a definition of the term "adult interdependent partner".

Please provide the following information about any adult interdependent partner of the Deceased.

☐ **Not applicable**

Full legal name ☐ **Also a beneficiary** ☐ **Receives entire estate**	
Name in will (if different from above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**

Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the adult interdependent partner's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the adult interdependent partner's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Adult children — unable to earn a livelihood (physical disability)

The Applicant(s) must serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of family members on each child of the Deceased who, on the date of the Deceased's death, was an adult who was unable by reason of physical disability to earn a livelihood.

Please provide the following information about any adult child of the Deceased who is unable to earn a livelihood due to physical disability.

☐ **Not applicable**

Full legal name	☐ **Also a beneficiary**
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity*	

to be served.	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the adult child's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the adult child's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Adult children — full-time students

The Applicant(s) must serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of family members on each child of the Deceased who was, on the date of the Deceased's death,

(a) at least 18 but less than 22 years of age, and

(b) unable to withdraw from their parents' charge because the child was a full-time student as determined in accordance with the *Family Law Act* and its regulations.

Please provide the following information about any adult child of the Deceased who was a full-time student.

☐ **Not applicable**

Full legal name	☐ **Also a beneficiary**
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**

*If the answer to the above question is "**yes**", provide the complete address for service below.*
Complete address for service ☐ **This is the adult child's address.** _____ ☐ **This is the attorney's address.** _____ ☐ **This is the trustee's address.** _____ ☐ **This person cannot be located.** _____
Email address ☐ **This is the adult child's email address.** _____ ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**

Adult children — unable to earn a livelihood (mental disability)

The Applicant(s) must serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of family members on the attorney or trustee of each adult

(a) who is a child of the Deceased,

(b) who was an adult on the date of the Deceased's death, and

(c) who is unable to earn a livelihood by reason of mental disability.

Please provide the following information about any adult child of the Deceased who is unable to earn a livelihood due to mental disability.

☐ **Not applicable**

Full legal name ☐ **Also a beneficiary** ☐ **Receives entire estate**	
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	

Complete address for service ☐ **This is the adult child's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the adult child's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Minor children, grandchildren and great-grandchildren

The Applicant(s) must serve a copy of this grant application and a notice in Form GA4 pertaining to the rights of family members on the Public Trustee, if the Deceased is survived by

(a) a child who was a minor on the date of the Deceased's death, or

(b) a grandchild or great-grandchild who was a minor on the date of the Deceased's death and in respect of whom the Deceased stood in the place of a parent on the date of the Deceased 's death.

Please provide the following information about any child, grandchild or great-grandchild of the Deceased described in (a) or (b) above.

☐ **Not applicable**

Minor's full legal name	☐ **Also a beneficiary**
Name in will (if different than above)	☐ **Not applicable**
Minor's date of birth *(mm/dd/yyyy)*	
Minor's relationship to the Deceased ☐ **Child** ☐ **Grandchild** ☐ **Great-grandchild**	

Guardians

The Applicant(s) must serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of family members on each guardian of

(a) a child who was a minor on the date of the Deceased's death, and

(b) a grandchild or great-grandchild who was a minor on the date of the Deceased's death and in respect of whom the Deceased stood in the place of a parent on the date of the Deceased's death.

Please provide the following information about any guardian of a child, grandchild or great-grandchild of the Deceased described in (a) or (b) above.

☐ **Not applicable**

Guardian's full legal name	
Minor's full legal name	
Name in will (if different than above)	☐ **Not applicable**
Minor's date of birth *(mm/dd/yyyy)*	
Minor's relationship to the Deceased ☐ **Child** ☐ **Grandchild** ☐ **Great-grandchild**	
Guardian's complete address for service	
Guardian's email address	

3.5 Persons with potential claims against the estate — *Family Property Act*

Spouse

Section 11(2) of the *Estate Administration Act* requires the Applicant(s) to serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of a spouse under the *Family Property Act* on any spouse (as defined in that Act) unless that spouse is entitled to receive the Deceased's entire estate.

Generally, the *Family Property Act* requires that an application for a family property order by a spouse or former spouse be commenced not later than 2 years after whichever of the following applies:

(a) the date upon which the decree nisi is issued in divorce proceedings;

(b) the date upon which a declaration of nullity of marriage has been made with respect to the Deceased's death;

(c) the date upon which a judgment of judicial separation has been granted to one of the spouses;

(d) the date upon which a declaration of irreconcilability has been made under the *Family Law Act*.

Please provide the following information about any spouse of the Deceased.

☐ **Not applicable**

Full legal name ☐ **Also a beneficiary** ☐ **Receives entire estate**	
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the spouse's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the spouse's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Former spouses

The Applicant(s) must also serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of a spouse under the *Family Property Act* on a former spouse if the former spouse has a right to make a claim against the Deceased's estate under the *Family Property Act*.

Generally, the *Family Property Act* requires that an application for a family property order by a spouse or former spouse be commenced not later than 2 years after whichever of the following applies:

(a) the date upon which the decree nisi is issued in divorce proceedings;

(b) the date upon which a declaration of nullity of marriage has been made with respect to the Deceased's death;

(c) the date upon which a judgment of judicial separation has been granted to one of the spouses;

(d) the date upon which a declaration of irreconcilability has been made under the *Family Law Act*.

Please provide the following information about any former spouse of the Deceased.

☐ **Not applicable**

Full legal name ☐ **Also a beneficiary** ☐ **Receives entire estate**	
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the former spouse's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the former spouse's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Adult interdependent partners

Section 11(2.1) of the *Estate Administration Act* requires the Applicant(s) to serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of an adult interdependent partner under the *Family Property Act* on any adult interdependent partner (as defined in

that Act) unless that adult interdependent partner is entitled to receive the Deceased's entire estate.

Generally, the *Family Property Act* requires that an application by an adult interdependent partner or former adult interdependent partner for a family property order be commenced not later than 2 years after the date the applicant under the *Family Property Act* knew or, in the circumstances, ought to have known that the applicant had become a former adult interdependent partner.

Please provide the following information about any adult interdependent partner of the Deceased.

☐ **Not applicable**

Full legal name ☐ **Also a beneficiary** ☐ **Receives entire estate**	
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the adult interdependent partner's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the adult interdependent partner's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

Former adult interdependent partners

The Applicant(s) must also serve a copy of this grant application and a notice in Form GA3 pertaining to the rights of an adult interdependent

partner under the *Family Property Act* on any former adult interdependent partner if that former adult interdependent partner has a right to make a claim against the Deceased's estate under the *Family Property Act*.

The *Family Property Act* requires that an application by an adult interdependent partner or former adult interdependent partner for a family property order be commenced not later than 2 years after the date the applicant under the *Family Property Act* knew, or in the circumstances ought to have known, that the applicant had become a former adult interdependent partner.

Please provide the following information about any former adult interdependent partner of the Deceased who has a right to make a claim against the Deceased's estate under the *Family Property Act*.

☐ **Not applicable**

Full legal name	☐ **Also a beneficiary** ☐ **Receives entire estate**
Name in will (if different than above)	☐ **Not applicable**
Does this person have capacity to make decisions respecting financial matters?	☐ **Yes** ☐ **No**
Is this person represented by either an attorney or trustee?	☐ **Yes — by an attorney** ☐ **Yes — by a trustee** ☐ **No**
*If the answer to the above question is "**yes**", notice is to be served on the person's attorney or trustee.*	
*If the answer to the above question is "**no**", this person does not have legal capacity to be served.*	
Name of attorney or trustee	☐ **Not applicable**
Does this person have the legal capacity to be served?	☐ **Yes** ☐ **No**
*If the answer to the above question is "**yes**", provide the complete address for service below.*	
Complete address for service ☐ **This is the former adult interdependent partner's address.** ☐ **This is the attorney's address.** ☐ **This is the trustee's address.** ☐ **This person cannot be located.**	_____ _____ _____ _____
Email address ☐ **This is the former adult interdependent partner's email address.** ☐ **This is the attorney's email address.** ☐ **This is the trustee's email address.**	_____

3.6 Persons declared by the Court to be missing persons under the *Public Trustee Act*

Section 12(1)(c)(iii) of the *Estate Administration Act* requires the Applicant(s) to serve notice in Form GA4 on the Public Trustee in accordance with the *Surrogate Rules* if the Court has declared that person to be a missing person under the *Public Trustee Act*.

Please provide the following information about any person declared to be a missing person under the *Public Trustee Act*.

☐ **Not applicable**

Full legal name		
Name in will (if different than above)		☐ **Not applicable**
Person's interest in estate	☐ **Beneficiary of a specific gift** ☐ **Residuary beneficiary** ☐ **Intended recipient of void gift** ☐ **Beneficiary on intestacy**	☐ **Potential claimant — *Wills and Succession Act*** ☐ **Potential claimant — *Family Property Act*** ☐ **Intended recipient of revoked gift**

3.7 Persons not notified

The *Estate Administration Act* and the *Surrogate Rules* require the following persons to be notified. However, for the reasons given below, the following persons have not been notified:

☐ **Not applicable**

Full legal name		
Name in will (if different than above)		☐ **Not applicable**
Person's interest in estate	☐ **Beneficiary of a specific gift** ☐ **Residuary beneficiary** ☐ **Intended recipient of void gift** ☐ **Beneficiary on intestacy**	☐ **Potential claimant — *Wills and Succession Act*** ☐ **Potential claimant — *Family Property Act*** ☐ **Intended recipient of revoked gift**
Reason for not notifying	☐ **This person does not have legal capacity to be served.** ☐ **This person cannot be located.** ☐ **Other (describe).**	
Proposal for service	☐ **Dispense with service** ☐ **Substitutional service** *Describe the proposal for service below:*	

Part 4 — Documents and Other Information for the Court's Consideration

4.1 Documents

The following documents form part of this grant application.

PROOF OF DEATH

☐ **Death certificate or funeral director's statement of death**

TESTAMENTARY DOCUMENTS ***(attach originals)***

☐ **Will**
☐ **Codicil(s)**
☐ **Fee agreement governing compensation payable to personal representative**
☐ **Mutual will agreement**
☐ **Other documents incorporated by reference into the will**

Describe below:

COURT ORDERS

☐ **Order interpreting will**
☐ **Order validating will**
☐ **Order rectifying will**
☐ **Order validating gift**
☐ **Other order**

Describe below:

OTHER DOCUMENTS

☐ **Affidavit(s) of witness to will or codicil (Form GA8)**
☐ **Affidavit(s) of handwriting (Form GA9)**
☐ **Affidavit(s) verifying translation of a will into English or French (Form GA10)**
☐ **Renunciation(s) (Form GA11)**
☐ **Nomination(s) (Form GA13)**
☐ **Other documents**

Describe below:

DOCUMENTS REQUIRED FOR BONDING

☐ **Bond**
☐ **Inventory (Form GA2)**
☐ **Consent(s) to waive bond (Form GA14)**

DOCUMENTS REQUIRED FOR GRANTS OF DOUBLE PROBATE

☐ **Current grant of probate**

DOCUMENTS REQUIRED TO RESEAL GRANTS AND FOR ANCILLARY GRANTS

- ☐ **Certified copy of foreign grant**
- ☐ **Inventory (Form GA2)**
- ☐ **Certificate of foreign court confirming foreign grant is unrevoked and fully effective**

4.2 Other information for the Court's consideration

Provide any additional information that the Court should consider with this grant application.

_____

_____

4.3 Express authorizations — digital assets

An express authorization from the Court may be required by a digital asset provider to enable a personal representative to deal with the deceased's digital assets (e.g., email or social media accounts).

Describe any express authorizations being requested.

_____

_____

4.4 Proposed conditions and limitations on grant

Use this section to describe to the Court any conditions or limitations that the Applicant(s) propose(s) for the grant.

- ☐ **None**
- ☐ **No distribution to beneficiaries without further order of the Court**
- ☐ **Other**
  Describe below:

Part 5 — Applicant's Oath or Affirmation

Oath or Affirmation

The Applicant(s) (severally) swear(s) or affirm(s) as follows:

5.1. All information contained in this grant application is true to the best of my knowledge and belief.

5.2. I believe the original will (and codicil(s), if any) attached to this grant application are the will (and codicil(s), if any) made by the Deceased. I do not know of any later wills or codicils.

5.3. I acknowledge that I am required by law to carry out the core tasks of a personal representative, which are as follows:

(a) identifying the estate assets and liabilities;

(b) administering and managing the estate;

(c) satisfying the debts and obligations of the estate;

(d) distributing and accounting for the administration of the estate.

I further acknowledge that the core tasks of a personal representative may include, but are not limited to, those activities described in the Schedule to the *Estate Administration Act*. I have reviewed the current version of the Schedule.

5.4. I acknowledge that I am required by law to perform my role as personal representative

(a) honestly and in good faith,

(b) in accordance with the Deceased's intentions and with the will and codicils, and

(c) with the care, diligence and skill that a person of ordinary prudence would exercise in comparable circumstances where a fiduciary relationship exists.

I further acknowledge that I may be required by law to exercise a greater degree of skill if, because of my profession, occupation or business, I possess or ought to possess a particular degree of skill that is relevant to the performance of my role of personal representative and that is greater than that which a person of ordinary prudence would be expected to exercise in dealing with the property of another person.

5.5. I undertake to give notice of this grant application to all persons entitled to receive notice according to law.

5.6. I undertake to serve an inventory of the Deceased's assets and liabilities in Form GA2 on all persons entitled to receive one according to law.

I undertake to file proof of service of the inventory in Form GA5.

5.7. If the value of any asset or debt listed in the inventory served by me is described as "to be determined", I undertake to serve an amended inventory in Form GA2 on all persons entitled to receive one according to law when updated information becomes available.

I undertake to file proof of service of the amended inventory in Form GA5.

5.8. I acknowledge that as personal representative, I am required by law to distribute the estate as soon as practicable.

5.9. I will not distribute any property to a trustee described in Form GA20 until the trustee has signed an Affidavit of Trustee in Form GA20, which I undertake to retain.

5.10. I undertake to notify all beneficiaries and persons with potential claims against the estate who have been identified in this grant application by

providing them with a notice of grant issuing in Form GA7 when the grant has issued.

5.11. I will faithfully administer the Deceased's estate according to law and will give a true accounting of its administration to the persons entitled to it when lawfully required.

☐ **SWORN OR** ☐ **AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT** _____, **ALBERTA ON** _____*(month)*_____*(day)*__, **20**___.

☐ **BASIS FOR AFFIRMATION CONFIRMED**

_____	_____
Signature of Applicant	**A Commissioner for Oaths in and for Alberta**
_____	
Name of Applicant	**Appointment expiry date** __*(mm/dd/yyyy)*___

COURT USE ONLY	
ORDER: ISSUE A GRANT	**Type of Grant to Issue**
	☐ **PROBATE**
	☐ **ADMINISTRATION**
	☐ **ADMINISTRATION WITH WILL ANNEXED**
	☐ **DOUBLE PROBATE**
	☐ **ADMINISTRATION OF UNADMINISTERED PROPERTY**
	☐ **OTHER:**
☐ **CONDITIONS AND LIMITATIONS:**	

_____ _____

Justice of the Court of King's Bench of Alberta **Date** *(mm/dd/yyyy)*

Form GA2

Inventory

Estate Name

Date of Death

Address for Service and Contact Information for Party Filing this Document

---

NOTICE TO RECIPIENT OF INVENTORY

A grant application is being made to the Court by _____ (the "Applicant(s)") in respect of the estate of _____ (the "Deceased").

This inventory has been prepared by the Applicant(s) to the best of their ability using information they believe to be accurate and complete. The values shown are as at the date of the Deceased's death. Where the value of an item has been described as "to be determined", the Applicant(s) has (have) undertaken to serve an amended inventory when updated information becomes available.

This inventory identifies the assets and liabilities of the Deceased wherever they are located.

The Court does not review the content of this inventory. It is your responsibility to satisfy yourself as to the accuracy and completeness of this inventory. Concerns about this inventory should be addressed to the Applicant(s).

Part 1 — Assets owned by the Deceased

This Part lists the assets owned by the Deceased, including all assets owned by the Deceased as a tenant-in-common, but does not include assets owned jointly by the Deceased.

1.1 Land and minerals

☐ **Not applicable**

Municipal address or legal description		
	Within Alberta	**Outside Alberta**
Estimated gross value	**$**	**$**

Mortgages and other financial encumbrances	**($)**	**($)**
Estimated net value	**$**	**$**

1.2 Bank and investment accounts

☐ **Not applicable**

Financial institution		
Description		
	Within Alberta	**Outside Alberta**
Balance	**$**	**$**

1.3 Shares in public or private companies

☐ **Not applicable**

Company		
Description		
	Within Alberta	**Outside Alberta**
Value	**$**	**$**

1.4 Annuities, pensions and benefit plans payable to estate

☐ **Not applicable**

Provider of annuity/pension/benefit	
	Within Alberta
Value	**$**

1.5 Life insurance payable to estate

☐ **Not applicable**

Life insurance provider	
	Within Alberta

Value	**$**

1.6 Household goods and personal effects

☐ **Not applicable**

Item		
	Within Alberta	**Outside Alberta**
Estimated value	**$**	**$**

1.7 Other property

☐ **Not applicable**

Item		
	Within Alberta	**Outside Alberta**
Estimated value	**$**	**$**

Total value of assets owned by the Deceased	**$**	**$**

Part 2 — Assets owned jointly by the Deceased and persons other than a spouse or adult interdependent partner

The assets listed below have been identified by the Applicant(s) as being jointly owned by the Deceased and **persons other than the Deceased's spouse or adult interdependent partner**. Although this list has been prepared by the Applicant(s) to the best of their ability using available information, the list may not be complete as not all information about the Deceased's jointly-owned property is necessarily available to the Applicant(s).

Succession to a Deceased's jointly owned assets is governed by the common law. Jointly-owned assets may either form part of the Deceased's estate or they may pass outside the Deceased's estate by right of survivorship to the surviving joint owners. Entitlement is generally determined by ascertaining the Deceased's intentions where possible and by applying certain legal presumptions. Entitlement in each situation depends on its facts.

The Applicant(s) must determine whether assets owned jointly by the Deceased and **persons other than a spouse or adult interdependent partner** form part of the Deceased's estate or if ownership of the assets passes to the surviving joint owner or owners. However, the decision of the Applicant(s) on these matters is not determinative. If you have concerns about the determinations by the Applicant(s) in this inventory, you may wish to consult with your own lawyers immediately.

2.1 Jointly-owned land and minerals

☐ **Not applicable**

Municipal address or legal description ☐ **Joint asset passes outside of estate** ☐ **Joint asset forms part of estate**		
Joint owner(s) (if known)		
	Within Alberta	**Outside Alberta**
Gross value	**$**	**$**
Mortgages and other financial encumbrances	**($)**	**($)**
Net value	**$**	**$**
Net value to estate (Indicate **nil** if asset passes outside of estate)	**$**	**$**

2.2 Jointly-owned bank and investment accounts

☐ **Not applicable**

Financial institution		
Description ☐ **Joint asset passes outside of estate** ☐ **Joint asset forms part of estate**		
Joint owner(s) (if known)		
	Within Alberta	**Outside Alberta**
Balance	**$**	**$**
Value to estate (Indicate **nil** if asset passes outside of estate)	**$**	**$**

2.3 Jointly-owned shares in public or private companies

☐ **Not applicable**

Company		
Description ☐ **Joint asset passes outside of estate** ☐ **Joint asset forms part of estate**		
Joint owner(s) (if known)		
	Within Alberta	**Outside Alberta**
Value	**$**	**$**
Value to estate (Indicate **nil** if joint asset passes outside of estate)	**$**	**$**

2.4 Jointly-owned household goods and personal effects

☐ **Not applicable**

Item ☐ **Joint asset passes outside of estate** ☐ **Joint asset forms part of estate**		
Joint owner(s) (if known)		
	Within Alberta	**Outside Alberta**
Value	**$**	**$**
Value to estate (Indicate **nil** if joint asset passes outside of estate)	**$**	**$**

2.5 Other jointly-owned property

☐ **Not applicable**

Item ☐ **Joint asset passes outside of estate** ☐ **Joint asset forms part of estate**		
Joint owner(s) (if known)		
	Within Alberta	**Outside Alberta**
Value	**$**	**$**
Value to estate (Indicate **nil** if joint asset passes outside of estate)	**$**	**$**

Total jointly-owned assets that form part of the Deceased's estate	**$**

Part 3 — Liabilities (excluding mortgages)

☐ **Not applicable**

Description	
Estimated value	**$**

Deceased's total liabilities (excluding mortgages)	**$**

Part 4 — Net value of estate

The net value of the Deceased's estate is determined by adding the Deceased's total assets (Part 1) and the total jointly-owned assets that form part of the Deceased's estate (Part 2), then subtracting the Deceased's liabilities (Part 3).

	Within Alberta	**Outside Alberta**
Total value of the assets owned by the Deceased *Indicate the total determined under Part 1*	**$**	**$**
Total jointly-owned assets forming part of the Deceased's estate *Indicate the total determined under Part 2*	**$**	**$**
Total value of the Deceased's assets *Calculate the total value of the Deceased's assets within and outside Alberta by adding the total value of the assets owned by the Deceased to the total jointly-owned assets forming part of the Deceased's estate*	**$**	**$**
Total liabilities of the Deceased (excluding mortgages) *Indicate the total determined under Part 3*	**($)**	
Net value of the Deceased's estate within Alberta *Calculate the net value of the Deceased's estate in Alberta by deducting the total liabilities of the Deceased (excluding mortgages) from the total value of the Deceased's assets within Alberta*	**$**	
Net value of Deceased's estate *Calculate the net value of the Deceased's estate by adding the total value of the Deceased's assets outside Alberta to the net value of the Deceased's estate within Alberta*	**$**	

_____ _____
Applicant(s) **Date** *(mm/dd/yyyy)*

Form GA3

Notice to Beneficiaries and Other Interested Parties

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

Date of Death

Address for Service and Contact Information for Party Filing this Document

Name of Recipient of Notice

The *Estate Administration Act* and the *Surrogate Rules* require grant applicants to notify beneficiaries and certain other parties with interests in the Deceased's estate. You are one of the persons entitled to be notified.

You can contact the Applicant(s), __*(name(s) of Applicant(s) or lawyer(s))*__, at ____*(name of law firm(s), if applicable)*____, _____*(phone number)*_____ for any further information you may need.

_____ Date: _____*(mm/dd/yyyy)*_____
Signature(s) of Applicant(s)

_____
Name(s) of Applicant(s)

---

1. Beneficiary — non-residuary gifts

☐ **Not applicable to this notice recipient**

You are named as a non-residuary beneficiary in the will of the Deceased.

The will gives you _____.

A grant has been applied for by the Applicant(s).

Once the Court issues the grant, the Applicant(s) must collect in the estate property, pay the debts, complete the administration of the estate and anything else required of the Applicant(s). The Applicant(s) will then

be able to distribute your gift to you if it is not needed to pay the debts and expenses of the estate. Distribution of the estate may be delayed if a claim is made against the estate under the *Family Property Act* or Part 5 of the *Wills and Succession Act*.

Applicants have certain duties under the *Estate Administration Act*, including requirements to communicate regularly with beneficiaries and to maintain proper financial records. If you believe that the Applicant(s) is (are) not complying with any of their duties under that Act, first try to resolve the matter through discussion with the Applicant(s). If you are unable to resolve the matter, you or your lawyer may apply to the Court, which may provide a remedy if it is satisfied that the Applicant(s) is (are) not complying with their duties.

2. Residuary beneficiary

☐ **Not applicable to this notice recipient**

You are named as a residuary beneficiary in the will of the Deceased.

The will gives you _____.

A grant has been applied for by the Applicant(s).

Enclosed with this notice are copies of the grant application (Form GA1) and the inventory (Form GA2) prepared by the Applicant(s). The inventory is for your information and reference. **It is your responsibility to satisfy yourself as to the accuracy and completeness of the inventory. The Court does <u>not</u> review the content of the inventory**.

Once the Court issues the grant, the Applicant(s) must collect in the estate property, pay the debts, complete the administration of the estate and anything else required of the Applicant(s). The Applicant(s) will then be able to distribute your gift to you if it is not needed to pay the debts and expenses of the estate. Distribution of the estate may be delayed if a claim is made against the estate under the *Family Property Act* or Part 5 of the *Wills and Succession Act*.

Applicants have certain duties under the *Estate Administration Act*, including requirements to communicate regularly with beneficiaries and to maintain proper financial records. If you believe that the Applicant(s) is (are) not complying with any of their duties under that Act, first try to resolve the matter through discussion with the Applicant(s). If you are unable to resolve the matter, you or your lawyer may apply to the Court, which may provide a remedy if it is satisfied that the Applicant(s) is (are) not complying with their duties.

3. Beneficiary on intestacy

☐ **Not applicable to this notice recipient**

The Deceased died without leaving a will. Part 3 of the *Wills and Succession Act* determines which relatives of the Deceased inherit the estate. You are one of the relatives entitled to inherit the Deceased's estate.

The Act entitles you to receive _____.

A grant has been applied for by the Applicant(s).

Enclosed with this notice is a copy of the grant application (Form GA1) and the inventory (Form GA2) prepared by the Applicant(s). The inventory is for your information and reference. **It is the responsibility of the beneficiaries and other parties receiving this notice to satisfy themselves as to the accuracy and completeness of the inventory. The Court does <u>not</u> review the content of the inventory.**

Once the Court issues the grant, the Applicant(s) must collect in the estate property, pay the debts, complete the administration of the estate and anything else required of the Applicant(s). The Applicant(s) will then be able to distribute your gift to you if it is not needed to pay the debts and expenses of the estate. Distribution of the estate may be delayed if a claim is made against the estate under the *Family Property Act* or Part 5 of the *Wills and Succession Act*.

Applicants have certain duties under the *Estate Administration Act*, including requirements to communicate regularly with beneficiaries and to maintain proper financial records. If you believe that the Applicant(s) is (are) not complying with any of their duties under that Act, first try to resolve the matter through discussion with the Applicant(s). If you are unable to resolve the matter, you or your lawyer may apply to the Court, which may provide a remedy if it is satisfied that the Applicant(s) is (are) not complying with their duties.

4. Intended recipient of void gift

☐ **Not applicable to this notice recipient**

You are named as a beneficiary in the will of the Deceased.

A grant has been applied for by the Applicant(s).

The will gives you _____.

☐ This is a specific gift.

☐ This is a residuary gift. Copies of the grant application (Form GA1) and inventory (Form GA2) prepared by the Applicant(s) are enclosed.

The gift made to you is void because:

☐ You are a witness to the will.

☐ At the time the will was made, you were the spouse or adult interdependent partner of a witness to the will.

☐ The will was made on or after February 1, 2012 and you signed the will on behalf of the Deceased.

☐ The will was made on or after February 1, 2012 and you were the spouse or adult interdependent partner of a person who signed the will on behalf of the Deceased.

☐ The will was made on or after February 1, 2012 and you were an interpreter who provided translation services in respect of making the will.

☐ The will was made on or after February 1, 2012 and you were the spouse or adult interdependent partner of an interpreter who provided translation services in respect of making the will.

You may make an application to the Court to validate the gift made to you.

You must begin any application within 6 months after the date the Court issues the grant. The personal representative is required to notify you using Form GA7 when the Court issues the grant.

You may wish to consult with your own lawyers for advice on how to proceed.

5. Intended recipient of revoked gift

☐ **Not applicable to this notice recipient**

You are named as a beneficiary in the will of the Deceased.

A grant has been applied for by the Applicant(s).

The will gives you _____.

☐ This is a specific gift.

☐ This is a residuary gift. Copies of the grant application (Form GA1) and inventory (Form GA2) prepared by the Applicant(s) are enclosed.

Unless the Court, in interpreting the will, finds the Deceased had a contrary intention, the gift to you is deemed to be revoked by section 25 of the *Wills and Succession Act* because:

☐ At a time on or after February 1, 2012, and after the will was made, your marriage to the Deceased was terminated by a divorce judgment.

☐ At a time on or after February 1, 2012, and after the will was made, your marriage to the Deceased was found by a court to be void.

☐ At a time on or after February 1, 2012, and after the will was made, you ceased to be the adult interdependent partner of the Deceased.

You may apply to the Court to have the will interpreted if you believe the gift to you should not be revoked.

You may wish to consult with your own lawyers for advice on how to proceed.

6. Family member with a potential claim against the estate under Part 5 of the *Wills and Succession Act*

☐ **Not applicable to this notice recipient**

You may be entitled to make a claim for maintenance and support from the Deceased's estate.

Part 5, Division 2 of the *Wills and Succession Act* allows the following persons to apply to the court to receive more or all of the estate:

☐ a spouse or adult interdependent partner of the Deceased;

☐ a child of the Deceased who is under 18 years at the time of the Deceased's death;

☐ a child of the Deceased who is at least 18 years of age at the time of the Deceased's death and unable to earn a livelihood by reason of mental or physical disability;

☐ a child of the Deceased who, at the time of the Deceased's death, is at least 18 but under 22 years of age and unable to withdraw from their parents' charge because the child is attending school full-time;

☐ a grandchild or great-grandchild of the Deceased

(a) who was under 18 years of age at the time of the Deceased's death,

(b) in respect of whom the Deceased, during life, demonstrated a settled intention to treat as the Deceased's own child,

(c) whose primary home, since birth or for at least 2 years immediately before the grandparent's death, was with the

grandparent, and

(d) whose primary financial support, since birth or for at least 2 years immediately before the grandparent's death, was provided by the grandparent.

The Court can change the distribution of the estate and give you more or all of the estate if the Court decides you are a qualified applicant and the circumstances warrant it.

You should begin your application to change the distribution of the estate within 6 months after the date on which the Court issues the grant. After that, the Applicant(s) may distribute the estate property and you can only apply to change the distribution if the Court lets you. You can then only ask for some or all of the property in the estate that is still undistributed at that time. The personal representative is required to notify you using Form GA7 when the Court issues the grant.

Enclosed with this notice is a copy of the grant application (Form GA1) and the inventory (Form GA2) prepared by the Applicant(s). The inventory is for your information and reference. **It is the responsibility of the beneficiaries and other parties receiving this notice to satisfy themselves as to the accuracy and completeness of the inventory. The Court does not review the content of the inventory.**

If you want to take this further, you must act immediately. You may wish to consult a lawyer for advice on how to proceed.

7. Person with a potential claim against the estate under the *Family Property Act*

☐ **Not applicable to this notice recipient**

You may have a claim under the *Family Property Act* on the property in the estate. This must be addressed before the estate can be distributed.

The *Family Property Act* gives rights to a spouse, adult interdependent partner, former spouse, or former adult interdependent partner in certain circumstances and the law requires that notice be given to you because you are the spouse, adult interdependent partner, former spouse, or former adult interdependent partner and you have not been given all the property in the estate.

You must begin any application within 6 months after the date on which the Court issues the grant. The personal representative is required to notify you using Form GA7 when the Court issues the grant. However, there are other time limits in the *Family Property Act*

which may mean that you have **less** than 6 months.

Enclosed with this notice is a copy of the grant application (Form GA1) and the inventory (Form GA2) prepared by the Applicant(s). The inventory is for your information and reference. **It is the responsibility of the beneficiaries and other parties receiving this notice to satisfy themselves as to the accuracy and completeness of the inventory. The Court does not review the content of the inventory.**

You may wish to consult a lawyer for advice on how to proceed.

Form GA4

Notice to Public Trustee

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

Date of Death

Address for Service and Contact Information for Party Filing this Document

---

The Public Trustee is given notice that a grant has been applied for by the Applicant(s) shown in the attached grant application (Form GA1).

1. Beneficiaries and intended recipients of void or revoked gifts

Represented adult beneficiaries for whom the Public Trustee acts as trustee

The Public Trustee is being notified because the Public Trustee acts as trustee for the following represented adult who has an interest or potential interest in the Deceased's estate, either as a beneficiary or as the intended recipient of a void or revoked gift.

☐ **Not applicable**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**

Person's interest in estate	☐ **Beneficiary of a non-residuary gift** ☐ **Residuary beneficiary** ☐ **Beneficiary on intestacy** ☐ **Intended recipient of void gift** ☐ **Intended recipient of revoked gift**

Minor beneficiaries

☐ **Not applicable**

The Public Trustee is being notified because the following person was a minor on the date of the Deceased's death and has an interest or potential interest in the Deceased's estate, either as a beneficiary or as the intended recipient of a void or revoked gift.

Minor's full legal name	
Minor's name in will (if different than above)	☐ **Not applicable**
Minor's date of birth *(mm/dd/yyyy)*	
Person's interest in estate	☐ **Beneficiary of a non-residuary gift** ☐ **Residuary beneficiary** ☐ **Beneficiary on intestacy** ☐ **Intended recipient of void gift** ☐ **Intended recipient of revoked gift**

Missing persons

☐ **Not applicable**

The Public Trustee is being notified because the following person, who has been declared to be a missing person by an order of the Court under the *Public Trustee Act*, has an interest or potential interest in the Deceased's estate as a potential claimant, beneficiary or intended recipient of a void or revoked gift.

Full legal name		
Person's interest in estate	☐ **Potential claimant — *Wills and Succession Act*** ☐ **Potential claimant — *Family Property Act***	☐ **Beneficiary of a non-residuary gift** ☐ **Residuary beneficiary** ☐ **Beneficiary on intestacy** ☐ **Intended recipient of void gift** ☐ **Intended recipient of revoked gift**

2. Persons with potential claims against the estate

Part 5 of the *Wills and Succession Act* — represented adults

The Public Trustee is being notified because the Public Trustee acts as trustee for the estates of the following represented adults who are potential claimants by reason of being family members for the purposes of Part 5 of the *Wills and Succession Act*.

☐ **Not applicable**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**
Relationship to the Deceased	☐ **Spouse** ☐ **Adult interdependent partner** ☐ **Child** ☐ **Grandchild** ☐ **Great-grandchild**

Part 5 of the *Wills and Succession Act* — minors

☐ **Not applicable**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**
Date of birth *(mm/dd/yyyy)*	
Relationship to the Deceased	☐ **Spouse** ☐ **Adult interdependent partner** ☐ **Child** ☐ **Grandchild** ☐ **Great-grandchild**

Family Property Act

The Public Trustee is being notified because the Public Trustee acts as trustee for the estates of the following represented adults who are potential claimants by reason of being a spouse, former spouse, adult interdependent partner or former adult interdependent partner of the Deceased for the purposes of the *Family Property Act*.

☐ **Not applicable**

Full legal name	
Name in will (if different than above)	☐ **Not applicable**
Relationship to the Deceased	☐ **Spouse** ☐ **Adult interdependent partner** ☐ **Child** ☐ **Grandchild** ☐ **Great-grandchild**

_____ _____

Applicant(s) **Date** *(mm/dd/yyyy)*

Office of the Public Trustee acknowledgement to the Court of King's Bench of Alberta and to the Applicant(s):

The Public Trustee

☐ does not intend to be represented on the grant application.

☐ intends to be represented on the grant application.

The Public Trustee confirms the following, as applicable:

☐ Any property to which a minor is entitled from the estate must be delivered to the Public Trustee.

☐ Clause ___ of the will appoints _____ as trustee of money or property to which the minor, _____, is entitled under the will. The will does not appoint the Public Trustee to monitor on behalf of the minor. Accordingly, the Public Trustee will not monitor the trustee on behalf of the minor unless the Court directs the Public Trustee to monitor pursuant to section 22 of the *Public Trustee Act*.

☐ Clause _____ of the will appoints _____ as trustee of money or property to which the minor, _____, is entitled under the will and clause ___ appoints the Public Trustee to monitor on behalf of the minor. Accordingly, the Public Trustee will monitor the trustee on behalf of the minor.

☐ The Public Trustee reserves the right to apply under the provisions of Part 5, Division 2 of the *Wills and Succession Act* on behalf of _____.

_____ _____

Public Trustee of Alberta **Date** *(mm/dd/yyyy)*

The Court of King's Bench requires submissions to be made as to whether the Public Trustee should monitor the trust for the benefit of minor beneficiaries. Either the Applicant(s) or the Public Trustee, on notice to the other, must arrange for the Court to hear the submissions.

_____ _____

Justice of the Court of King's Bench of Alberta **Date** *(mm/dd/yyyy)*

Form GA5

Affidavit of Service

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

Deponent

Address for Service and Contact Information for Party Filing this Document

---

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

On ____*(mm/dd/yyyy)*____, I served true copies of the following documents:

Attached as Exhibit A	Document
	_____

on the following:

Name	Address	Manner of service:
_____	_____	_____

☐ **SWORN OR** ☐ **AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT** _____, **ALBERTA ON** ____*(month)* *(day)*, **20**___.

☐ **BASIS FOR AFFIRMATION CONFIRMED**

_____	_____
Signature of Applicant	**A Commissioner for Oaths in and for Alberta**
_____	**Appointment expiry date** __*(mm/dd/yyyy)*__
Name of Applicant	

Form GA6

Grant

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

There are no previous grants issued in the estate of __*(name of Deceased)*__.

OR

This order revokes the previous grant issued in the estate of *(name of Deceased)* on *(mm/dd/yyyy)*.

And therefore, by order of the Honourable Justice _____, dated *(mm/dd/yyyy)*, the Court has granted *(probate of the attached will/codicil/list OR administration)* of all the Deceased's property and digital assets to *(name of Applicant(s)/personal representative)*, the personal representative of the estate of *(name of Deceased)*.

This grant has the following conditions, limitations and express authorizations:

[None.]

OR

[List conditions, limitations and express authorizations.]

The Court makes the following directions in respect of this grant.

[None.]

OR

[List directions.]

_____ _____

Justice of the Court of King's Bench of Alberta **Date** *(mm/dd/yyyy)*

Form GA7

Notice of Grant Issuing

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

Address for Service and Contact Information for Party Filing this Document

---

The Court has issued a grant of *(probate OR administration)* to *(name of Applicant(s)/personal representative)*, personal representative(s) of the estate of *(name of Deceased)*.

The grant of *(probate OR administration)* is issued on *(mm/dd/yyyy)*.

_____ _____

Personal representative(s) or lawyer(s) for personal representative(s) **Date** *(mm/dd/yyyy)*

Form GA8

Affidavit of Witness to a Will

Testator Name

Deponent

Exhibit Attached: A — Original will dated _____*(mm/dd/yyyy)*_____

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I am one of the witnesses to the will of the testator, _____.
2. The will is dated ___(*mm/dd/yyyy)*___ and is marked as Exhibit A to this affidavit.
3. The testator, the other witness to the will and I were all present together when the testator and the witnesses signed the will.
4. Before the testator signed the will, the testator made the following changes to it:

   4.1.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON _____*(month)*_____*(day)*__, 20___.

☐ BASIS FOR AFFIRMATION CONFIRMED

_____ _____

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date __*(mm/dd/yyyy)*___

Form GA9

Affidavit of Handwriting

Testator Name

Deponent

Exhibit Attached: A — Original will dated _____*(mm/dd/yyyy)*_____

Address for Service and Contact Information for Party Filing this Document

---

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I knew the testator, _____, well and for _____ years before the testator died. I frequently saw the testator write and sign documents and I am very familiar with the testator's handwriting and signature.
2. I have carefully examined the document dated ____*(mm/dd/yyyy)*____, which purports to be the testator's will and which is marked as Exhibit A to this affidavit.
3. I believe the whole of the will including the signature is in the testator's handwriting.
4. I believe that the signature appearing on page _____ of the will is that of the testator.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, **ALBERTA ON** _____*(month)*_____*(day)*__, **20**___.

☐ BASIS FOR AFFIRMATION CONFIRMED

_____	_____
Deponent	**A Commissioner for Oaths in and for Alberta**
	Appointment expiry date __*(mm/dd/yyyy)*___

Form GA10

Affidavit Verifying Translation of a Will into English or French

Testator Name

Deponent

Exhibits Attached: A — Original will dated _____*(mm/dd/yyyy)*_____

B — Translation of will

Address for Service and Contact Information for Party Filing this Document

---

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I can read, write and speak English/French and _____ fluently and I am competent to translate documents from either language to the other.
2. I have carefully examined the document dated ____*(mm/dd/yyyy)*____, which purports to be the testator's will and which is marked as Exhibit A to this affidavit. It is written in the _____ language.
3. Exhibit B to this affidavit is my translation of the will into English/French and it is accurate.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON ____*(month)*____*(day)*__, 20___.

☐ BASIS FOR AFFIRMATION CONFIRMED

_____ _____

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date __*(mm/dd/yyyy)*__

Form GA11

Renunciation

Estate Name

Deponent

Address for Service and Contact Information for Party Filing this Document

---

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S

KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I am a person that may apply to the Court of King's Bench of Alberta for a grant under section 13(1) of the *Estate Administration Ac*t to administer the estate.
2. I do not wish to serve as the Deceased's personal representative.
3. I renounce my entitlement to apply for a grant.
4. I have not intermeddled in the Deceased's estate.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON _____*(month)*_____*(day)*__, 20___.

☐ BASIS FOR AFFIRMATION CONFIRMED

Deponent	**A Commissioner for Oaths in and for Alberta**
	Appointment expiry date *(mm/dd/yyyy)*

Form GA12

Reservation of Right to Apply for a Grant

Estate Name

Deponent

Address for Service and Contact Information for Party Filing this Document

---

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. The Deceased, _____, signed a will in which I am appointed as one of the personal representatives.
2. I wish the administration of the Deceased's estate to proceed but I do not wish to administer the Deceased's estate at this time.
3. I reserve the right to apply for a grant of double probate.

4. I consent to the issuance of a grant subject to my reservation.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON _____*(month)*_____*(day)*__, 20___.

☐ BASIS FOR AFFIRMATION CONFIRMED

_____ _____

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date __*(mm/dd/yyyy)*___

Form GA13

Nomination

Estate Name

Deponent

Address for Service and Contact Information for Party Filing this Document

---

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I am a person that may nominate a person to administer the estate of _____*(name of Deceased)*_____ under section 13(4) of the *Estate Administration Act*.
2. I nominate _____ to apply for a grant.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON _____*(month)*_____*(day)*__, 20___.

☐ BASIS FOR AFFIRMATION CONFIRMED

_____ _____

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date __*(mm/dd/yyyy)*___

Form GA14

Beneficiary's Consent to Waive or Reduce Bond

Estate Name

Deponent

Address for Service and Contact Information for Party Filing this Document

---

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I am aware that _____ (the "Applicant(s)") will apply to the Court for a grant.
2. I have an interest in the administration of the estate of _____ because I am a beneficiary.
3. I consent to a grant being issued to the Applicant(s) on the following basis:

   ☐ without bond or other security.

   ☐ with bond in the reduced amount of $_____.

   ☐ with the following security in the amount of $_____ instead of a bond:_____.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON _____*(month)*_____*(day)*__, 20___.

☐ BASIS FOR AFFIRMATION CONFIRMED

_____ _____

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date ___*(mm/dd/yyyy)*___

Form GA15

Notice to Creditors and Claimants

Estate of _____, who died on ___*(mm/dd/yyyy)*___

If you have a claim against this estate, you must file your claim

By: _____*(mm/dd/yyyy)*_____

Date (at least 30 days from date of last publication)

With: _____

Name of personal representative or lawyer

At: _____

Complete address of personal representative or lawyer

If you do not file by the date set out above, the estate property may be lawfully distributed without regard to any claim you may have.

Form GA16

Statutory Declaration of Publication

Court File Number

Court	Court of King's Bench of Alberta (Surrogate Matter)
Judicial Centre	
Estate Name	
Exhibit Attached	Advertisement
Address for Service and Contact Information for Party Filing this Document	

THE DECLARANT SOLEMNLY DECLARES THAT THE INFORMATION IN THIS STATUTORY DECLARATION IS WITHIN THE DECLARANT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. The declarant's name is _____ and the declarant's complete address is _____.
2. The declarant states that, on examination of the _____, a newspaper published in _____, Alberta, true copies of the attached advertisement, marked as Exhibit A to this affidavit, appeared in the following issues of the newspaper:

   _____

   _____

DECLARED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON *(month)* *(day)*, **20**___.

_____ _____

Declarant **A Commissioner for Oaths in and for Alberta**

Appointment expiry date *(mm/dd/yyyy)*

Form GA17

Statutory Declaration by Creditors and Claimants

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

Date of Death

Address for Service and Contact Information for Party Filing this Document

---

THE DECLARANT SOLEMNLY DECLARES THAT THE INFORMATION IN THIS STATUTORY DECLARATION IS WITHIN THE DECLARANT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. The declarant's name is _____ and the declarant's complete address is _____.
2. The declarant makes this claim as a _____.

3. The amount claimed against the estate is _____.
4. The claim is based on _____.
5. The declarant holds the following security for this debt: _____.
6. The security is owned by _____.
7. The declarant values the security at _____.
8. The Deceased is _____ liable for this debt.

DECLARED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON *(month) (day)*, **20**___.

_____ _____

Declarant **A Commissioner for Oaths in and for Alberta**

Appointment expiry date *(mm/dd/yyyy)*

Form GA18

Renunciation of Trusteeship

Estate Name

Deponent

Type of trustee	☐ Named in the will as a trustee. ☐ Named by the personal representative who is authorized in the will to appoint a trustee or trustees. ☐ Named by _____ who is authorized in the will to appoint a trustee or trustees.

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. The Deceased, _____, signed a will dated *(mm/dd/yyyy)* pursuant to which I am named or appointed trustee of the following trusts:

Name of Beneficiary	Age	Address

2. I renounce my right and titles as trustee appointed by the Deceased's will.

3. I have not acted as trustee or in any way dealt with the trust property.

☐ **SWORN OR** ☐ **AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT** _____, **ALBERTA ON** ____*(month)*____*(day)*__, **20**___.

☐ **BASIS FOR AFFIRMATION CONFIRMED**

_____ _____

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date __*(mm/dd/yyyy)*__

Form GA19

Report of Clerk to Justice

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

Procedure Grant Application

1. I have examined the application and supporting material and report that, to the best of my knowledge, it appears to comply with the *Surrogate Rules* and practices except for the following, which I respectfully draw to your attention:

   _____
   _____.

   _____ _____

   Surrogate Clerk **Date** *(mm/dd/yyyy)*

JUSTICE'S DIRECTION

2. Justice's comments (if Fiat not signed):

   _____
   _____.

☐ Return for corrections as noted above.

☐ The grant application is returned because:

_____

_____.

The Applicant(s) may re-apply on an informal basis once they have satisfied the Court with respect to these matters.

_____ _____

Justice of the Court of King's Bench of Alberta **Date** *(mm/dd/yyyy)*

Form GA20

Affidavit of Trustee

Estate Name

Deponent

Name of beneficiary	
Type of trustee	☐ Named in the will as a trustee. ☐ Named by the personal representative who is authorized in the will to appoint a trustee or trustees. ☐ Named by _____ who is authorized in the will to appoint a trustee or trustees.

THE DEPONENT ☐ SWEARS UNDER OATH OR ☐ AFFIRMS THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I am receiving property from the estate in my capacity as a trustee.
2. I acknowledge that as a trustee
   - (a) the property I receive from the estate may only be used by me in accordance with the terms of my appointment as a trustee,
   - (b) I must keep adequate records of my administration of the property I receive from the estate unless the terms of my appointment as a trustee provide otherwise, and
   - (c) I cannot borrow or take a benefit from the property I receive from the estate unless the terms of my appointment as a trustee provide otherwise.

3. I am at least 18 years of age.

☐ **SWORN OR** ☐ **AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT** _____, **ALBERTA ON** _____*(month)*_____*(day)*__, **20**___.

☐ **BASIS FOR AFFIRMATION CONFIRMED**

_____ _____

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date __*(mm/dd/yyyy)*___

Form GA21

Certificate of Valid Grant

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Estate Name

I certify the grant described in this certificate is valid and unrevoked.

Grant _____

Date of grant _____*(mm/dd/yyyy)*_____

Name of Deceased _____

Date of death _____*(mm/dd/yyyy)*_____

Name of personal representative(s) _____

_____ _____

Clerk of the Court **Date** *(mm/dd/yyyy)*

Form MP1

Application for an Order Appointing a Trustee of a Minor's Property

Court File Number

Court	Court of King's Bench of Alberta (Surrogate Matter)
Judicial Centre	
Name of Minor	
Name(s) of Minor's Parent(s)/Guardian(s)	
Bond	
Name(s) of Applicant(s)	
Name(s) of Proposed Trustee(s)	
Address for Service and Contact Information for Party Filing this Document	

---

1. Property for which order is requested

The Applicant(s) is (are) applying for an order appointing the proposed trustee(s) as trustee(s) of:

(tick applicable box)

☐ the following particular property to which the minor is entitled or is likely to become entitled:

_____

_____.

OR

☐ the minor's property generally.

2. Bond or other security

(tick applicable box)

☐ The proposed trustee(s) have obtained a bond in the amount of $ _____ as described in the affidavit(s) filed with the Court.

OR

☐ The Applicant(s) is (are) requesting the Court to approve the following security:

_____

_____

with a value of $_____ instead of a bond, as described in the affidavit(s) filed with the Court.

OR

☐ The Applicant(s) is (are) requesting the Court to dispense with the requirement for a bond or other security on the basis that it would be in the minor's best interest to do so, having regard to other safeguards that are or will be in place as described in the affidavit(s) filed with the Court.

OR

☐ The Applicant(s) is (are) requesting an order that no bond or other security is required because the proposed trustee, or one or more of the proposed trustees, is a trust corporation as described in the affidavit(s) filed with the Court.

3. Specific authority or provisions requested

The Applicant(s) request that the order give the proposed trustee(s) the following specific authority or include the following specific provisions:

Complete this section only if the Applicant(s) is (are) requesting that the order give the trustee(s) any specific authority or include any specific provisions.

In considering whether to request specific authority or provisions, the Applicant(s) should consider section 10(6) and (7) of the Minors' Property Act and Part 4, Division 5 of the Trustee Act relating to distributive powers of a trustee.

Note respecting service: *If the Applicant(s) is (are) requesting the Court to dispense with service on a non-Applicant parent or guardian, that request should be stated in this section.*

4. Applicable Surrogate Rules

This application is being made under the following *Surrogate Rules*:

4.1 Rules 50 to 54.

4.2 Any other *Surrogate Rules* specifically relied on by the Applicant(s):

_____
_____

5. Applicable statutory authority

This application is being made under the following statutory authority:

5.1 *Minors' Property Act*, sections 10 and 11.

5.2 Any other statutory authority specifically relied on by the Applicant(s):

☐ Specify statute and section number:

_____
_____.

Applicant(s) **Date** *(mm/dd/yyyy)*

NOTICE: This application may be determined only after the Public Trustee has filed a response to the application (see Rule 51(4)(b) of the *Surrogate Rules*).

Form MP2

Affidavit on Application for an Order Appointing a Trustee of a Minor's Property

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Name of Minor

Deponent(s) Name(s)

Address for Service and Contact Information for Party Filing this Document

Copy of Bond Attached

THE DEPONENT(S) ☐ SWEAR(S) UNDER OATH OR ☐ AFFIRM(S) THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

The contents of this affidavit must be adjusted as necessary to ensure that it accurately reflects the circumstances of your application. For example, if a proposed trustee is not (one of) the Applicant(s), it may be necessary to file 2 affidavits: one addressing matters within the knowledge of the Applicant(s), and another addressing matters within the knowledge of the proposed trustee(s) and expressly consenting to be appointed as trustee(s).

1. Applicant(s)

I am (We are) the proposed trustee(s) in this application. I am (we are) 18 years of age or older and the *(relationship of proposed trustee(s) to minor)* of the minor.

2. Minor

Name _____

Complete address _____

Date of birth _____*(mm/dd/yyyy)*_____

Age _____

3. Living parents and guardians of minor

The living parents and guardians of the minor are:
(provide the following information about each living parent and guardian)

Name _____

Complete address _____

Is the parent or guardian (one of) the proposed trustee(s)?

☐ Yes ☐ No

Relationship to minor

☐ Parent

☐ Guardian appointed under section 22 of the *Family Law Act* by the minor's deceased parent(s):
_____*(name(s) of deceased parent(s))*_____

☐ Guardian appointed by Court order under section 23 of the *Family Law Act*

4. Deceased parents of minor (if any)

☐ No parent of the minor is deceased.

OR

☐ The following parent(s) of the minor is (are) deceased:
(provide the following information about each deceased parent)

Name _____
Date of death _____*(mm/dd/yyyy)*_____
Residence at date of death ____*(province, country)*____

5. Property for which trusteeship order is requested

5.1 I am (We are)
(tick applicable box)

☐ applying to be appointed as trustee(s) of the following particular property to which the minor is entitled or is likely to become entitled:

Description of property _____
Value of property $_____
Source of minor's entitlement _____

(e.g. minor is a beneficiary under a deceased person's estate, personal injury settlement, insurance policy or fatal accident claim. In the case of an estate, state particulars such as name of deceased person and date of death)

☐ applying to be appointed as trustee(s) of the minor's property generally.

The minor is currently entitled to the following property:

Description	Value	Source of minor's entitlement

5.2 In addition, I am (we are) aware of the following circumstances or claims under which the minor is likely to become entitled to additional property while the trusteeship order is in effect:

_____
_____.

Describe circumstances or claims, e.g. minor is likely to become a beneficiary under a deceased person's estate or to receive money under a personal injury settlement, insurance policy or fatal accident claim. In the case of an estate, state particulars such as name of deceased person and date of death.

6. Best interest of the minor

6.1 It would be in the best interest of the minor for the Court to appoint me (us) as trustee(s) of the minor's property because: *(complete all sections)*

(a) I (We) have the ability to administer the minor's property because:

_____
_____.

Describe your relevant qualifications, skills, knowledge and experience.

(b) I (We) have the following plan for administering the minor's property:

_____
_____.

Describe your plan for prudently administering the minor's property, including how you would invest the property and what expenditures you anticipate paying out of income from the property for the minor's benefit.

(c) Appointing me (us) as trustee(s) of the minor's property would have the following benefits for the minor compared with other available options for administering the minor's property:

_____
_____.

Describe how you expect your trusteeship would benefit the minor more than other available options for administering the minor's property, including the option of the Public Trustee administering the minor's property.

6.2 I (We) believe the minor's interests would be better served by appointing me (us) as trustee(s) of the minor's property generally than by appointing me (us) as trustee(s) of particular property, for the following reasons:

_____
_____.

Describe why you believe it would benefit the minor more if you were appointed as trustee(s) of all the minor's property, including property to which the minor may subsequently become entitled while the trusteeship order is in effect, than if you were appointed as trustee(s) of particular property specified in the trusteeship order.

Complete this section only if the application is for trusteeship of the minor's property generally rather than for trusteeship only of particular property of the minor.

7. Specific authority or provisions requested (if any)

I (We) request that the Court's order give me (us) the following specific authority or contain the following specific provisions, for the following reasons: _____
_____.

Describe specific authority or specific provisions requested and explain reasons for the request.

Complete this section only if the application is requesting that the Court's order give the trustee(s) any specific authority or include any specific provisions such as provisions for compensation of the trustee(s).

8. Service

8.1 I (We)
(tick the applicable box)

☐ intend to serve each of the minor's parents and guardians, other than the Applicant(s), with a notice in Form MP4 and a

draft order in Form MP7 and will file proof of service in Form GA5 with the Court.

OR

☐ am (are) requesting an order of the Court dispensing with the requirement to serve a notice and draft order on the following parent(s) or guardian(s) of the minor:

(name) *(parent OR guardian)*

for the following reasons:

_____
_____.

8.2 I (We) am (are) aware that a notice in Form MP5 and a draft order in Form MP7 must be served on the Public Trustee and will file proof of service in Form GA5 with the Court.

9. Minor's consent

I (We)
(tick the applicable box)

☐ am (are) filing the minor's consent to this application for a trusteeship order, as required by section 14(3) of the *Minors' Property Act*.

OR

☐ am (are) applying to the Court for an order allowing this application for a trusteeship order to be made without the minor's consent.

10. Bond

I (We)
(tick the applicable box)

☐ have obtained the required bond, a copy of which is marked as Exhibit A to this affidavit.

OR

☐ propose to provide the following security instead of a bond:

_____
_____.

Describe proposed security instrument, for example, mortgage or promissory note, and state its dollar value.

OR

☐ am (are) applying to dispense with the requirement to provide a bond or other security because it would be in the minor's best interest to do so for the following reasons:

_____
_____.

Explain why it would be in the minor's best interest not to require the proposed trustee(s) to provide a bond or other security, and describe any other safeguards that are or will be in place.

OR

☐ am (are) not required to provide a bond or other security because

- ☐ the proposed trustee, or
- ☐ one of the proposed trustee, namely _____, is a trust corporation within the meaning of section 11(3) of the *Minor's Property Act*.

11. Attached documents

I (We) have personally prepared or carefully read the documents that are part of this affidavit and to the best of my (our) knowledge the information in them is accurate and complete.

12. Acknowledgments

I (We) consent to being appointed as trustee(s) and acknowledge that if the Court appoints me (us) as trustee(s):

(a) I (We) must use the trust property only in accordance with the order of the Court.

(b) I (We) must not borrow or take a benefit from the trust property unless the Court order expressly allows me (us) to do so.

(c) I (We) must keep adequate records of my (our) administration of the trust property and account to the minor when the minor reaches 18 years of age.

(d) I (We) must keep the trust property separate from any other property.

13. Administration of trust

I (We) will faithfully administer the trust according to law and will give a true accounting of my (our) administration of the trust to the persons entitled to it when lawfully required.

☐ SWORN OR ☐ AFFIRMED BEFORE A COMMISSIONER FOR OATHS IN AND FOR THE PROVINCE OF ALBERTA AT _____, ALBERTA ON _____*(month)*_____*(day)*__, 20___.

☐ BASIS FOR AFFIRMATION CONFIRMED

Deponent **A Commissioner for Oaths in and for Alberta**

Appointment expiry date *(mm/dd/yyyy)*

Form MP3

Minor's Consent to Appointment of Trustee

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Name of Minor

Address for Service and Contact Information for Party Filing this Document

---

1. I was born on *(mm/dd/yyyy)* and am _____ years of age.

2. I understand that *(name(s) of Applicant(s))* intend to apply to the Court for an order appointing *(name(s) of proposed trustee(s))* as trustee(s) of:

(tick the applicable box)

☐ the following particular property to which I am entitled or am likely to become entitled: _____

_____

OR

☐ my property generally, until I am 18 years of age.

3. I consent to the application described above.

SIGNED BY THE MINOR AND WITNESSED BY _____

ON *(mm/dd/yyyy)*

Minor **Witness**

Address of Witness

Form MP4

Notice to Parent or Guardian of Application to Appoint a Trustee of a Minor's Property

Court File Number

Court	Court of King's Bench of Alberta (Surrogate Matter)
Judicial Centre	
Name of Minor	
Name(s) of Minor's Parent(s)/Guardian(s)	
Name(s) of Applicant(s)	
Name(s) of Proposed Trustee(s)	
Address for Service and Contact Information for Party Filing this Document	

1. This notice is given to _____*(name of parent/guardian)*_____.

2. The Applicant(s), ____*(name(s) of Applicant(s))*____, intend(s) to apply to the Court for an order appointing ____*(name(s) of proposed trustee(s))*____ as trustee(s) of property of the minor ____*(name of minor)*____.

   The proposed trust property is described in the documents included with this notice.

3. Copies of the following documents are included with this notice:
   (tick the applicable box)

   - ☐ Application for an order appointing a trustee of a minor's property (Form MP1)
   - ☐ Affidavit on application for an order appointing a trustee of a minor's property (Form MP2)
   - ☐ Minor's consent to appointment of trustee (Form MP3)
   - ☐ Order appointing a trustee of a minor's property (Form MP7)

4. Further information may be obtained from:
   _____*(name and phone number)*_____

5. **THERE IS A DEADLINE FOR OBJECTING TO THIS APPLICATION:** If you object to the application to appoint the trustee(s), you must complete the response below and file a copy with the Court without delay. The Court may determine the application 10 days (or one month, if you are not a resident of Alberta) after this notice is served on you, unless you have filed a response before that time requesting a hearing. If you request a hearing, the Applicant(s) will give you notice of the date, time and place of the hearing.

RESPONSE OF THE PARENT OR GUARDIAN

To: THE COURT OF KING'S BENCH OF ALBERTA
JUDICIAL CENTRE OF

_____

(*specify judicial centre and mailing address*)

(*tick the applicable box*)

☐ I object to the application and request that the application not be granted without a hearing on notice to me, for the following reason(s): _____
_____

OR

☐ I do not object to the application and do not request a hearing.

_____ _____
Signature of parent or guardian **Date** *(mm/dd/yyyy)*

_____
Name of parent or guardian

Form MP5

Notice to Public Trustee of Application to Appoint a Trustee of a Minor's Property

Court File Number

Court Court of King's Bench of Alberta (Surrogate Matter)

Judicial Centre

Name of Minor

Name(s) of Minor's Parent(s)/Guardian(s)

Name(s) of Proposed Trustee(s)

Name(s) of Applicant(s)

Address for Service and Contact Information for Party Filing this Document

---

1. This notice is given to the Public Trustee.

2. The Applicant(s), *(name(s) of Applicant(s))*, intend(s) to apply to the Court for an order appointing *(name(s) of proposed trustee(s))* as trustee(s) of property of the minor *(name of minor)*.

   The proposed trust property is described in the documents included with this notice.

3. Copies of the following documents are included with this notice:
   (tick the applicable box)

   - ☐ Application for an order appointing a trustee of a minor's property (Form MP1)
   - ☐ Affidavit on application for an order appointing a trustee of a minor's property (Form MP2)
   - ☐ Minor's consent to appointment of trustee (Form MP3)
   - ☐ Order appointing a trustee of a minor's property (Form MP7)

4. Further information may be obtained from:
   (name and phone number)

Instruction to Applicant(s): Where indicated in the box below for the Public Trustee's response, insert the judicial centre where your application is to be made and the mailing address for the Court in that judicial centre.

RESPONSE OF PUBLIC TRUSTEE

To: THE COURT OF KING'S BENCH OF ALBERTA
JUDICIAL CENTRE OF

_____

(*specify judicial centre and mailing address*)

(*tick the applicable box*)

☐ The Public Trustee does not object to the application and does not request a hearing.

OR

☐ The Public Trustee does not request a hearing but submits the following comments for the Court's consideration:

_____
_____

OR

☐ The Public Trustee objects to the application and requests a hearing on notice to the Public Trustee. The reasons for the Public Trustee's objections are:

_____
_____

_____ _____

Signature **Date** *(mm/dd/yyyy)*

_____

Name

Form MP6

Response of Parent or Guardian to Application to Appoint a Trustee of a Minor's Property

Court File Number

Court	Court of King's Bench of Alberta (Surrogate Matter)
Judicial Centre	
Name of Minor	
Name(s) of Minor's Parent(s)/Guardian(s)	
Name(s) of Proposed Trustee(s)	
Name(s) of Applicant(s)	
Address for Service and Contact Information for Party Filing this Document	

---

1. I am (We are)
(tick the applicable box)

☐ the parent(s) of the minor, _____*(minor's name)*_____.

OR

☐ the guardian(s) of the minor, _____*(minor's name)*_____.

2. I (We) have been served with notice of the application (Form MP1) being made to the Court by the Applicant(s) for an order appointing _____*(name of proposed trustee(s))*_____ as trustee(s) of property of the minor.

3. I (We)

(tick the applicable box)

☐ **do not object to the application** and do not request a hearing. (*Optional*) Although I (we) do not object to the application, I (we) submit the following comments for the Court's consideration:

_____

_____

OR

☐ **object to the application** and request a hearing on notice to me (us). The reasons for my (our) objection are: _____

_____

Describe your reasons, which must relate to why the proposed appointment would not be in the best interest of the minor.

_____ _____

Parent(s) or Guardian(s) **Date** *(mm/dd/yyyy)*

Form MP7

Order Appointing a Trustee of a Minor's Property

Court File Number

Court	Court of King's Bench of Alberta (Surrogate Matter)
Judicial Centre	
Name of Minor	
Date on which Order was Made	
Location of Hearing	
Name of Judge who Made this Order	The Honourable Justice

THE COURT HAS:

Reviewed the affidavit(s) and other documents filed in this application;

Heard representations from the parties or counsel for the parties;

Considered the response and any representations from the Public Trustee;

Considered the minor's consent to the application; *(Include this only if the minor was 14 years of age or older when the application was filed, unless the Court dispensed with the requirement for the minor's consent.)*

Considered the application;

1. _____ *(Name(s) of trustee(s))* _____ is (are) appointed

☐ as trustee(s) of the following particular property of the minor:

_____

_____

and any property derived from the investment or disposition of that property.

OR

☐ as trustee(s) of all property to which the minor is entitled at the time this order is made and all property to which the minor becomes entitled while this order is in effect.

OR

☐ as trustee(s) of all property to which the minor is entitled at the time this order is made and all property to which the minor becomes entitled while this order is in effect, excluding the following property: _____
_____.

2. The trustee(s)

☐ has (have) provided a bond in the amount of $_____, a copy of which is attached to this order.

OR

☐ has (have) provided a security instrument in the form of _____ having a value of $_____ instead of a bond and proof of registration of the security instrument against the secured property is attached.

OR

☐ is (are) not required to provide a bond or other security.

3. Except as otherwise provided in sections 4 and 5 of this order, the trustee(s) is (are) authorized and required to deal with the trust property in accordance with the *Minors' Property Act* and the *Trustee Act*.

4. The following specific provisions apply to the trusteeship created by this order:

Set out any provisions, conditions, limitations or directions ordered by the Court. For example, if the Court grants any authority under the Trustee Act, specify that authority here.

4.1

4.2

_____ _____
Justice of the Court of King's Bench of Alberta **Date** *(mm/dd/yyyy)*

AR 243/2021 s30;189/2022;218/2022;139/2023

Schedule 3

Forms – Contentious Matters and Accounting

Forms NC 1 to NC 49 Repealed AR 243/2021 s31

C 1

COURT FILE NUMBER	
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	
ESTATE NAME	
DOCUMENT	**Application for *(state matter)***
PARTIES	
APPLICANT(S)	
RESPONDENT(S) *(names of the following who have an interest in this matter)*	
PERSONAL REPRESENTATIVE(S)	
BENEFICIARIES (RESIDUARY)	
LIFE TENANTS	
BENEFICIARIES (NON RESIDUARY)	
BENEFICIARIES (INTESTACY)	
TRUSTEES FOR REPRESENTED ADULTS	
ATTORNEYS FOR INCOMPETENT ADULTS	
MINORS	
MISSING PERSONS	
UNPAID CLAIMANTS	
BONDING COMPANIES	
OTHER PERSONS WHO HAVE FILED A FORM C 1 IN RESPECT OF THE ESTATE	
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	

THIS APPLICATION WILL BE HEARD BY A JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA, JUDICIAL CENTRE OF _____

ON _____

PLACE _____

TIME _____

NOTICE TO THE RESPONDENT(S) _____

This is to notify you that if you do not attend either in person or by your lawyer before the court at the time and place shown above, the court may give the applicant(s) what they want in your absence. You will be bound by any order the court makes.

Alternatively, another order might be given or other proceedings taken that the applicant(s) are entitled to without any further notice of them to you.

Therefore, if you want to take part in this application, you or your lawyer must attend in court on the date and time described.

In addition to attending in court, you may file and serve a reply to this application in Form C 2.1 at least 5 days before the date shown above or as directed by the court.

Whether or not you file and serve a reply to this application, you may file and serve a demand for notice in Form C 2.2, which gives you the right to receive notice of future applications in respect of this matter.

Applicant(s)

1. The applicant(s) is (are) _____.

Issues to be determined or nature of claims

2. _____.

Grounds for request and relief sought

3. _____.

Documents filed with this application

4. 4.1 C 2 Affidavit of the applicant(s)

4.2

Applicable Surrogate Rules

5. 5.1 (tick applicable box(es)):

☐ Surrogate Rule 4(1)

☐ Surrogate Rule 41

☐ Surrogate Rule 58(a)

☐ Surrogate Rule 70.1(1)

☐ Surrogate Rule 70.1(2)

☐ Surrogate Rule 70.9(5)

☐ Surrogate Rule 94(2)

5.2 Any other Surrogate Rule(s) the applicant specifically relies on (specify): _____.

Applicable statutes

6. Any statutory authority the applicant specifically relies on (specify statute(s) and section number(s)):_____.

_____ _____
Applicant *Date*

_____
Lawyers for Applicant(s)
Responsible lawyer: _____
Firm name: _____
Complete address: _____
Phone: _____
Fax: _____
File no.: _____

C 2

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
DOCUMENT	**Affidavit in support of (*or* opposing) application for *(state matter)***
DEPONENT'S NAME(S)	_____
EXHIBITS ATTACHED	_____
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

_____

THE DEPONENT SWEARS UNDER OATH OR AFFIRMS THAT THE FOLLOWING INFORMATION IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

1. I am the *(applicant or respondent)* in this application.

2. I am interested in the estate because _____.

3. The facts on which this application is *(based or opposed)* are

   3.1 _____.

   3.2 _____.

SWORN OR AFFIRMED BY THE DEPONENT BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____, 20___.

_____	_____
Deponent	*A Commissioner for Oaths in and for Alberta*

C 2.1

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
DOCUMENT	**Reply to Application for *(state matter)***
RESPONDENT	
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

Respondent

1. The Respondent is interested in the estate and this application because the Respondent is _____.

Response to the Application

2. The Respondent agrees with the following orders asked for by the Applicant: _____.

3. The Respondent disagrees with the following orders asked for by the Applicant: _____.

Relief sought and grounds for request

4. _____

Documents filed with this Reply

5. 5.1 C 2 Affidavit of the Respondent

5.2

Lawyer for Respondent
Responsible lawyer: _____
Firm name: _____
Complete address: _____
Phone: _____
Fax: _____
File no.: _____

C 2.2

COURT FILE NUMBER _____
COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____
ESTATE NAME _____
DOCUMENT **Demand for Notice in Respect of Application for** _____

RESPONDENT
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT _____

1. The Respondent is interested in this estate and the application referred to above because the Respondent is _____.

2. The Respondent demands notice of any application or proceeding in relation to the application referred to above.

Lawyer for Respondent
Responsible lawyer: _____
Firm name: _____
Complete address: _____
Phone: _____
Fax: _____

File no.: _____

C 3

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

Caveat

NOTHING CAN BE DONE IN THIS ESTATE WITHOUT NOTICE TO THE CAVEATOR(S) OR TO THE LAWYER FOR THE CAVEATOR(S)

Caveator(s)

1. The caveator(s) name(s) and address(es) and occupation(s) are _____.

2. The caveator(s) are interested in this estate and are entitled to file a caveat because they are _____.

Grounds for filing this caveat

3. The grounds on which the caveator(s) have filed this caveat are_____.

The caveator(s) swear under oath or affirm that:

1. The statements in this caveat are within their knowledge and are true;

2. This caveat is not filed for the purpose of delaying or embarrassing any person interested in the deceased's estate.

SWORN OR AFFIRMED BY EACH CAVEATOR BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____

_____	_____
Caveator	*A Commissioner for Oaths in and for Alberta*

The information in the box is completed by the clerk at the time the document is filed and before it is served.

THIS CAVEAT EXPIRES ON _____

Clerk of the Court _____

C 3.1

COURT FILE NUMBER _____

COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____

ESTATE NAME _____

ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT _____

Withdrawal of Caveat

Caveator(s)

1. The caveator(s) name(s) and address(es) and occupation(s) are ____.

2. The caveator(s) acknowledge that they have no further interest under the caveat dated _____.

3. The caveator(s) withdraw the caveat.

CAVEAT SIGNED BY

_____ _____

Caveator *Witness*

*Name:*_____ *Name:*_____

(attach affidavit of execution)

ENTERED AT _____, ALBERTA, ON _____.

_____

CLERK OF THE COURT

C 3.2

COURT FILE NUMBER _____
COURT **Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE _____
ESTATE NAME _____

Discharge of Caveat

Caveator(s)

1. The caveator(s) name(s) and address(es) and occupation(s) are ____.

2. The caveat is discharged.

3. The reason(s) for the discharge is:_____.

_____
JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA

ENTERED AT _____, ALBERTA, ON _____.

_____
CLERK OF THE COURT

C 4

COURT FILE NUMBER _____
COURT **Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE _____
ESTATE NAME _____

ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT _____

Warning to Caveator(s)

To: _____

YOU FILED A CAVEAT WHICH REQUIRES THAT NOTICE MUST BE GIVEN TO YOU OF ANY APPLICATION WHICH MIGHT BE MADE IN THIS ESTATE.

THE FOLLOWING APPLICATION HAS BEEN MADE:

Nature of application Grant of _____

Date of will _____

Applicant(s) name(s) _____

BE WARNED:

If you want to contest this application, you must file a notice of objection to an informal grant on the enclosed Form called "Notice of objection to informal grant".

You must state:

1. That you object to this application; and

2. The nature of your objection.

THERE IS A DEADLINE FOR FILING YOUR NOTICE OF OBJECTION.

If you do not file your notice of objection by the deadline, the court will:

3. Deal with the application for an informal grant without any further notice to you; and

4. Assume that you consent to the application.

Your notice of objection must be filed within 10 days of the date of service with the Clerk of the Court

_____ _____

Lawyer(s) for the Personal Representative(s) or Personal Representative — Date

C 5

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Formal proof of will**
DOCUMENT	**Application by personal representative(s)**
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

1. The personal representative(s) _____ named in a will of the deceased dated _____ request that:

   1.1 This court formally admits this will to probate as the valid last will of the deceased.

   1.2 This court issues a grant of probate of this will to the personal representatives named in the will.

2. The personal representative(s) make this request because the validity of the will is in issue.

3. The validity of the will has been attacked on the ground that_____.

4. Complete address for service on the personal representative(s) of any documents in this application is_.

Notices required

5. The following notices are required:

   5.1 To all the beneficiaries of the estate in this will.

   5.2 To all the beneficiaries of the estate in previous wills.

   5.3 To the spouse/adult interdependent partner of the deceased.

   5.4 To the adult children of the deceased.

   5.5 To the Public Trustee for the Province of Alberta.

   5.6 To the beneficiaries (intestacy).

   5.7 To the personal representative(s) named in previous wills.

   5.8 To a former spouse of the deceased under section 6 of the *Family Property Act.*

   5.81 To a former adult interdependent partner of the deceased under section 6.1 of the *Family Property Act.*

   5.9 To the spouse or adult interdependent partner of the deceased under section 11 of the *Family Property Act.*

   5.10 To the spouse/adult interdependent partner of the deceased under section 88 of the *Wills and Succession Act.*

   5.11 To a dependent child or dependent minor grandchild or great-grandchild of the deceased under section 88 of the *Wills and Succession Act.*

6. Notices are sent to: _____

7. Surrogate Rule(s) under which this application is being made:

7.1 Rule 77(1)(a).

7.2 Any other Surrogate Rule(s) the applicant specifically relies on (specify): _____.

Applicable statutes

8. Any statutory authority the applicant specifically relies on (specify statute(s) and section number(s)): _____.

_____ _____

Personal Representative *Date*

Name: _____

C 6

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Formal proof of will**
DOCUMENT	**Affidavit by personal representative(s)**
DEPONENT(S) NAME(S)	_____
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

THE DEPONENT(S) EACH SWEAR UNDER OATH OR AFFIRM THAT THE INFORMATION IN THIS AFFIDAVIT IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

Applicant(s)

1. The applicant(s) as shown in the Application are the personal representatives named in a will of the deceased dated _____.

Formal proof of will proceedings

2. It is alleged that the will dated _____ is invalid because ____.

Documents Attached

3. The following documents are part of this affidavit or have been previously filed with the court.

   3.1 GA1 Grant Application

   3.2 C 7 Previous wills

   3.3 Original will(s) of the deceased dated _____

   3.4 Affidavit(s) of witness to will(s)

   I have personally prepared or carefully read the documents that are part of this affidavit and to the best of my knowledge the information in them is accurate and complete.

Notices

4. The applicant(s) have served GA3 Notice(s) to Beneficiaries and Other Interested Parties as required and in the manner prescribed by the *Surrogate Rules*.

5. The deponent(s) believe that while the deceased was alive, the deceased kept the will dated _____ in _____ where it was found at the date of death.

6. After the deceased's death, the applicant(s) obtained the will from _____ and kept it in their or their lawyer's possession until filed with the court.

7. If this will is formally admitted to probate, the applicant(s) will faithfully administer the estate of the deceased according to law and will give a true accounting of their administration to the persons entitled to it when lawfully required.

SWORN OR AFFIRMED BY EACH DEPONENT BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____

_____ _____

Deponent *A Commissioner for Oaths in and for Alberta*

C 7

ESTATE NAME _____

DOCUMENT **Schedule 2.1: Previous wills**

The personal representatives have knowledge about the following wills of the deceased:

(For each will, provide the following information:)

Will dated: _____
Deceased's age at date of will: _____
Location of will at date of death: _____
Name of first witness: _____
Name of second witness: _____

(Complete if the will was made before February 1, 2012:)

The deceased married or entered into an adult interdependent partner agreement after the date the will was made and before February 1, 2012.

☐ Yes

☐ No

The original will is attached to this Schedule.

C 8

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Formal proof of will**
DOCUMENT	**Notice to persons interested in the estate**
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

To:
Name _____
Complete address _____

THIS APPLICATION WILL BE HEARD BY A JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA, JUDICIAL CENTRE OF

ON _____

PLACE _____

TIME _____

NOTICE TO THE RESPONDENT(S) _____

This is to notify you that if you do not attend either in person or by your lawyer before the court at the time and place shown above, the court may give the applicant(s) what they want in your absence. You will be bound by any order the court makes.

Alternatively, another order might be given or other proceedings taken, which the applicant(s) are entitled to without any further notice of them to you.

Therefore, if you want to take part in this application, you or your lawyer must attend in court on the date and time described.

1. The personal representatives named in the deceased's will, dated _____, have applied for formal proof of that will. This is necessary because the validity of the will has been attacked on the grounds that _____.

2. If the court finds this will to be valid, then the court will admit the will to probate and the will's provisions will govern the disposition of the estate property that is dealt with in the will.

3. If the court finds this will to be invalid, then the court will consider

   3.1 whether any previous wills of the deceased are valid and govern the disposition of the estate property, or

   3.2 whether the deceased died intestate, that is, without a will. In that case, the provisions of Part 3 of the *Wills and Succession Act* will determine who will receive the estate property.

4. You are a person interested in the estate as defined in the *Surrogate Rules* because you are _____.

5. Enclosed with this notice is a copy of the application for formal proof of the will of the deceased. This includes copies of the will(s) and a schedule of the inventory of the estate property.

6. The court process to be followed is in accordance with Surrogate Rules 83 and 84.

7. You can contact _____ at _____, phone _____, for any further information you may need.

_____ _____

Personal Representative *Date*

Name: _____

C 9

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Formal proof of will**
DOCUMENT	**Notice of objection to informal grant**
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

_____

(Fill in your name and the other information)

Objector's name _____
Complete address _____
Relationship to deceased _____
Interest in estate _____

1. I object to any application by _____ that _____.

2. I request an interim order that _____.

3. In the proceedings, I will seek a final order that _____.

4. My reason for this request is _____.

5. This notice of objection is sent to _____.

_____ _____
Objector *Date*

This notice of objection requires an affidavit to establish the facts relied on by the objector. Use Form C 2.

Form C 9.1 Repealed AR 37/2020 s13.

C 10

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Formal proof of will**
DOCUMENT	**Direction**

1. The application by the personal representative(s) to admit a will of the deceased dated _____ to probate on an informal basis is denied because _____.

2. The personal representative(s) named in this will must take proceedings formally to prove the deceased's will in accordance with the *Surrogate Rules*.

JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA

DATE

This Form is for the use of the court only.

C 11

COURT FILE NUMBER	
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	
ESTATE NAME	
PROCEDURE	**Deciding contested claims**
DOCUMENT	**Notice of contestation**
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	

To:

Name and address of claimant: _____

1. You have made a claim against the estate of _____ for:

   1.1 _____

   1.2 $_____

2. The personal representative(s) of the estate contest your claim against the estate _____ and will not pay it unless ordered to by the court.

3. You may apply to the court for a decision on your claim by filing a notice of claim in Form C 12 of the *Surrogate Rules*.

4. You must do this within 2 months after you receive this notice. If you fail to act, your claim may be barred forever.

5. Sections 25 and 26 of the *Estate Administration Act* apply to this proceeding.

6. A copy of the relevant *Surrogate Rules* is enclosed.

_____ _____

Personal Representative *Date*

Name: _____

C 12

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Deciding contested claims**
DOCUMENT	**Notice of claim and affidavit**
PARTIES	
APPLICANT(S)	_____
RESPONDENT(S)	_____, the personal representative(s) of the estate
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

THIS APPLICATION WILL BE HEARD BY A JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA, JUDICIAL CENTRE OF _____

ON _____

PLACE _____

TIME _____

NOTICE TO THE RESPONDENT(S) _____

This is to notify you that if you do not attend either in person or by your lawyer before the court at the time and place shown above, the court may give the applicant(s) what they want in your absence. You will be bound by any order the court makes.

Alternatively, another order might be given or other proceedings taken which the applicant(s) are entitled to without any further notice of them to you.

Therefore, if you want to take part in this application, you or your lawyer must attend in court on the date and time described.

Claimant(s)

1. The name(s) and address(es) of the claimant(s) are _____

Amount of claim(s)

2. $ _____.

Nature of claim(s)

3. _____.

Grounds upon which claim(s) are based

4. _____

Relief sought

5. _____.

Documents filed with this application

6. 6.1 Affidavit of the claimant(s).

   6.2 _____.

Applicable Surrogate Rules

7. 7.1 Surrogate Rule 96(1).

   7.2 Any other Surrogate Rule(s) the applicant specifically relies on (specify): _____.

Applicable Statutes

8. Any statutory authority the applicant specifically relies on (specify statute(s) and section number(s)): _____.

Claimant *Date*

AFFIDAVIT

DEPONENT(S) NAME(S) _____
EXHIBITS ATTACHED _____

THE DEPONENT(S) EACH SWEAR UNDER OATH OR AFFIRM THAT THE FOLLOWING INFORMATION IS WITHIN THE DEPONENTS' KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

Applicant(s)

1. The applicant(s) are claimant(s) of the estate.

Respondents

2. The respondents are the personal representative(s) of the estate.

Facts on which the application is based

3. The facts on which this application is based are

3.1 _____.

SWORN OR AFFIRMED BY EACH DEPONENT BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____

Deponent *A Commissioner for Oaths in and for Alberta*

C 13

COURT FILE NUMBER _____
COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____
ESTATE NAME _____
DOCUMENT **Order in respect of**_____

PARTIES
APPLICANT(S) _____
RESPONDENT(S) _____
PERSONAL REPRESENTATIVE(S) _____
BENEFICIARIES (RESIDUARY) _____

LIFE TENANTS _____
BENEFICIARIES (NON RESIDUARY) _____
BENEFICIARIES (INTESTACY) _____
TRUSTEES FOR REPRESENTED ADULTS _____
ATTORNEYS FOR INCOMPETENT ADULTS _____
MINORS _____
MISSING PERSONS _____
BONDING COMPANIES _____
PERSON(S) WHO HAVE FILED A FORM C 1 IN RESPECT OF THIS ESTATE _____

ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT: _____

DATE ON WHICH ORDER WAS MADE: _____
LOCATION OF HEARING: _____

NAME OF JUDGE WHO MADE THIS ORDER: The Honourable Justice _____

THE COURT HAS:

Reviewed the affidavit and other documents filed in this application;

Heard representations from the parties or counsel for the parties;

Considered the application;

AND THE COURT ORDERS:

1. _____

_____
JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA

C 14

COURT FILE NUMBER _____
COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____
DOCUMENT **Application to authorize minor to make or revoke a will**

PARTIES

APPLICANT _____

(THE MINOR AS REPRESENTED BY A LITIGATION REPRESENTATIVE IN ACCORDANCE WITH THE ALBERTA RULES OF COURT) _____

RESPONDENT(S):

PARENT(S) OF THE MINOR _____

GUARDIAN(S) OF THE MINOR (IF DIFFERENT FROM PARENTS) _____

TRUSTEES FOR THE MINOR, IF ANY _____

THE PUBLIC TRUSTEE _____

ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT: _____

THIS APPLICATION WILL BE HEARD BY A JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA, JUDICIAL CENTRE OF _____

ON _____

PLACE _____

TIME _____

NOTICE TO THE RESPONDENT(S) _____

This is to notify you that if you do not attend either in person or by your lawyer before the court at the time and place shown above, the court may give the applicant what the applicant wants in your absence. You will be bound by any order the court makes.

Alternatively, another order might be given or other proceedings taken that the applicant(s) are entitled to without any further notice of them to you.

Therefore, if you want to take part in this application, you or your lawyer must attend in court on the date and time described.

Parties to the Application and service

1. The applicant(s) is (are) _____.

2. The respondent(s) is (are) _____.

3. The applicant will serve the following parties: _____

_____.

4. The applicant will ask the court to dispense with service on the following parties for the reasons set out in the Affidavit filed with this Application: _____.

Issues to be determined:

5. _____.

Grounds on which request is based:

6. _____.

Reasons for seeking relief:

7. _____.

Relief sought:

8. _____.

Documents filed with this Application:

9.1 Affidavit of the applicant(s)

9.2

Applicable Surrogate Rules

10. 10.1 Surrogate Rule 54.1.

10.2 Any other Surrogate Rule(s) the applicant specifically relies on (specify): _____.

Applicable Statutes

11. 11.1 *Wills and Succession Act*, SA 2010 cW-12.2 s36.

11.2 Any other statutory authority the applicant specifically relies on (specify statute(s) and section number(s)): _____.

_____

_____ _____

Applicant *Date*

ACC 1

COURT FILE NUMBER _____

COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____

ESTATE NAME _____

PROCEDURE	**Application by the personal representative(s) to pass accounts formally**
DOCUMENT	**Application**
PARTIES	
APPLICANT(S)	
RESPONDENT(S)	
BENEFICIARIES (RESIDUARY)	
LIFE TENANTS	
BENEFICIARIES (NON RESIDUARY)	
BENEFICIARIES (INTESTACY)	
TRUSTEES FOR REPRESENTED ADULTS	
ATTORNEY(S) FOR INCOMPETENT ADULTS	
MINORS	
MISSING PERSONS	
UNPAID CLAIMANTS	
BONDING COMPANIES	
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	

1. The applicant(s) request an order:

    1.1 Deeming service of all documents on all parties sufficient.

    1.2 Determining that the personal representative(s) have fully and satisfactorily accounted to a date to be stated in the order.

    1.3 Passing the accounts.

    1.4 Setting the compensation for the personal representative(s) for the accounting period.

    1.5 Directing distribution of the estate.

    1.6 Cancelling the bond.

    1.7 Discharging the personal representative(s).

    1.8 Allowing and directing payment of costs (including disbursements and G.S.T.) of this application to be paid from the estate.

    1.9 Providing for any other matters that might be required.

2. Filed with this application are:

2.1 ACC 2 Affidavit of the personal representative(s)

2.2 Financial statements

3. Costs proposal:

3.1 Costs of the personal representative(s) to be paid by _____.

4. Surrogate Rule(s) under which this application is being made:

4.1 Rule 107(1)(a).

4.2 Any other Surrogate Rule(s) the applicant specifically relies on (specify): _____.

Applicable Statutes

5. 5.1 *Estate Administration Act*, section 32.

5.2 Any other statutory authority the applicant specifically relies on (specify statute(s) and section number(s)): _____.

_____ _____

Applicant *Date*

NOTICE OF HEARING:	THIS APPLICATION WILL BE HEARD BY A JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA, JUDICIAL CENTRE OF _____:
ON _____	
PLACE _____	
TIME _____	

Please read the enclosed documents carefully so that you can understand what the application is about.

If you consent to or do not oppose the application, you may:

1. Tick the last box on the notice of objection. Sign and return the notice of objection to the trustee(s); or

2. Do nothing further; or

3. Attend at the hearing and indicate your position to the court.

If you oppose any part of the application, you must:

1. Complete and file the enclosed notice of objection with the court described above 10 days or more before the hearing, that is by _____; and

2. Serve a filed copy of the notice of objection on the applicant(s). Their address for service is on this application; and

3. Come to the hearing and tell the justice what part of the accounting you object to and why.

If you oppose any part of this application but you do not file and serve your notice of objection:

1. You will not be allowed to take part in the proceedings unless the justice specifically agrees to let you; and

2. The hearing will still take place even if you are not allowed to take part in the proceedings; and you will be bound by the justice's order.

In any event, the justice will make an order and a copy of the order will be sent to you later.

ACC 2

COURT FILE NUMBER	
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	
ESTATE NAME	
PROCEDURE	**Application by the personal representative(s) to pass accounts formally**
DOCUMENT	**Affidavit**
DEPONENT(S) NAME(S)	
DOCUMENTS ATTACHED	**Financial statements**
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	

THE DEPONENT(S) SWEAR UNDER OATH OR AFFIRM THAT THE FOLLOWING INFORMATION IS WITHIN THE DEPONENTS' KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

Applicant(s)

1. The applicant(s) are the personal representative(s) of the estate.

Respondents

2. The respondents are all the persons interested in the estate as defined in the *Surrogate Rules*.

Releases

3. The following persons are residuary beneficiaries of the estate and have signed releases indicating their approval of the financial statements, the schedule of compensation for the personal representative(s) and the schedule of distribution:

Release #1: _____(Name)_____

Release #2: _____(Name)_____

4. The other respondent residuary beneficiaries, who have all received releases but have not signed them nor communicated with the applicant(s) about the financial statements, the schedule of compensation for the personal representative(s) and the schedule of distribution, are _____.

4.1 The applicant(s) do not know what position these respondents take.

or

4.2 The position of respondent _____ is attached or is as follows:

_____.

Service of documents

5. Copies of the financial statements, the schedule of compensation for the personal representative(s) and the schedule of distribution have been given or mailed to all the respondents either at their last known addresses or in care of their lawyers of record.

6. The respondents will be served in the manner prescribed in the *Surrogate Rules* with:

6.1 ACC 1 Application, including notice of hearing

6.2 ACC 2 Affidavit of the personal representative(s)

6.3 ACC 3 Notice of objection

Financial statements

7. The financial statements:

7.1 Are an accurate statement of the administration of the estate.

7.2 Show all the property and debts of the deceased that the personal representative(s) have been able to ascertain.

7.3 Show all the property received and debts and claims paid by the personal representative(s).

7.4 Are for the period _____ to _____.

7.5 Are _____ accounting.

Claimants

8. Claimants and amounts not yet paid are:

8.1 _____.

Advertising for creditors and claimants

9. _____

Distribution

10. No distribution of the deceased's property has been made except as is reflected in the financial statements.

11. Once the court approves the financial statements, the personal representative(s) undertake to distribute the estate property as set out in the schedule of distribution.

Special matters

12. _____.

Compensation

13. Compensation for the personal representative(s) is based on:

14. _____.

SWORN OR AFFIRMED BY EACH DEPONENT BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____

_____ _____

Deponent *A Commissioner for Oaths in and for Alberta*

ACC 3

COURT FILE NUMBER

COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____
ESTATE NAME _____
PROCEDURE **Application by** _____
DOCUMENT **Notice of Objection or Consent**

ADDRESS FOR
SERVICE AND CONTACT
INFORMATION OF PARTY
FILING THIS DOCUMENT _____

Name of respondent beneficiary _____

I OBJECT TO THE FOLLOWING PART(S) OF THIS APPLICATION:

(Tick the boxes against items where you object; otherwise leave the boxes blank. Describe the item you object to and give your reasons.)

☐ Financial statements

Item number(s) _____ Description _____

Reason(s) for objection _____

☐ Distribution schedule

Description _____

Reason(s) for objection _____

☐ Compensation schedule

Description _____

Reason(s) for objection _____

☐ Manner of administration

Description _____

Reason(s) for objection _____

OTHERWISE I CONSENT TO THIS APPLICATION.

☐ No objection

I have no objections to the financial statements for the period ___ to _____.

_____ _____
Respondent beneficiary *Date*

ACC 4

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Application by the personal representative(s) to pass accounts formally**
DOCUMENT	**Terms of professional accounting firm's engagement**
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

DIRECTION

1. The professional accounting firm _____ is engaged to provide the following services with regard to the financial statements for the estate of _____ for the period _____ to _____:

   a. ☐ to perform a compilation engagement of the financial statements.

   b. ☐ to perform a review engagement of the financial statements.

   c. ☐ to perform a review engagement of the financial statements with a disclosure of the review engagement procedures applied in arriving at the overall negative assurance opinion, with regard to specific items ... in the financial statements.

   d. ☐ to carry out specified auditing procedures with regard to items _____ in the financial statements or financial information.

   e. ☐ to perform an audit of the financial statements.

2. All accounting documentation must be made available to the professional accounting firm.

3. The professional accounting firm's fee and necessary disbursements are payable by _____.

4. The professional accounting firm will report its results to the Court of King's Bench and the persons interested in the estate by _____.

4.1. When the professional accounting firm has completed its review as directed, it will report the results, including all exceptions, irregularities, and other pertinent comments, to the Court of King's Bench and the persons interested in the estate by _____ _____.

5. In particular, the professional accounting firm is directed to review items numbered _____ from the estate financial statements and to:

5.1 _____

The professional accounting firm, ____(name)____, accepts the terms of this engagement.

_____ _____
Signature *Date*
Name: _____
Name of professional accounting firm: _____
Complete address: _____
Phone: _____
Fax: _____
File no.: _____

ORDER: ISSUE THIS DIRECTION

_____ _____
JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA DATE

ACC 5.1

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Application by the personal representative(s) to pass accounts formally**
DOCUMENT	**Professional accounting firm's engagement report**

ADDRESS FOR
SERVICE AND CONTACT
INFORMATION OF PARTY
FILING THIS DOCUMENT _____

To the Court of King's Bench of Alberta:

1. This report is prepared solely for submission to the Court of King's Bench of Alberta, the personal representative(s), and the persons interested in the estate as identified by the court.

2. I have reviewed the financial statements for the estate of _____ for the period _____ to _____, as ordered by the Court of King's Bench on _____.

3. These financial statements were prepared by the personal representative(s) and provided to the court and to me.

4. My responsibility was to express an opinion on the plausibility of the financial statements based on my review. This review was made in accordance with generally accepted standards for review engagements and accordingly consisted primarily of enquiry, analytical procedures and discussion related to information supplied to me by the personal representative(s).

5. A review does not constitute an audit and consequently I do not express an audit opinion on these financial statements.

6. Based on my review, nothing has come to my attention that causes me to believe that these financial statements are not, in all material respects, in accordance with generally accepted accounting principles.

7. _____

_____ _____
Signature *Date*
Name: _____
Name of professional accounting firm: _____

ACC 5.2

COURT FILE NUMBER _____
COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____
ESTATE NAME _____

PROCEDURE	**Application by the personal representative(s) to pass accounts formally**
DOCUMENT	**Professional accounting firm's engagement report**
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

To the Court of King's Bench of Alberta:

1. This report is prepared solely for submission to the Court of King's Bench of Alberta, the personal representative(s), and the persons interested in the estate as identified by the court.

2. I have received the financial statements for the estate of _____ for the period _____ to _____, as ordered by the Court of King's Bench on _____.

3. These financial statements were prepared by the personal representative(s) and provided to the court and to me.

4. The court directed me to conduct specified auditing procedures on items numbered _____ in the financial statements. My responsibility was to report on the results of applying these procedures, including any errors I found.

5. I adopted the following procedures for the review:

   _____.

6. I report as follows:

   _____.

7. These procedures do not constitute an audit and consequently I do not express an audit opinion on these financial statements.

_____ _____

Signature *Date*

Name: _____

Name of professional accounting firm: _____

ACC 6

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Application by a person interested in the estate that accounts be passed formally**
DOCUMENT	**Application**
PARTIES	
APPLICANT(S)	_____
RESPONDENT(S)	
PERSONAL REPRESENTATIVE(S)	_____
BENEFICIARIES (RESIDUARY)	_____
LIFE TENANTS	_____
BENEFICIARIES (NON RESIDUARY)	_____
BENEFICIARIES (INTESTACY)	_____
TRUSTEES FOR REPRESENTED ADULTS	_____
ATTORNEYS APPOINTED UNDER THE POWERS OF ATTORNEY ACT FOR INCOMPETENT ADULTS	_____
MINORS	_____
MISSING PERSONS	_____
UNPAID CLAIMANTS	_____
BONDING COMPANIES	_____
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT	_____

1. The applicant(s) request an order:

    1.1 Requiring the personal representative(s) to pass accounts formally for the period _____ to _____ in accordance with the *Surrogate Rules*.

    1.2 Deeming service of documents on all parties sufficient.

2. Filed with this application is:

    2.1 ACC 7 Affidavit of the applicant(s)

3. Costs proposal:

    3.1 Costs of the applicant(s) to be paid by _____.

Applicable Surrogate Rules

4. 4.1 Surrogate Rule 108(1).

4.2 Any other Surrogate Rule(s) the applicant specifically relies on (specify): _____.

Applicable Statutes

5. 5.1 *Estate Administration Act*, section 32.

5.2 Any other statutory authority the applicant specifically relies on (specify statute(s) and section number(s)): _____.

_____ _____

Applicant *Date*

NOTICE OF HEARING:	THIS APPLICATION WILL BE HEARD BY A JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA, JUDICIAL CENTRE OF _____:
ON _____	
PLACE _____	
TIME _____	

Please read the enclosed documents carefully so that you can understand what the application is about.

You will soon be receiving a reply from the personal representative(s) of the estate. The reply will tell you what position the personal representative(s) are taking about this application.

1. The personal representative(s) may consent to the application and apply for a formal passing of accounts.

In this case:

1.1 The court hearing shown above will be adjourned.

1.2 You will receive copies of the financial statements from the personal representative(s). If you need more information, you should ask the personal representative(s) for it.

1.3 You will also receive a notice of objection. This will tell you your choices of what you can do depending on whether you accept or reject the financial statements.

1.4 If the financial statements are satisfactory, tick the last box on the notice of objection. Sign and return the notice of objection to the trustee(s) with a copy to the applicant(s).

1.5 If the financial statements are not satisfactory, tick the appropriate boxes on the notice of objection. Sign and return the notice of objection to the trustee(s) with a copy to the applicant(s).

1.6 If all parties are satisfied with the financial statements, there will not be a court hearing.

2. The personal representative(s) may object to the application and refuse to apply for a formal passing of accounts.

In this case:

2.1 The court hearing shown above will take place.

2.2 You will receive an affidavit from the personal representative(s) before the hearing that will tell you why they object to the application and refuse to apply for a formal passing of accounts.

3. Your position at the court hearing shown above.

3.1 If you also object to the application that accounts be passed formally, you or your lawyer should come to the hearing and tell the justice your position and reasons.

3.2 If you support the application that accounts be passed formally, or you have no position, you or your lawyer should come to the hearing and tell the justice your position and reasons. Or you can tell the applicant(s) directly and they will tell the justice what your position is.

3.3 At the end of the hearing, the justice will make an order and you will receive a copy of it later. You will be bound by the justice's order.

4. If you receive no reply from the personal representative(s), the court hearing shown above will take place.

ACC 7

COURT FILE NUMBER	
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	
ESTATE NAME	
PROCEDURE	**Application by a person interested in the estate that accounts be passed formally**
DOCUMENT	**Affidavit**
DEPONENT(S) NAMES(S)	

THE DEPONENT(S) EACH SWEAR UNDER OATH OR AFFIRM THAT THE FOLLOWING INFORMATION IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

Applicant(s)

1. The applicant(s) are all persons interested in the estate as defined in the *Surrogate Rules*.

Respondents

2. The respondents are all the persons interested in the estate as defined in the *Surrogate Rules*.

Service of documents

3. The respondents will be served in the manner prescribed in the *Surrogate Rules* with:

3.1 ACC 6 Application including notice of hearing

3.2 ACC 7 Affidavit of the applicant(s)

Grounds for application

4. The applicant(s) request that accounts for the period _____ to _____ be passed formally because _____.

SWORN OR AFFIRMED BY EACH DEPONENT BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____

Deponent

A Commissioner for Oaths in and for Alberta

ACC 8

COURT FILE NUMBER

COURT — **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE

ESTATE NAME

PROCEDURE — **Application by a person interested in the estate that accounts be passed formally**

DOCUMENT	**Reply by the personal representative(s)**
PARTIES	
APPLICANT(S)	
RESPONDENT(S)	
PERSONAL REPRESENTATIVES	
BENEFICIARIES (RESIDUARY)	
LIFE TENANTS	
BENEFICIARIES (NON RESIDUARY)	
BENEFICIARIES (INTESTACY)	
TRUSTEES FOR REPRESENTED ADULTS	
ATTORNEYS APPOINTED UNDER THE POWERS OF ATTORNEY ACT FOR INCOMPETENT ADULTS	
MINORS	
MISSING PERSONS	
UNPAID CLAIMANTS	
BONDING COMPANIES	
COMPLETE ADDRESS FOR SERVICE ON THE PERSONAL REPRESENTATIVE(S) OF ANY DOCUMENTS IN THIS ACTION	

1. This reply is in answer to the application by a person interested in the estate that accounts be passed formally.

2. The personal representative(s) consent to the application and will apply for a formal passing of accounts for the period _____ to _____ in accordance with the *Surrogate Rules* if there are any objections to the financial statements.

or

2. The personal representative(s) object to the application and they will not apply for a formal passing of accounts.

3. Filed with this reply is:

   3.1 ACC 9 Affidavit of the personal representative(s)

4. Costs proposal:

   4.1 The costs of the personal representative(s) to be paid by _____.

Personal Representative *Date*

Name: _____
Complete address: _____

_____
Lawyers for Personal Representative(s)
Responsible lawyer: _____
Firm name: _____
Complete address: _____
Phone: _____
Fax: _____
File no.: _____

ACC 9

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Application by a person interested in the estate that accounts be passed formally**
DOCUMENT	**Affidavit of the personal representative(s) objecting to passing accounts formally**
DEPONENT(S) NAME(S)	_____
EXHIBITS ATTACHED	_____

THE DEPONENT(S) EACH SWEAR UNDER OATH OR AFFIRM THAT THE FOLLOWING INFORMATION IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

Deponent(s)

1. The deponent(s) are the personal representative(s) of the estate.

Reasons for objecting to making a formal accounting

2. The personal representative(s) object to the application that accounts be passed formally because _____.

SWORN OR AFFIRMED BY EACH DEPONENT BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____

_____ _____
Deponent *A Commissioner for Oaths*

in and for Alberta

ACC 10

COURT FILE NUMBER	_____
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
PROCEDURE	**Application by the personal representative(s) to dispense with a formal passing of accounts and to pass accounts informally**
DOCUMENT	**Application**
PARTIES	
APPLICANT(S)	_____
RESPONDENT(S)	
BENEFICIARIES (RESIDUARY)	_____
LIFE TENANTS	_____
BENEFICIARIES (NON RESIDUARY)	_____
BENEFICIARIES (INTESTACY)	_____
TRUSTEES FOR REPRESENTED ADULTS	_____
ATTORNEYS FOR INCOMPETENT ADULTS	_____
MINORS	_____
MISSING PERSONS	_____
UNPAID CLAIMANTS	_____
BONDING COMPANIES	_____
COMPLETE ADDRESS FOR SERVICE ON THE APPLICANT(S) OF ANY DOCUMENTS IN THIS ACTION	_____

1. The applicant(s) request an order:

    1.1 Deeming service of all documents on all parties sufficient.

    1.2 Dispensing with a formal passing of accounts for the period _____ to _____.

    1.3 Determining that the personal representative(s) have fully and satisfactorily accounted to a date to be stated in the order.

1.4 Setting the compensation for the personal representative(s) for the accounting period.

1.5 Directing distribution of the estate.

1.6 Discharging the personal representative(s).

1.7 Allowing and directing payment of costs (including disbursements and G.S.T.) of this application to be paid from the residue of the estate.

1.8 Cancelling the bond.

1.9 Providing for any other matters which might be required.

2. Filed with this application are:

2.1 ACC 11 Affidavit of the personal representative(s)

2.2 Financial statements

2.3 ACC 12 Signed releases

3. Cost proposal:

3.1 Personal representative(s) costs to be paid from the residue of the estate on a solicitor/client basis.

3.2 Respondent(s) costs to be paid as ordered by the court.

Applicable Surrogate Rules

4. 4.1 Surrogate Rule 103(1).

4.2 Any other Surrogate Rule(s) the applicant specifically relies on (specify): _____.

Applicable Statutes

5. 5.1 *Estate Administration Act*, section 32.

5.2 Any other statutory authority the applicant specifically relies on (specify statute(s) and section number(s)): _____.

_____ _____

Personal Representative *Date*

Name: _____

Complete address: _____

_____

Lawyers for Personal Representative(s)

Responsible lawyer: _____
Firm name: _____
Complete address: _____
Phone: _____
Fax: _____
File no.: _____

NOTICE OF HEARING:	THIS APPLICATION WILL BE HEARD BY A JUSTICE OF THE COURT OF KING'S BENCH OF ALBERTA, JUDICIAL CENTRE OF _____:
ON _____	
PLACE _____	
TIME _____	

Please read the enclosed application and affidavit carefully so that you can understand what the application is about.

If you consent to or do not oppose the application, you may:

1. Tick the last box on the notice of objection. Sign and return the notice of objection to the trustee(s); or

2. Do nothing further; or

3. Attend at the hearing and indicate your position to the court.

If you oppose any part of the application, you must:

1. Complete and file the enclosed notice of objection with the court described above 10 days or more before the hearing, that is by _____; and

2. Serve a filed copy of the notice of objection on the applicant. The applicant's address for service appears on the application form; and

3. Come to the hearing and tell the justice what part of the accounting you object to and why.

If you oppose any part of the application but you do not file and serve the notice of objection:

1. You will not be allowed to take part in the proceedings unless the justice specifically agrees to let you; and

2. The hearing will take place anyway even if you are not allowed to take part in the proceedings; and you will be bound by the justice's order.

In any event, the justice will make an order and a copy of the order will be sent to you later.

ACC 11

COURT FILE NUMBER	
COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	
ESTATE NAME	
PROCEDURE	**Application by the personal representative(s) to dispense with a formal passing of accounts and to pass accounts informally**
DOCUMENT	**Affidavit**
DEPONENT(S) NAME(S)	
DOCUMENTS ATTACHED	**Financial statements**

THE DEPONENT(S) EACH SWEAR UNDER OATH OR AFFIRM THAT THE FOLLOWING INFORMATION IS WITHIN THE DEPONENT'S KNOWLEDGE AND IS TRUE. WHERE THE INFORMATION IS BASED ON ADVICE OR INFORMATION AND BELIEF, THIS IS STATED.

Applicants

1. The applicant(s) are the personal representative(s) of the estate.

Respondents

2. The respondents are all the persons interested in the estate as defined in the *Surrogate Rules* who have not signed releases.

Releases

3. The following persons who are residuary beneficiaries of the estate have signed releases indicating their approval of the financial statements, the schedule of compensation for the personal representative(s) and the schedule of distribution:

Release #1: _____(Name)_____

Release #2: _____(Name)_____

4. The other respondent residuary beneficiaries, who have all received releases but have not signed them nor communicated with the applicant(s) about the financial statements, the schedule of compensation for the personal representative(s) and the schedule of distribution, are _____ _____.

4.1 The applicant(s) do not know what position these respondents take.

or

4.2 The position of respondent _____ is attached or is as follows:

_____.

Service of documents

5. Copies of the financial statements, the schedule of compensation for the personal representative(s) and the schedule of distribution have been mailed to all the persons interested in the estate either at their last known addresses or in care of their lawyers of record.

6. The respondents will be served in the manner prescribed in the *Surrogate Rules* with:

6.1 ACC 10 Application, including notice of hearing

6.2 ACC 11 Affidavit of the personal representative(s)

6.3 ACC 3 Notice of objection

Financial statements

7. The financial statements:

7.1 Are an accurate statement of the administration of the estate.

7.2 Show all the property and debts of the deceased that the personal representative(s) have been able to ascertain.

7.3 Show all the property received and debts and claims paid by the personal representative(s).

7.4 Are for the period _____ to _____.

7.5 Are _____ accounting.

Claimants

8. Claimants and amounts not yet paid are:

8.1 _____.

Advertising for creditors and claimants

9. _____.

Distribution

10. No distribution of the deceased's property has been made except as is reflected in the financial statements.

11. Once the court approves the financial statements, the personal representative(s) undertake to distribute the estate property as set out in the schedule of distribution.

Compensation

12. Compensation for the personal representative(s) is based on :

13. _____.

Reasons for application

14. The applicant(s) are applying for this order because _____.

Special matters

15. _____.

SWORN OR AFFIRMED BY EACH DEPONENT BEFORE A COMMISSIONER FOR OATHS AT _____, ALBERTA ON _____

_____ _____

Deponent *A Commissioner for Oaths in and for Alberta*

ACC 12

COURT FILE NUMBER _____

COURT **Court of King's Bench of Alberta (Surrogate Matter)**

JUDICIAL CENTRE _____

ESTATE NAME _____

DOCUMENT **Release #** _____

PERIOD COVERED _____ **to** _____

ADDRESS FOR SERVICE AND CONTACT

INFORMATION OF PARTY
FILING THIS DOCUMENT _____

This release has been signed by _____

of _____

who is a person beneficially interested in the residue of the estate.

1. I have received from the personal representative(s) of the estate financial statements covering the period _____ to _____.

2. I approve the financial statements including the schedule of distribution and the schedule of compensation for the personal representative(s).

3. I understand that I will receive my share of the estate property as shown on the schedule of distribution, once the personal representative(s) have received releases from all the necessary beneficiaries.

4. If all the necessary beneficiaries do not sign a release, I understand that the personal representative(s) will apply for a court order approving the financial statements or dispensing with the need to pass accounts formally. The personal representative(s) will then distribute the estate property according to the order.

5. Until the financial statements have been approved by all concerned or by the court, my release will be held in trust.

6. In signing this release, I release and discharge the personal representative(s), their heirs, successors, personal representatives and assigns from any further claims by me against the estate and its property and against the personal representative(s) for their management and distribution of the estate to the date of this release.

7. This is _____ release.

_____ _____
Signature of Beneficiary *Date*

_____
Witness to signature of _____

This document requires an affidavit of execution.

ACC 13

COURT FILE NUMBER _____

COURT	**Court of King's Bench of Alberta (Surrogate Matter)**
JUDICIAL CENTRE	_____
ESTATE NAME	_____
DOCUMENT	**Order in respect of (*matter)*** _____

PARTIES

APPLICANT(S)	_____
RESPONDENT(S)	
PERSONAL REPRESENTATIVE(S)	_____
BENEFICIARIES (RESIDUARY)	_____
LIFE TENANTS	_____
BENEFICIARIES (NON RESIDUARY)	_____
BENEFICIARIES (INTESTACY)	_____
TRUSTEES FOR REPRESENTED ADULTS	_____
ATTORNEYS FOR INCOMPETENT ADULTS	_____
MINORS	_____
MISSING PERSONS	_____
UNPAID CLAIMANTS	_____
BONDING COMPANIES	_____
PERSON(S) WHO HAVE FILED A FORM C 1 IN RESPECT OF THIS ESTATE:	_____
ADDRESS FOR SERVICE AND CONTACT INFORMATION OF PARTY FILING THIS DOCUMENT:	_____
DATE ON WHICH ORDER WAS MADE:	_____
LOCATION OF HEARING:	_____
NAME OF JUDGE WHO MADE THIS ORDER: The Honourable Justice	_____

THE COURT HAS:

Reviewed the affidavit and other documents filed in this application;

Heard representations from the parties or counsel for the parties;

Considered the application;

AND THE COURT ORDERS:

1. _____

JUSTICE OF THE COURT OF KING'S
BENCH OF ALBERTA

NGA 1

Personal Representative's Notice to Beneficiary

(section 10(1)(a) of the *Estate Administration Act*)

Notice regarding the estate of ___(name of deceased)___, deceased, who resided in or near ____(closest city or town)____ and died on __(date)__ at or near _____(closest city or town)_____.

Instruction to Personal Representative: If the beneficiary was a minor on the date of the deceased's death, or is a missing person, represented adult, or adult represented by an attorney under an enduring power of attorney, include this notice with the Notice to Attorney, Trustee, Guardian, or Public Trustee (Form NGA 4).

Who is receiving this notice?

1. This notice is given to:

Name: _____

Complete address: _____

Who is giving this notice?

2. This notice is given to you by __(name of personal representative)__, who is named as a personal representative of the deceased's estate in a document dated _____(date)_____ , which the personal representative believes to be the deceased's last will.

   If you believe this document is not the deceased's last will you or your lawyer may take steps to require the personal representative to prove in court that it is the deceased's last will.

Why are you receiving this notice?

3. The personal representative believes you are a beneficiary of the deceased's estate for one or more of the following reasons (tick all applicable boxes):

☐ The will gives you the following specific gift: __(describe gift)____.

☐ You are a residuary beneficiary under the will (copy attached). It gives you some or all of the property remaining in the deceased's estate after payment of debts and other claims against the estate, and after distribution of any specific gifts.

☐ You are a beneficiary on a partial intestacy. The will does not dispose of all the deceased's property and you may be entitled to some or all of the deceased's undistributed property under section ___ of the *Wills and Succession Act* or section ___ of the *Intestate Succession Act*, RSA 2000 cI-10.

When will the personal representative distribute the deceased's property to beneficiaries?

4. All gifts to beneficiaries are subject to prior payment of the deceased's debts and other claims against the estate. The personal representative must collect the deceased's property, pay the debts, and complete the administration of the estate. The personal representative can then account to you and distribute any property remaining in the estate after payment of debts, claims and the expenses of administering the estate.

What are the personal representative's duties and how are they enforced?

5. Alberta's *Estate Administration Act* and other laws place duties on the personal representative, which include communicating regularly with beneficiaries and maintaining proper financial records. If you believe the personal representative is not complying with their duties, try to resolve the matter through discussion with the personal representative. If you are unable to resolve the matter you or your lawyer may apply to the Court, which may provide a remedy if it is satisfied that the personal representative is not complying with their duties.

How can you contact the personal representative?

6. You may contact the personal representative for further information:

☐ Telephone no. _____ ☐ e-mail _____
☐ Mailing address _____
☐ Other _____

NGA 2

Personal Representative's Notice to Family Member

(section 10(1)(b) of the *Estate Administration Act*)

Notice regarding the estate of (name of deceased), deceased, who resided in or near (closest city or town) and died on (date) at or near (closest city or town).

Who is receiving this notice?

1. This notice is given to or on behalf of the following family member of the deceased:

Name: (name of family member)
Complete address: _____

Instruction to Personal Representative: Provide the following additional information if this notice is given to the family member's attorney, trustee or guardian or to the Public Trustee:

This notice is given to the following on behalf of that family member:

☐ the Public Trustee;

☐ the family member's attorney, trustee or guardian:
Name: (name of attorney, trustee or guardian)
Complete address: _____

Who is giving this notice?

2. This notice is given to you by (name of personal representative), who is named as a personal representative of the deceased's estate in a document dated (date), which the personal representative believes to be the deceased's last will.

If you believe this document is not the deceased's last will, you or your lawyer may take steps to require the personal representative to prove in court that it is the deceased's last will.

Why are you receiving this notice?

3. The law requires that this notice be given to you because the will does not give you (or the family member on whose behalf you were given this notice) all the property in the deceased's estate. You (or the family member) may be entitled to make a claim for maintenance and support from the deceased's estate because you are (or the family member is)

☐ a spouse or the adult interdependent partner of the deceased,

☐ a child of the deceased who is under the age of 18 years at the time of the deceased's death,

☐ a child of the deceased who is at least 18 years of age at the time of the deceased's death and unable to earn a livelihood by reason of mental or physical disability,

☐ a child of the deceased who, at the time of the deceased's death, is at least 18 but under 22 years of age and unable to withdraw from his or her parents' charge because he or she is a full-time student as determined in accordance with the *Family Law Act* and its regulations, or

☐ a grandchild or great-grandchild of the deceased

(a) who is under 18 years of age at the time of the deceased's death,

(b) in respect of whom the deceased, during life, demonstrated a settled intention to treat as his or her own child,

(c) whose primary home, since birth or for at least 2 years immediately before the grandparent's death, was with the grandparent, and

(d) whose primary financial support, since birth or for at least 2 years immediately before the grandparent's death, was provided by the grandparent.

Part 5, Division 2 of the *Wills and Succession Act** allows a qualified family member to apply to the Court to receive maintenance and support from the estate. The Court can change the distribution of the estate and

give the family member more or all of the estate if the Court decides the circumstances warrant it. If you want to take this further, you should get legal advice immediately.

**Note: If the deceased died before February 1, 2012, family members have similar rights to apply for relief under the Dependants Relief Act.*

How can you contact the personal representative?

4. You may contact the personal representative for further information:

☐ Telephone no. _____ ☐ e-mail _____
☐ Mailing address _____
☐ Other _____

NGA 3

Personal Representative's Notice to Spouse or Adult Interdependent Partner

(section 10(1)(c) or (c.1) of the *Estate Administration Act)*

Notice regarding the estate of (name of deceased), deceased, who resided in or near (closest city or town) and died on (date) at or near (closest city or town).

Who is receiving this notice?

1. This notice is given to:

Name: (name of deceased's spouse or adult interdependent partner)
Complete address: _____

Who is giving this notice?

2. This notice is given to you by (name of personal representative), who is named as a personal representative of the deceased's estate in a document dated (date) (copy attached), which the personal representative believes to be the deceased's last will.

If you believe this document is not the deceased's last will you or your lawyer may take steps to require the personal representative to prove in court that it is the deceased's last will.

Why are you receiving this notice?

3. The law requires that this notice be given to you because you are (tick the applicable box)

☐ the spouse of the deceased, or

☐ the adult interdependent partner of the deceased,

and the will does not give you all the property in the estate. You may have a claim under the *Family Property Act* on the property in the estate. If you want to take this further, you should get legal advice immediately.

How can you contact the personal representative?

4. You may contact the personal representative for further information:

☐ Telephone no. _____ ☐ e-mail _____
☐ Mailing address _____
☐ Other _____

NGA 4

Personal Representative's Notice to Attorney, Trustee, Public Trustee or Guardian

(section 10(1)(d) of the *Estate Administration Act*)

Notice regarding the estate of (name of deceased), deceased, who resided in or near (closest city or town) and died on (date) at or near (closest city or town).

Instruction to Personal Representative: Provide a copy of the Personal Representative's Notice to Beneficiaries (Form NGA 1), with this notice.

Who is receiving this notice?

1. This notice is given on behalf of the following person who is interested in the estate:

Name: (name of person interested in the estate)

This notice is given to the following on behalf of that person:

☐ the Public Trustee, or

☐ the person's attorney, trustee or guardian:
Name: (name of attorney, trustee or guardian)
Complete address: _____

Why are you receiving this notice?

2. The law requires that this notice be given to you because you are (tick all applicable boxes)

☐ the attorney under an enduring power of attorney for the person interested in the estate,

☐ the trustee for the person interested in the estate,

☐ the guardian of the person interested in the estate, or

☐ the Public Trustee and because the person interested in the estate (tick the applicable box)

- ☐ was a minor on the date of the deceased's death,
- ☐ is a missing person as defined in the *Public Trustee Act*, or
- ☐ is a represented adult for whom the Public Trustee is trustee.

What other notice are you receiving?

3. Included with this notice is a Personal Representative's Notice to Beneficiaries, which provides further information about the nature of the interest of the person on whose behalf you have been given this notice, information about the personal representative who has given you this notice and information about the estate.

Instruction to Personal Representative: Include the following only if this notice is being given to the Public Trustee because the person interested in the estate is a minor:

Who is the minor's guardian?

4. The name and contact information for the minor's guardian are:

Guardian's Name _____
☐ Telephone no. _____ ☐ e-mail _____
☐ Mailing address _____
☐ Other _____

DA 1 to **DA 18** Repealed AR 10/2010 s5.

AR130/95 Sched.3;135/96;132/2000;53/2001;110/2001;206/2001;251/2001;201/2003;107/2004;221/2004;7/2005;110/2006;196/2006;306/2006;209/2007;306/2009;10/2010;101/2010;165/2010;121/2011;10/2012;44/2015;156/2019;37/2020;243/2021;218/2022;139/2023





Printed on Recycled Paper